

TERM FACILITY AGREEMENT

dated 14 March 2026

for

Al Noor Trading L.L.C.
as Borrower

Al Noor Holdings Limited
as Guarantor

Gulf Meridian Bank P.J.S.C.
as Lender

AED 250,000,000 TERM LOAN FACILITY

Facility period 2026–2031

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THIS AGREEMENT is dated 14 March 2026 and made between:

- (1) **Al Noor Trading L.L.C.**, a limited liability company incorporated in the Emirate of Dubai with commercial licence number 784512 (the “Borrower”);
- (2) **Al Noor Holdings Limited**, a private company incorporated in the Dubai International Financial Centre with registered number 3317 (the “Guarantor”); and
- (3) **Gulf Meridian Bank P.J.S.C.**, a public joint stock company incorporated in the Emirate of Dubai (the “Lender”).

IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement:

“Account Bank” means Gulf Meridian Bank P.J.S.C. acting through its branch at Gate Precinct Building 4, Dubai International Financial Centre, or any replacement bank approved by the Lender.

“Accounting Principles” means International Financial Reporting Standards as adopted and applied consistently by the Borrower in preparing its Original Financial Statements.

“Affiliate” means in relation to any person, a Subsidiary of that person or a Holding Company of that person or any other Subsidiary of that Holding Company.

“Anti-Corruption Laws” means all laws, rules and regulations of any jurisdiction applicable to the Borrower or any Obligor from time to time concerning or relating to bribery, corruption or money laundering, including UAE Federal Decree-Law No. 20 of 2018.

“Arrangement Fee” means the fee of AED 1,875,000 (one million eight hundred and seventy-five thousand UAE dirhams) payable by the Borrower to the Lender under Clause 11.2 (Arrangement fee).

“Authorisation” means an authorisation, consent, approval, resolution, licence, exemption, filing, notarisation, lodgement or registration.

“Availability Period” means the period from and including the date of this Agreement to and including the date falling nine (9) Months after the date of this Agreement.

“Available Commitment” means the Commitment minus the aggregate amount of the outstanding Loans and, in relation to any proposed Utilisation, the amount of any Loans that are due to be made on or before the proposed Utilisation Date.

“Break Costs” means the amount (if any) by which the interest which the Lender should have received for the period from the date of receipt of all or any part of a Loan to the last day of the current Interest Period exceeds the amount which the Lender would be able to obtain by placing an equal amount on deposit with a leading bank in the UAE interbank market.

“Business Day” means a day (other than a Saturday or Sunday) on which banks are open for general business in Dubai.

“Change of Control” means Mr. Khalid Rashed Al Noor (or his estate) ceasing to own, directly or indirectly, at least 51 per cent. of the issued share capital of the Guarantor.

“Commitment” means AED 250,000,000 (two hundred and fifty million UAE dirhams), to the extent not cancelled, reduced or transferred under this Agreement.

“Compliance Certificate” means a certificate substantially in the form set out in Schedule 6 (Form of Compliance Certificate).

“Default” means an Event of Default or any event or circumstance specified in Clause 23 (Events of Default) which would (with the expiry of a grace period, the giving of notice, the making of any determination under the Finance Documents or any combination of any of the foregoing) be an Event of Default.

“DIAC Rules” means the Arbitration Rules of the Dubai International Arbitration Centre in force at the date on which the request for arbitration is submitted.

“DIFC” means the Dubai International Financial Centre.

“EIBOR” means in relation to any Loan, the Emirates Interbank Offered Rate administered by the Central Bank of the UAE for dirhams for the relevant period, displayed on the relevant screen page at or about 11.00 a.m. Dubai time on the Quotation Day.

“Event of Default” means any event or circumstance specified as such in Clause 23 (Events of Default).

“Final Repayment Date” means the date falling sixty (60) Months after the first Utilisation Date.

“Finance Document” means this Agreement, the Guarantee, any Security Document, any Fee Letter, any Utilisation Request and any other document designated as such by the Lender and the Borrower.

“Financial Indebtedness” means any indebtedness for or in respect of moneys borrowed, any amount raised by acceptance under any acceptance credit facility, any amount raised under any note purchase facility or the issue of bonds, notes, debentures, loan stock or any similar instrument, and the amount of any liability in respect of any lease or hire purchase contract which would, in accordance with the Accounting Principles, be treated as a balance sheet liability.

“Group” means the Guarantor and each of its Subsidiaries for the time being.

“Guarantee” means the guarantee and indemnity granted by the Guarantor in favour of the Lender under Clause 18 (Guarantee and indemnity).

“Holding Company” means in relation to a person, any other person in respect of which it is a Subsidiary.

“Interest Period” means in relation to a Loan, each period determined in accordance with Clause 9 (Interest Periods).

“Leverage” means in respect of any Relevant Period, the ratio of Total Net Debt on the last day of that Relevant Period to EBITDA in respect of that Relevant Period.

“Loan” means a loan made or to be made under the Facility or the principal amount outstanding for the time being of that loan.

“Margin” means 2.75 per cent. per annum.

“Material Adverse Effect” means a material adverse effect on (a) the business, operations, property or financial condition of the Group taken as a whole; (b) the ability of an Obligor to perform its payment obligations under the Finance Documents; or (c) the validity or enforceability of any Finance Document.

“Month” means a period starting on one day in a calendar month and ending on the numerically corresponding day in the next calendar month.

“Obligor” means the Borrower or the Guarantor.

“Original Financial Statements” means the audited consolidated financial statements of the Group for the financial year ended 31 December 2025.

“Permitted Security” means any Security listed in Schedule 9 (Existing Security), any lien arising by operation of law in the ordinary course of trading, and any Security approved in writing by the Lender.

“Quotation Day” means in relation to any period for which an interest rate is to be determined, two (2) Business Days before the first day of that period.

“Relevant Period” means each period of twelve (12) Months ending on or about the last day of the financial year and each period of twelve (12) Months ending on or about the last day of each financial half-year.

“Repayment Date” means each of 31 March, 30 June, 30 September and 31 December in each year, the first falling after the first anniversary of the first Utilisation Date.

“Sanctions” means any economic or financial sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by the United Nations Security Council, the UAE, the United States of America, the European Union or the United Kingdom.

“Security” means a mortgage, charge, pledge, lien, assignment by way of security or other security interest securing any obligation of any person, or any other agreement or arrangement having a similar effect.

“Subsidiary” means an entity of which a person has direct or indirect control or owns directly or indirectly more than 50 per cent. of the voting capital or similar right of ownership.

“Tax” means any tax, levy, impost, duty or other charge or withholding of a similar nature, including value added tax and corporate tax under UAE Federal

Decree-Law No. 47 of 2022, and any penalty or interest payable in connection with any failure to pay or any delay in paying any of the same.

“Termination Date” means the Final Repayment Date.

“Total Net Debt” means at any time, the aggregate amount of all obligations of members of the Group for or in respect of Financial Indebtedness at that time, less the aggregate amount of cash and cash equivalent investments held by any member of the Group at that time.

“Utilisation” means a utilisation of the Facility.

“Utilisation Date” means the date of a Utilisation, being the date on which the relevant Loan is to be made.

“Utilisation Request” means a notice substantially in the form set out in Schedule 3 (Form of Utilisation Request).

- 1.2 Any notice, request or certificate delivered in connection with this Clause 1 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The rights of the Lender under this Clause 1 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 1.3 Any amount payable under this Clause 1 in connection with interpretation of the finance documents shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 1 where it is satisfied that the delay in relation to interpretation of the finance documents results from circumstances outside the control of the relevant Obligor.
- 1.4 In relation to interpretation of the finance documents, references in this Clause 1 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Lender may, acting reasonably, request such further information in connection with interpretation of the finance documents as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 1.5 If there is any inconsistency between this Clause 1 and any other provision of the Finance Documents relating to interpretation of the finance documents, this Clause 1 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. The Borrower acknowledges that the provisions of this Clause 1 relating to interpretation of the finance documents have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 1.6 Any amount which an Obligor is required to pay under this Clause 1 in relation to interpretation of the finance documents shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Lender shall act reasonably and in a timely manner in responding to

any request relating to interpretation of the finance documents made by an Obligor under this Clause 1.

- 1.7 For the purposes of this Clause 1, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Any determination required to be made by the Lender under this Clause 1 shall be made in good faith and, where expressed to be reasonable, by reference to the interpretation of the finance documents practice then prevailing among leading banks in the United Arab Emirates.
- 1.8 The Borrower shall procure that each member of the Group complies with this Clause 1 in relation to interpretation of the finance documents as if references to the Borrower were references to that member of the Group. Any period of grace in relation to interpretation of the finance documents shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 1.9 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to interpretation of the finance documents directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Any reference in this Clause 1 to a person taking a step in relation to interpretation of the finance documents includes that person procuring that the step is taken by another member of the Group.
- 1.10 The Borrower confirms that the information supplied to the Lender in relation to interpretation of the finance documents was, at the date it was supplied, true, complete and accurate in all material respects. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to interpretation of the finance documents requested by it under this Clause 1, save as otherwise expressly provided.
- 1.11 The parties acknowledge that the time periods set out in this Clause 1 in relation to interpretation of the finance documents are of the essence, save where this Agreement expressly provides otherwise. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to interpretation of the finance documents which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 1.12 The obligations of each Obligor under this Clause 1 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to interpretation of the finance documents. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 1 in relation to interpretation of the finance documents, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 1.13 For the avoidance of doubt, the provisions of this Clause 1 concerning interpretation of the finance documents apply equally to any Loan made before the

date on which the relevant provision first applies. If any Obligor is in doubt as to whether a proposed action relating to interpretation of the finance documents is permitted under this Clause 1, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.

- 1.14 Nothing in this Clause 1 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with interpretation of the finance documents. No waiver given by the Lender in relation to interpretation of the finance documents on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 1.15 The Lender shall be entitled to rely on any certificate delivered in connection with interpretation of the finance documents without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Each Obligor shall execute such further documents and do such further acts in relation to interpretation of the finance documents as the Lender may reasonably require to give full effect to this Clause 1.
- 1.16 In determining whether a matter relating to interpretation of the finance documents is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. A certificate of the Lender setting out any amount payable in connection with interpretation of the finance documents shall, in the absence of manifest error, be conclusive evidence of that amount.
- 1.17 Any step taken by the Lender in relation to interpretation of the finance documents in accordance with this Clause 1 shall be without prejudice to any other right or remedy available to it under the Finance Documents. Nothing in this Clause 1 shall oblige the Lender to take any action in relation to interpretation of the finance documents which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 1.18 Any calculation in connection with interpretation of the finance documents shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. If the Lender requests any document relating to interpretation of the finance documents in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 1.19 The Lender may delegate any of its rights or discretions under this Clause 1 in relation to interpretation of the finance documents to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Where any step relating to interpretation of the finance documents requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.

- 1.20 References in this Clause 1 to a document relating to interpretation of the finance documents being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The parties agree that, in the context of interpretation of the finance documents, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 1.21 Where this Clause 1 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Each of the obligations of the Obligors in this Clause 1 relating to interpretation of the finance documents shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 1.22 The parties agree that, in the context of interpretation of the finance documents, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Each Obligor shall execute such further documents and do such further acts in relation to interpretation of the finance documents as the Lender may reasonably require to give full effect to this Clause 1.
- 1.23 The obligations of each Obligor under this Clause 1 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to interpretation of the finance documents. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 1 in relation to interpretation of the finance documents, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 1.24 Any amount payable under this Clause 1 in connection with interpretation of the finance documents shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Nothing in this Clause 1 shall oblige the Lender to take any action in relation to interpretation of the finance documents which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 1.25 Any period of grace in relation to interpretation of the finance documents shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 1 where it is satisfied that the delay in relation to interpretation of the finance documents results from circumstances outside the control of the relevant Obligor.
- 1.26 The Borrower shall procure that each member of the Group complies with this Clause 1 in relation to interpretation of the finance documents as if references to the Borrower were references to that member of the Group. In relation to interpretation of the finance documents, references in this Clause 1 to the Group

shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.

- 1.27 No waiver given by the Lender in relation to interpretation of the finance documents on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. The Lender may, acting reasonably, request such further information in connection with interpretation of the finance documents as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 1.28 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to interpretation of the finance documents which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to interpretation of the finance documents requested by it under this Clause 1, save as otherwise expressly provided.
- 1.29 If any Obligor is in doubt as to whether a proposed action relating to interpretation of the finance documents is permitted under this Clause 1, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any notice, request or certificate delivered in connection with this Clause 1 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 1.30 A certificate of the Lender setting out any amount payable in connection with interpretation of the finance documents shall, in the absence of manifest error, be conclusive evidence of that amount. The parties acknowledge that the time periods set out in this Clause 1 in relation to interpretation of the finance documents are of the essence, save where this Agreement expressly provides otherwise.
- 1.31 The rights of the Lender under this Clause 1 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Lender may delegate any of its rights or discretions under this Clause 1 in relation to interpretation of the finance documents to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

2. THE FACILITY

- 2.1 Subject to the terms of this Agreement, the Lender makes available to the Borrower a dirham term loan facility in an aggregate amount equal to the Commitment.
- 2.2 The Facility is a single-tranche amortising facility and no amount repaid or prepaid may be re-borrowed.

- 2.3 The obligations of the Lender under the Finance Documents are several and the Lender is not responsible for the obligations of any other person.
- 2.4 Any amount which an Obligor is required to pay under this Clause 2 in relation to the facility shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Lender shall act reasonably and in a timely manner in responding to any request relating to the facility made by an Obligor under this Clause 2.
- 2.5 Nothing in this Clause 2 shall oblige the Lender to take any action in relation to the facility which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Lender may delegate any of its rights or discretions under this Clause 2 in relation to the facility to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 2.6 References in this Clause 2 to a document relating to the facility being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The Borrower confirms that the information supplied to the Lender in relation to the facility was, at the date it was supplied, true, complete and accurate in all material respects.
- 2.7 The Borrower shall procure that each member of the Group complies with this Clause 2 in relation to the facility as if references to the Borrower were references to that member of the Group. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to the facility directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 2.8 For the purposes of this Clause 2, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. A certificate of the Lender setting out any amount payable in connection with the facility shall, in the absence of manifest error, be conclusive evidence of that amount.
- 2.9 Each Obligor shall execute such further documents and do such further acts in relation to the facility as the Lender may reasonably require to give full effect to this Clause 2. Where this Clause 2 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 2.10 If the Lender requests any document relating to the facility in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Any amount payable under this Clause 2 in connection with the facility shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 2.11 If any Obligor is in doubt as to whether a proposed action relating to the facility is permitted under this Clause 2, it may request the confirmation of the

Lender, which shall not be unreasonably withheld or delayed. The Lender may, acting reasonably, request such further information in connection with the facility as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.

- 2.12 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to the facility which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The parties agree that, in the context of the facility, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 2.13 In determining whether a matter relating to the facility is substantial, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Each of the obligations of the Obligors in this Clause 2 relating to the facility shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 2.14 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 2 in relation to the facility, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower acknowledges that the provisions of this Clause 2 relating to the facility have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 2.15 In relation to the facility, references in this Clause 2 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The parties acknowledge that the time periods set out in this Clause 2 in relation to the facility are of the essence, save where this Agreement expressly provides otherwise.
- 2.16 Where any step relating to the facility requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 2 where it is satisfied that the delay in relation to the facility results from circumstances outside the control of the relevant Obligor.
- 2.17 No waiver given by the Lender in relation to the facility on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Any determination required to be made by the Lender under this Clause 2 shall be made in good faith and, where expressed to be reasonable, by reference to the the facility practice then prevailing among leading banks in the United Arab Emirates.
- 2.18 For the avoidance of doubt, the provisions of this Clause 2 concerning the facility apply equally to any Loan made before the date on which the relevant

provision first applies. The rights of the Lender under this Clause 2 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.

- 2.19 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to the facility requested by it under this Clause 2, save as otherwise expressly provided. Any calculation in connection with the facility shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 2.20 Any period of grace in relation to the facility shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The obligations of each Obligor under this Clause 2 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to the facility.
- 2.21 Any reference in this Clause 2 to a person taking a step in relation to the facility includes that person procuring that the step is taken by another member of the Group. If there is any inconsistency between this Clause 2 and any other provision of the Finance Documents relating to the facility, this Clause 2 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 2.22 Any step taken by the Lender in relation to the facility in accordance with this Clause 2 shall be without prejudice to any other right or remedy available to it under the Finance Documents. The Lender shall be entitled to rely on any certificate delivered in connection with the facility without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 2.23 Nothing in this Clause 2 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with the facility. Any notice, request or certificate delivered in connection with this Clause 2 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 2.24 Each Obligor shall execute such further documents and do such further acts in relation to the facility as the Lender may reasonably require to give full effect to this Clause 2. In determining whether a matter relating to the facility is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 2.25 The Borrower shall procure that each member of the Group complies with this Clause 2 in relation to the facility as if references to the Borrower were references to that member of the Group. The Lender shall act reasonably and in a timely manner in responding to any request relating to the facility made by an Obligor under this Clause 2.
- 2.26 Any notice, request or certificate delivered in connection with this Clause 2 shall be signed by an authorised signatory of the relevant party whose

specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 2 where it is satisfied that the delay in relation to the facility results from circumstances outside the control of the relevant Obligor.

- 2.27 In relation to the facility, references in this Clause 2 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Nothing in this Clause 2 shall oblige the Lender to take any action in relation to the facility which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

3. PURPOSE

- 3.1 The Borrower shall apply all amounts borrowed by it under the Facility towards (a) the refinancing of the existing working capital facility made available to the Borrower by Coastal Finance P.S.C., (b) the acquisition of warehousing equipment for its logistics site in Jebel Ali Free Zone, and (c) the general corporate purposes of the Group.
- 3.2 The Lender is not bound to monitor or verify the application of any amount borrowed pursuant to this Agreement.
- 3.3 Any amount which an Obligor is required to pay under this Clause 3 in relation to purpose shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. For the avoidance of doubt, the provisions of this Clause 3 concerning purpose apply equally to any Loan made before the date on which the relevant provision first applies.
- 3.4 The Borrower confirms that the information supplied to the Lender in relation to purpose was, at the date it was supplied, true, complete and accurate in all material respects. Where this Clause 3 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 3.5 If there is any inconsistency between this Clause 3 and any other provision of the Finance Documents relating to purpose, this Clause 3 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. References in this Clause 3 to a document relating to purpose being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 3.6 Where any step relating to purpose requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. A certificate of the Lender setting out any amount payable in connection with purpose shall, in the absence of manifest error, be conclusive evidence of that amount.

- 3.7 If any Obligor is in doubt as to whether a proposed action relating to purpose is permitted under this Clause 3, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any notice, request or certificate delivered in connection with this Clause 3 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 3.8 The parties acknowledge that the time periods set out in this Clause 3 in relation to purpose are of the essence, save where this Agreement expressly provides otherwise. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to purpose requested by it under this Clause 3, save as otherwise expressly provided.
- 3.9 Any amount payable under this Clause 3 in connection with purpose shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. In relation to purpose, references in this Clause 3 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 3.10 Nothing in this Clause 3 shall oblige the Lender to take any action in relation to purpose which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 3 in relation to purpose, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 3.11 The Borrower acknowledges that the provisions of this Clause 3 relating to purpose have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The Lender may, acting reasonably, request such further information in connection with purpose as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 3.12 The Lender shall act reasonably and in a timely manner in responding to any request relating to purpose made by an Obligor under this Clause 3. If the Lender requests any document relating to purpose in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 3.13 Any determination required to be made by the Lender under this Clause 3 shall be made in good faith and, where expressed to be reasonable, by reference to the purpose practice then prevailing among leading banks in the United Arab Emirates. Any step taken by the Lender in relation to purpose in accordance with this Clause 3 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 3.14 Any period of grace in relation to purpose shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant

Obligor becomes aware of the relevant matter. Nothing in this Clause 3 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with purpose.

- 3.15 The rights of the Lender under this Clause 3 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The parties agree that, in the context of purpose, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 3.16 The obligations of each Obligor under this Clause 3 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to purpose. For the purposes of this Clause 3, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 3.17 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 3 where it is satisfied that the delay in relation to purpose results from circumstances outside the control of the relevant Obligor. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to purpose directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 3.18 Any reference in this Clause 3 to a person taking a step in relation to purpose includes that person procuring that the step is taken by another member of the Group. In determining whether a matter relating to purpose is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 3.19 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to purpose which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Lender shall be entitled to rely on any certificate delivered in connection with purpose without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 3.20 Any calculation in connection with purpose shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Lender may delegate any of its rights or discretions under this Clause 3 in relation to purpose to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 3.21 No waiver given by the Lender in relation to purpose on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. The Borrower shall procure that each member of the Group complies with this Clause 3 in relation to purpose as if references to the Borrower were

references to that member of the Group.

- 3.22 Each Obligor shall execute such further documents and do such further acts in relation to purpose as the Lender may reasonably require to give full effect to this Clause 3. Each of the obligations of the Obligors in this Clause 3 relating to purpose shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 3.23 The Lender shall act reasonably and in a timely manner in responding to any request relating to purpose made by an Obligor under this Clause 3. Nothing in this Clause 3 shall oblige the Lender to take any action in relation to purpose which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 3.24 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 3 where it is satisfied that the delay in relation to purpose results from circumstances outside the control of the relevant Obligor. Where any step relating to purpose requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 3.25 Any notice, request or certificate delivered in connection with this Clause 3 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to purpose requested by it under this Clause 3, save as otherwise expressly provided.
- 3.26 Any determination required to be made by the Lender under this Clause 3 shall be made in good faith and, where expressed to be reasonable, by reference to the purpose practice then prevailing among leading banks in the United Arab Emirates. The Borrower acknowledges that the provisions of this Clause 3 relating to purpose have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

4. CONDITIONS OF UTILISATION

- 4.1 The Borrower may not deliver a Utilisation Request unless the Lender has received all of the documents and other evidence listed in Schedule 2 (Conditions Precedent) in form and substance satisfactory to the Lender.
- 4.2 The Lender will only be obliged to comply with Clause 5.4 (Lender's participation) if on the date of the Utilisation Request and on the proposed Utilisation Date no Default is continuing or would result from the proposed Loan, and the Repeating Representations are true in all material respects.
- 4.3 The Borrower may not deliver more than six (6) Utilisation Requests during the Availability Period.
- 4.4 Any reference in this Clause 4 to a person taking a step in relation to conditions of utilisation includes that person procuring that the step is taken by another

member of the Group. The Borrower shall procure that each member of the Group complies with this Clause 4 in relation to conditions of utilisation as if references to the Borrower were references to that member of the Group.

- 4.5 For the purposes of this Clause 4, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. If any Obligor is in doubt as to whether a proposed action relating to conditions of utilisation is permitted under this Clause 4, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 4.6 Any period of grace in relation to conditions of utilisation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. If there is any inconsistency between this Clause 4 and any other provision of the Finance Documents relating to conditions of utilisation, this Clause 4 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 4.7 The Lender may, acting reasonably, request such further information in connection with conditions of utilisation as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to conditions of utilisation directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 4.8 Any notice, request or certificate delivered in connection with this Clause 4 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). In determining whether a matter relating to conditions of utilisation is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 4.9 Where this Clause 4 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Each Obligor shall execute such further documents and do such further acts in relation to conditions of utilisation as the Lender may reasonably require to give full effect to this Clause 4.
- 4.10 Any amount payable under this Clause 4 in connection with conditions of utilisation shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Nothing in this Clause 4 shall oblige the Lender to take any action in relation to conditions of utilisation which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

- 4.11 The Lender shall act reasonably and in a timely manner in responding to any request relating to conditions of utilisation made by an Obligor under this Clause 4. Each of the obligations of the Obligors in this Clause 4 relating to conditions of utilisation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 4.12 References in this Clause 4 to a document relating to conditions of utilisation being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Nothing in this Clause 4 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with conditions of utilisation.
- 4.13 The parties agree that, in the context of conditions of utilisation, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The obligations of each Obligor under this Clause 4 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to conditions of utilisation.
- 4.14 Where any step relating to conditions of utilisation requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Any step taken by the Lender in relation to conditions of utilisation in accordance with this Clause 4 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 4.15 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 4 where it is satisfied that the delay in relation to conditions of utilisation results from circumstances outside the control of the relevant Obligor. If the Lender requests any document relating to conditions of utilisation in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 4.16 The rights of the Lender under this Clause 4 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any amount which an Obligor is required to pay under this Clause 4 in relation to conditions of utilisation shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 4.17 A certificate of the Lender setting out any amount payable in connection with conditions of utilisation shall, in the absence of manifest error, be conclusive evidence of that amount. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to conditions of utilisation which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.

- 4.18 For the avoidance of doubt, the provisions of this Clause 4 concerning conditions of utilisation apply equally to any Loan made before the date on which the relevant provision first applies. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to conditions of utilisation requested by it under this Clause 4, save as otherwise expressly provided.
- 4.19 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 4 in relation to conditions of utilisation, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower acknowledges that the provisions of this Clause 4 relating to conditions of utilisation have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 4.20 Any determination required to be made by the Lender under this Clause 4 shall be made in good faith and, where expressed to be reasonable, by reference to the conditions of utilisation practice then prevailing among leading banks in the United Arab Emirates. The Lender shall be entitled to rely on any certificate delivered in connection with conditions of utilisation without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 4.21 The parties acknowledge that the time periods set out in this Clause 4 in relation to conditions of utilisation are of the essence, save where this Agreement expressly provides otherwise. In relation to conditions of utilisation, references in this Clause 4 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 4.22 The Borrower confirms that the information supplied to the Lender in relation to conditions of utilisation was, at the date it was supplied, true, complete and accurate in all material respects. No waiver given by the Lender in relation to conditions of utilisation on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 4.23 Any calculation in connection with conditions of utilisation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Lender may delegate any of its rights or discretions under this Clause 4 in relation to conditions of utilisation to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 4.24 Any calculation in connection with conditions of utilisation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. For the avoidance of doubt, the provisions of this Clause 4 concerning conditions of utilisation apply equally to any Loan made before the date on which the relevant provision first applies.

- 4.25 The rights of the Lender under this Clause 4 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any period of grace in relation to conditions of utilisation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 4.26 A certificate of the Lender setting out any amount payable in connection with conditions of utilisation shall, in the absence of manifest error, be conclusive evidence of that amount. The Lender shall act reasonably and in a timely manner in responding to any request relating to conditions of utilisation made by an Obligor under this Clause 4.
- 4.27 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 4 where it is satisfied that the delay in relation to conditions of utilisation results from circumstances outside the control of the relevant Obligor. Any amount payable under this Clause 4 in connection with conditions of utilisation shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.

5. UTILISATION

- 5.1 The Borrower may utilise the Facility by delivery to the Lender of a duly completed Utilisation Request not later than 11.00 a.m. Dubai time three (3) Business Days before the proposed Utilisation Date.
- 5.2 Each Utilisation Request is irrevocable and will not be regarded as having been duly completed unless the proposed Utilisation Date is a Business Day within the Availability Period and the amount of the proposed Loan is a minimum of AED 10,000,000 or, if less, the Available Commitment.
- 5.3 The currency specified in a Utilisation Request must be UAE dirhams.
- 5.4 If the conditions set out in this Agreement have been met, the Lender shall make each Loan available by the Utilisation Date through its Facility Office (Lender's participation).
- 5.5 The Commitment which, at that time, is unutilised shall be immediately cancelled at the end of the Availability Period.
- 5.6 Any amount which an Obligor is required to pay under this Clause 5 in relation to utilisation shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Lender shall act reasonably and in a timely manner in responding to any request relating to utilisation made by an Obligor under this Clause 5.
- 5.7 Any step taken by the Lender in relation to utilisation in accordance with this Clause 5 shall be without prejudice to any other right or remedy available to it under the Finance Documents. Any notice, request or certificate delivered in connection with this Clause 5 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the

Lender under Schedule 2 (Conditions Precedent).

- 5.8 The Lender may delegate any of its rights or discretions under this Clause 5 in relation to utilisation to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. No waiver given by the Lender in relation to utilisation on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 5.9 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to utilisation directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Any determination required to be made by the Lender under this Clause 5 shall be made in good faith and, where expressed to be reasonable, by reference to the utilisation practice then prevailing among leading banks in the United Arab Emirates.
- 5.10 Any period of grace in relation to utilisation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. For the purposes of this Clause 5, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 5.11 The Borrower shall procure that each member of the Group complies with this Clause 5 in relation to utilisation as if references to the Borrower were references to that member of the Group. Where any step relating to utilisation requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 5.12 Any amount payable under this Clause 5 in connection with utilisation shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. A certificate of the Lender setting out any amount payable in connection with utilisation shall, in the absence of manifest error, be conclusive evidence of that amount.
- 5.13 Each Obligor shall execute such further documents and do such further acts in relation to utilisation as the Lender may reasonably require to give full effect to this Clause 5. In determining whether a matter relating to utilisation is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 5.14 If any Obligor is in doubt as to whether a proposed action relating to utilisation is permitted under this Clause 5, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. For the avoidance of doubt, the provisions of this Clause 5 concerning utilisation apply equally to any Loan made before the date on which the relevant provision first applies.
- 5.15 If there is any inconsistency between this Clause 5 and any other provision of the Finance Documents relating to utilisation, this Clause 5 shall prevail to the extent of that inconsistency, save where the other provision expressly states

otherwise. Any calculation in connection with utilisation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.

- 5.16 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 5 in relation to utilisation, including any fee payable to the Dubai Land Department or the relevant free zone authority. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to utilisation requested by it under this Clause 5, save as otherwise expressly provided.
- 5.17 The parties agree that, in the context of utilisation, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The parties acknowledge that the time periods set out in this Clause 5 in relation to utilisation are of the essence, save where this Agreement expressly provides otherwise.
- 5.18 Where this Clause 5 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to utilisation which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 5.19 Nothing in this Clause 5 shall oblige the Lender to take any action in relation to utilisation which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Lender may, acting reasonably, request such further information in connection with utilisation as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 5.20 Any reference in this Clause 5 to a person taking a step in relation to utilisation includes that person procuring that the step is taken by another member of the Group. The Borrower confirms that the information supplied to the Lender in relation to utilisation was, at the date it was supplied, true, complete and accurate in all material respects.
- 5.21 The obligations of each Obligor under this Clause 5 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to utilisation. The Borrower acknowledges that the provisions of this Clause 5 relating to utilisation have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 5.22 Each of the obligations of the Obligors in this Clause 5 relating to utilisation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Nothing in this Clause 5 shall be construed as an obligation on the Lender to provide any further financial ac-

commodation in connection with utilisation.

- 5.23 The Lender shall be entitled to rely on any certificate delivered in connection with utilisation without further enquiry, unless it has actual knowledge that the certificate is inaccurate. In relation to utilisation, references in this Clause 5 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 5.24 The rights of the Lender under this Clause 5 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. If the Lender requests any document relating to utilisation in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 5.25 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 5 where it is satisfied that the delay in relation to utilisation results from circumstances outside the control of the relevant Obligor. References in this Clause 5 to a document relating to utilisation being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 5.26 The Borrower acknowledges that the provisions of this Clause 5 relating to utilisation have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 5 where it is satisfied that the delay in relation to utilisation results from circumstances outside the control of the relevant Obligor.
- 5.27 Any reference in this Clause 5 to a person taking a step in relation to utilisation includes that person procuring that the step is taken by another member of the Group. In relation to utilisation, references in this Clause 5 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 5.28 No waiver given by the Lender in relation to utilisation on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Each of the obligations of the Obligors in this Clause 5 relating to utilisation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 5.29 The rights of the Lender under this Clause 5 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any determination required to be made by the Lender under this Clause 5 shall be made in good faith and, where expressed to be reasonable, by reference to the utilisation practice then

prevailing among leading banks in the United Arab Emirates.

6. REPAYMENT

- 6.1 The Borrower shall repay the Loans in twenty (20) equal consecutive quarterly instalments on each Repayment Date, the amount of each instalment being as set out in Schedule 8 (Repayment Schedule).
- 6.2 The Borrower shall repay all outstanding Loans, together with accrued interest and all other amounts accrued under the Finance Documents, in full on the Final Repayment Date.
- 6.3 The Borrower may not re-borrow any part of the Facility which is repaid.
- 6.4 In determining whether a matter relating to repayment is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any step taken by the Lender in relation to repayment in accordance with this Clause 6 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 6.5 Any amount which an Obligor is required to pay under this Clause 6 in relation to repayment shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. If any Obligor is in doubt as to whether a proposed action relating to repayment is permitted under this Clause 6, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 6.6 Any period of grace in relation to repayment shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The parties agree that, in the context of repayment, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 6.7 If the Lender requests any document relating to repayment in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. References in this Clause 6 to a document relating to repayment being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 6.8 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to repayment directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. The Lender may delegate any of its rights or discretions under this Clause 6 in relation to repayment to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 6.9 Any notice, request or certificate delivered in connection with this Clause 6 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under

Schedule 2 (Conditions Precedent). For the avoidance of doubt, the provisions of this Clause 6 concerning repayment apply equally to any Loan made before the date on which the relevant provision first applies.

- 6.10 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to repayment which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Lender may, acting reasonably, request such further information in connection with repayment as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 6.11 The Borrower shall procure that each member of the Group complies with this Clause 6 in relation to repayment as if references to the Borrower were references to that member of the Group. Where any step relating to repayment requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 6.12 The parties acknowledge that the time periods set out in this Clause 6 in relation to repayment are of the essence, save where this Agreement expressly provides otherwise. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 6 where it is satisfied that the delay in relation to repayment results from circumstances outside the control of the relevant Obligor.
- 6.13 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to repayment requested by it under this Clause 6, save as otherwise expressly provided. The Borrower confirms that the information supplied to the Lender in relation to repayment was, at the date it was supplied, true, complete and accurate in all material respects.
- 6.14 The Lender shall act reasonably and in a timely manner in responding to any request relating to repayment made by an Obligor under this Clause 6. In relation to repayment, references in this Clause 6 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 6.15 Any determination required to be made by the Lender under this Clause 6 shall be made in good faith and, where expressed to be reasonable, by reference to the repayment practice then prevailing among leading banks in the United Arab Emirates. Each of the obligations of the Obligors in this Clause 6 relating to repayment shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 6.16 A certificate of the Lender setting out any amount payable in connection with repayment shall, in the absence of manifest error, be conclusive evidence of that amount. Nothing in this Clause 6 shall oblige the Lender to take any action in relation to repayment which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

- 6.17 The Borrower acknowledges that the provisions of this Clause 6 relating to repayment have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 6 in relation to repayment, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 6.18 Any reference in this Clause 6 to a person taking a step in relation to repayment includes that person procuring that the step is taken by another member of the Group. The rights of the Lender under this Clause 6 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 6.19 Any amount payable under this Clause 6 in connection with repayment shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Each Obligor shall execute such further documents and do such further acts in relation to repayment as the Lender may reasonably require to give full effect to this Clause 6.
- 6.20 Where this Clause 6 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The obligations of each Obligor under this Clause 6 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to repayment.
- 6.21 No waiver given by the Lender in relation to repayment on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Nothing in this Clause 6 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with repayment.
- 6.22 The Lender shall be entitled to rely on any certificate delivered in connection with repayment without further enquiry, unless it has actual knowledge that the certificate is inaccurate. For the purposes of this Clause 6, any reference to a matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 6.23 If there is any inconsistency between this Clause 6 and any other provision of the Finance Documents relating to repayment, this Clause 6 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Any calculation in connection with repayment shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 6.24 The Lender may delegate any of its rights or discretions under this Clause 6 in relation to repayment to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. A certificate of the

Lender setting out any amount payable in connection with repayment shall, in the absence of manifest error, be conclusive evidence of that amount.

- 6.25 Where any step relating to repayment requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The parties agree that, in the context of repayment, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 6.26 The Borrower confirms that the information supplied to the Lender in relation to repayment was, at the date it was supplied, true, complete and accurate in all material respects. The Lender may, acting reasonably, request such further information in connection with repayment as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 6.27 The rights of the Lender under this Clause 6 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to repayment requested by it under this Clause 6, save as otherwise expressly provided.

7. ILLEGALITY, PREPAYMENT AND CANCELLATION

- 7.1 If it becomes unlawful in any applicable jurisdiction for the Lender to perform any of its obligations as contemplated by this Agreement or to fund or maintain any Loan, the Lender shall promptly notify the Borrower, the Available Commitment will be immediately cancelled and the Borrower shall repay the Loans on the last day of the Interest Period for each Loan occurring after the Lender has notified the Borrower.
- 7.2 If a Change of Control occurs, the Borrower shall promptly notify the Lender upon becoming aware of that event, and the Lender may, by not less than ten (10) Business Days' notice to the Borrower, cancel the Facility and declare all outstanding Loans immediately due and payable.
- 7.3 The Borrower may, if it gives the Lender not less than fifteen (15) Business Days' prior notice, prepay the whole or any part of any Loan (but, if in part, by a minimum amount of AED 5,000,000).
- 7.4 Any voluntary prepayment made before the second anniversary of the first Utilisation Date shall be subject to a prepayment fee of 1.00 per cent. of the amount prepaid; no prepayment fee is payable for prepayments made on or after that date.
- 7.5 Any prepayment under this Agreement shall be made together with accrued interest on the amount prepaid and, subject to any Break Costs, without premium or penalty except as stated above.
- 7.6 Any notice, request or certificate delivered in connection with this Clause 7 shall be signed by an authorised signatory of the relevant party whose

specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). References in this Clause 7 to a document relating to illegality, prepayment and cancellation being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.

- 7.7 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 7 in relation to illegality, prepayment and cancellation, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower confirms that the information supplied to the Lender in relation to illegality, prepayment and cancellation was, at the date it was supplied, true, complete and accurate in all material respects.
- 7.8 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to illegality, prepayment and cancellation directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Each Obligor shall execute such further documents and do such further acts in relation to illegality, prepayment and cancellation as the Lender may reasonably require to give full effect to this Clause 7.
- 7.9 The parties agree that, in the context of illegality, prepayment and cancellation, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Any period of grace in relation to illegality, prepayment and cancellation shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 7.10 The Borrower shall procure that each member of the Group complies with this Clause 7 in relation to illegality, prepayment and cancellation as if references to the Borrower were references to that member of the Group. If the Lender requests any document relating to illegality, prepayment and cancellation in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 7.11 Each of the obligations of the Obligors in this Clause 7 relating to illegality, prepayment and cancellation shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Where this Clause 7 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 7.12 The Lender shall be entitled to rely on any certificate delivered in connection with illegality, prepayment and cancellation without further enquiry, unless it has actual knowledge that the certificate is inaccurate. For the purposes of this Clause 7, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not

with the benefit of hindsight.

- 7.13 The Lender shall act reasonably and in a timely manner in responding to any request relating to illegality, prepayment and cancellation made by an Obligor under this Clause 7. Any amount which an Obligor is required to pay under this Clause 7 in relation to illegality, prepayment and cancellation shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 7.14 A certificate of the Lender setting out any amount payable in connection with illegality, prepayment and cancellation shall, in the absence of manifest error, be conclusive evidence of that amount. No waiver given by the Lender in relation to illegality, prepayment and cancellation on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 7.15 The obligations of each Obligor under this Clause 7 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to illegality, prepayment and cancellation. If there is any inconsistency between this Clause 7 and any other provision of the Finance Documents relating to illegality, prepayment and cancellation, this Clause 7 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 7.16 Any determination required to be made by the Lender under this Clause 7 shall be made in good faith and, where expressed to be reasonable, by reference to the illegality, prepayment and cancellation practice then prevailing among leading banks in the United Arab Emirates. The Lender may delegate any of its rights or discretions under this Clause 7 in relation to illegality, prepayment and cancellation to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 7.17 Any step taken by the Lender in relation to illegality, prepayment and cancellation in accordance with this Clause 7 shall be without prejudice to any other right or remedy available to it under the Finance Documents. In determining whether a matter relating to illegality, prepayment and cancellation is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 7.18 Where any step relating to illegality, prepayment and cancellation requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to illegality, prepayment and cancellation requested by it under this Clause 7, save as otherwise expressly provided.
- 7.19 The parties acknowledge that the time periods set out in this Clause 7 in relation to illegality, prepayment and cancellation are of the essence, save

where this Agreement expressly provides otherwise. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 7 where it is satisfied that the delay in relation to illegality, prepayment and cancellation results from circumstances outside the control of the relevant Obligor.

- 7.20 The rights of the Lender under this Clause 7 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Nothing in this Clause 7 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with illegality, prepayment and cancellation.
- 7.21 For the avoidance of doubt, the provisions of this Clause 7 concerning illegality, prepayment and cancellation apply equally to any Loan made before the date on which the relevant provision first applies. The Borrower acknowledges that the provisions of this Clause 7 relating to illegality, prepayment and cancellation have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 7.22 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to illegality, prepayment and cancellation which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Lender may, acting reasonably, request such further information in connection with illegality, prepayment and cancellation as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 7.23 Any reference in this Clause 7 to a person taking a step in relation to illegality, prepayment and cancellation includes that person procuring that the step is taken by another member of the Group. In relation to illegality, prepayment and cancellation, references in this Clause 7 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 7.24 Any amount payable under this Clause 7 in connection with illegality, prepayment and cancellation shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Nothing in this Clause 7 shall oblige the Lender to take any action in relation to illegality, prepayment and cancellation which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 7.25 Any calculation in connection with illegality, prepayment and cancellation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. If any Obligor is in doubt as to whether a proposed action relating to illegality, prepayment and cancellation is permitted under this Clause 7, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.

- 7.26 The Lender may delegate any of its rights or discretions under this Clause 7 in relation to illegality, prepayment and cancellation to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. A certificate of the Lender setting out any amount payable in connection with illegality, prepayment and cancellation shall, in the absence of manifest error, be conclusive evidence of that amount.
- 7.27 The rights of the Lender under this Clause 7 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The parties acknowledge that the time periods set out in this Clause 7 in relation to illegality, prepayment and cancellation are of the essence, save where this Agreement expressly provides otherwise.
- 7.28 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to illegality, prepayment and cancellation which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Any calculation in connection with illegality, prepayment and cancellation shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 7.29 References in this Clause 7 to a document relating to illegality, prepayment and cancellation being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 7 in relation to illegality, prepayment and cancellation, including any fee payable to the Dubai Land Department or the relevant free zone authority.

8. INTEREST

- 8.1 The rate of interest on each Loan for each Interest Period is the percentage rate per annum which is the aggregate of the applicable Margin and EIBOR.
- 8.2 If EIBOR is less than zero, EIBOR shall be deemed to be zero.
- 8.3 The Borrower shall pay accrued interest on each Loan on the last day of each Interest Period.
- 8.4 If an Obligor fails to pay any amount payable by it under a Finance Document on its due date, interest shall accrue on the overdue amount from the due date up to the date of actual payment at a rate which is 2.00 per cent. per annum higher than the rate which would have been payable if the overdue amount had constituted a Loan in the currency of the overdue amount for successive Interest Periods (default interest).
- 8.5 The Lender shall promptly notify the Borrower of the determination of a rate of interest under this Agreement.
- 8.6 The obligations of each Obligor under this Clause 8 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce,

release or prejudice any of its obligations in relation to interest. The Borrower confirms that the information supplied to the Lender in relation to interest was, at the date it was supplied, true, complete and accurate in all material respects.

- 8.7 Any amount payable under this Clause 8 in connection with interest shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Any reference in this Clause 8 to a person taking a step in relation to interest includes that person procuring that the step is taken by another member of the Group.
- 8.8 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to interest directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. In relation to interest, references in this Clause 8 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 8.9 Any notice, request or certificate delivered in connection with this Clause 8 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). No waiver given by the Lender in relation to interest on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 8.10 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to interest which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Where this Clause 8 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 8.11 Each Obligor shall execute such further documents and do such further acts in relation to interest as the Lender may reasonably require to give full effect to this Clause 8. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to interest requested by it under this Clause 8, save as otherwise expressly provided.
- 8.12 The Lender may delegate any of its rights or discretions under this Clause 8 in relation to interest to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Any period of grace in relation to interest shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 8.13 The Borrower acknowledges that the provisions of this Clause 8 relating to interest have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. If there is any inconsistency

between this Clause 8 and any other provision of the Finance Documents relating to interest, this Clause 8 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.

- 8.14 Any amount which an Obligor is required to pay under this Clause 8 in relation to interest shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 8 where it is satisfied that the delay in relation to interest results from circumstances outside the control of the relevant Obligor.
- 8.15 The Lender may, acting reasonably, request such further information in connection with interest as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. The Lender shall be entitled to rely on any certificate delivered in connection with interest without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 8.16 If any Obligor is in doubt as to whether a proposed action relating to interest is permitted under this Clause 8, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Each of the obligations of the Obligors in this Clause 8 relating to interest shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 8.17 If the Lender requests any document relating to interest in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. The Lender shall act reasonably and in a timely manner in responding to any request relating to interest made by an Obligor under this Clause 8.
- 8.18 The parties acknowledge that the time periods set out in this Clause 8 in relation to interest are of the essence, save where this Agreement expressly provides otherwise. In determining whether a matter relating to interest is adverse, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 8.19 Where any step relating to interest requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Any determination required to be made by the Lender under this Clause 8 shall be made in good faith and, where expressed to be reasonable, by reference to the interest practice then prevailing among leading banks in the United Arab Emirates.
- 8.20 Nothing in this Clause 8 shall oblige the Lender to take any action in relation to interest which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. For the purposes of this Clause 8, any reference to a matter being reasonable shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.

- 8.21 A certificate of the Lender setting out any amount payable in connection with interest shall, in the absence of manifest error, be conclusive evidence of that amount. Any step taken by the Lender in relation to interest in accordance with this Clause 8 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 8.22 Any calculation in connection with interest shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The parties agree that, in the context of interest, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 8.23 References in this Clause 8 to a document relating to interest being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The Borrower shall procure that each member of the Group complies with this Clause 8 in relation to interest as if references to the Borrower were references to that member of the Group.
- 8.24 For the avoidance of doubt, the provisions of this Clause 8 concerning interest apply equally to any Loan made before the date on which the relevant provision first applies. Nothing in this Clause 8 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with interest.
- 8.25 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 8 in relation to interest, including any fee payable to the Dubai Land Department or the relevant free zone authority. The rights of the Lender under this Clause 8 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 8.26 The Lender shall act reasonably and in a timely manner in responding to any request relating to interest made by an Obligor under this Clause 8. In relation to interest, references in this Clause 8 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 8.27 The Borrower shall procure that each member of the Group complies with this Clause 8 in relation to interest as if references to the Borrower were references to that member of the Group. The Lender may delegate any of its rights or discretions under this Clause 8 in relation to interest to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 8.28 In determining whether a matter relating to interest is substantial, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. If any Obligor is in doubt as to whether a proposed action relating to interest is permitted under this Clause 8, it may request the confirmation of the Lender, which shall not be unreasonably

withheld or delayed.

- 8.29 Any reference in this Clause 8 to a person taking a step in relation to interest includes that person procuring that the step is taken by another member of the Group. Any amount which an Obligor is required to pay under this Clause 8 in relation to interest shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.

9. INTEREST PERIODS

- 9.1 Each Interest Period for a Loan shall be three (3) Months or any other period agreed between the Borrower and the Lender.
- 9.2 An Interest Period for a Loan shall not extend beyond the Final Repayment Date.
- 9.3 If an Interest Period would otherwise end on a day which is not a Business Day, that Interest Period will instead end on the next Business Day in that calendar month (if there is one) or the preceding Business Day (if there is not).
- 9.4 Any amount which an Obligor is required to pay under this Clause 9 in relation to interest periods shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Any notice, request or certificate delivered in connection with this Clause 9 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 9.5 Nothing in this Clause 9 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with interest periods. In relation to interest periods, references in this Clause 9 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 9.6 Each of the obligations of the Obligors in this Clause 9 relating to interest periods shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Any amount payable under this Clause 9 in connection with interest periods shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 9.7 If any Obligor is in doubt as to whether a proposed action relating to interest periods is permitted under this Clause 9, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Nothing in this Clause 9 shall oblige the Lender to take any action in relation to interest periods which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 9.8 Where this Clause 9 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator

licensed by the UAE Ministry of Justice. The Borrower acknowledges that the provisions of this Clause 9 relating to interest periods have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

- 9.9 Where any step relating to interest periods requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The Borrower shall procure that each member of the Group complies with this Clause 9 in relation to interest periods as if references to the Borrower were references to that member of the Group.
- 9.10 Any reference in this Clause 9 to a person taking a step in relation to interest periods includes that person procuring that the step is taken by another member of the Group. Each Obligor shall execute such further documents and do such further acts in relation to interest periods as the Lender may reasonably require to give full effect to this Clause 9.
- 9.11 The Lender shall be entitled to rely on any certificate delivered in connection with interest periods without further enquiry, unless it has actual knowledge that the certificate is inaccurate. In determining whether a matter relating to interest periods is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 9.12 References in this Clause 9 to a document relating to interest periods being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The parties acknowledge that the time periods set out in this Clause 9 in relation to interest periods are of the essence, save where this Agreement expressly provides otherwise.
- 9.13 For the avoidance of doubt, the provisions of this Clause 9 concerning interest periods apply equally to any Loan made before the date on which the relevant provision first applies. The Lender may delegate any of its rights or discretions under this Clause 9 in relation to interest periods to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 9.14 No waiver given by the Lender in relation to interest periods on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. The Lender may, acting reasonably, request such further information in connection with interest periods as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 9.15 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to interest periods directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Without prejudice to the generality of the foregoing, the

Lender may agree in writing to extend any period for compliance under this Clause 9 where it is satisfied that the delay in relation to interest periods results from circumstances outside the control of the relevant Obligor.

- 9.16 A certificate of the Lender setting out any amount payable in connection with interest periods shall, in the absence of manifest error, be conclusive evidence of that amount. The rights of the Lender under this Clause 9 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 9.17 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to interest periods which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. For the purposes of this Clause 9, any reference to a matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 9.18 If there is any inconsistency between this Clause 9 and any other provision of the Finance Documents relating to interest periods, this Clause 9 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. If the Lender requests any document relating to interest periods in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 9.19 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 9 in relation to interest periods, including any fee payable to the Dubai Land Department or the relevant free zone authority. Any step taken by the Lender in relation to interest periods in accordance with this Clause 9 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 9.20 Any period of grace in relation to interest periods shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Lender shall act reasonably and in a timely manner in responding to any request relating to interest periods made by an Obligor under this Clause 9.
- 9.21 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to interest periods requested by it under this Clause 9, save as otherwise expressly provided. The Borrower confirms that the information supplied to the Lender in relation to interest periods was, at the date it was supplied, true, complete and accurate in all material respects.
- 9.22 Any calculation in connection with interest periods shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Any determination required to be made by the Lender under this Clause 9 shall be made in good faith and, where expressed to be reasonable, by reference to the interest periods practice then prevailing among leading banks in the United Arab Emirates.

- 9.23 The parties agree that, in the context of interest periods, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The obligations of each Obligor under this Clause 9 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to interest periods.
- 9.24 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to interest periods directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to interest periods which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 9.25 Any notice, request or certificate delivered in connection with this Clause 9 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Where any step relating to interest periods requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 9.26 Any step taken by the Lender in relation to interest periods in accordance with this Clause 9 shall be without prejudice to any other right or remedy available to it under the Finance Documents. For the purposes of this Clause 9, any reference to a matter being adverse shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 9.27 The Borrower confirms that the information supplied to the Lender in relation to interest periods was, at the date it was supplied, true, complete and accurate in all material respects. For the avoidance of doubt, the provisions of this Clause 9 concerning interest periods apply equally to any Loan made before the date on which the relevant provision first applies.

10. CHANGES TO THE CALCULATION OF INTEREST

- 10.1 If EIBOR is not available for the relevant Interest Period, the rate of interest for that Interest Period shall be the rate notified to the Borrower by the Lender as soon as practicable as being its cost of funding the relevant Loan from whatever source it may reasonably select.
- 10.2 If a market disruption event occurs and the Lender or the Borrower so requires, the Lender and the Borrower shall enter into negotiations for a period of not more than thirty (30) days with a view to agreeing a substitute basis for determining the rate of interest.
- 10.3 The Borrower shall, within three (3) Business Days of a demand by the Lender, pay to the Lender its Break Costs attributable to all or any part of a Loan being paid by the Borrower on a day other than the last day of an Interest Period for

that Loan.

- 10.4 Any amount payable under this Clause 10 in connection with changes to the calculation of interest shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. For the avoidance of doubt, the provisions of this Clause 10 concerning changes to the calculation of interest apply equally to any Loan made before the date on which the relevant provision first applies.
- 10.5 If the Lender requests any document relating to changes to the calculation of interest in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to changes to the calculation of interest requested by it under this Clause 10, save as otherwise expressly provided.
- 10.6 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 10 where it is satisfied that the delay in relation to changes to the calculation of interest results from circumstances outside the control of the relevant Obligor. The Borrower confirms that the information supplied to the Lender in relation to changes to the calculation of interest was, at the date it was supplied, true, complete and accurate in all material respects.
- 10.7 Each of the obligations of the Obligors in this Clause 10 relating to changes to the calculation of interest shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. The Lender may delegate any of its rights or discretions under this Clause 10 in relation to changes to the calculation of interest to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 10.8 No waiver given by the Lender in relation to changes to the calculation of interest on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Nothing in this Clause 10 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with changes to the calculation of interest.
- 10.9 Any reference in this Clause 10 to a person taking a step in relation to changes to the calculation of interest includes that person procuring that the step is taken by another member of the Group. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to changes to the calculation of interest directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 10.10 Each Obligor shall execute such further documents and do such further acts in relation to changes to the calculation of interest as the Lender may reasonably require to give full effect to this Clause 10. Nothing in this Clause 10 shall oblige the Lender to take any action in relation to changes to the calculation of interest which would, in its reasonable opinion, be contrary to

any applicable law, regulation or directive of the Central Bank of the UAE.

- 10.11 Any determination required to be made by the Lender under this Clause 10 shall be made in good faith and, where expressed to be reasonable, by reference to the changes to the calculation of interest practice then prevailing among leading banks in the United Arab Emirates. The Lender may, acting reasonably, request such further information in connection with changes to the calculation of interest as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 10.12 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 10 in relation to changes to the calculation of interest, including any fee payable to the Dubai Land Department or the relevant free zone authority. The parties agree that, in the context of changes to the calculation of interest, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 10.13 In determining whether a matter relating to changes to the calculation of interest is material, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any step taken by the Lender in relation to changes to the calculation of interest in accordance with this Clause 10 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 10.14 For the purposes of this Clause 10, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Borrower shall procure that each member of the Group complies with this Clause 10 in relation to changes to the calculation of interest as if references to the Borrower were references to that member of the Group.
- 10.15 The Lender shall be entitled to rely on any certificate delivered in connection with changes to the calculation of interest without further enquiry, unless it has actual knowledge that the certificate is inaccurate. If any Obligor is in doubt as to whether a proposed action relating to changes to the calculation of interest is permitted under this Clause 10, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 10.16 The Lender shall act reasonably and in a timely manner in responding to any request relating to changes to the calculation of interest made by an Obligor under this Clause 10. Any notice, request or certificate delivered in connection with this Clause 10 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 10.17 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to changes to the calculation of interest which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. In relation to changes to the calculation of interest, references in this Clause 10 to the Group shall be construed as

including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.

- 10.18 The Borrower acknowledges that the provisions of this Clause 10 relating to changes to the calculation of interest have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Any calculation in connection with changes to the calculation of interest shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 10.19 Any amount which an Obligor is required to pay under this Clause 10 in relation to changes to the calculation of interest shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Any period of grace in relation to changes to the calculation of interest shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 10.20 If there is any inconsistency between this Clause 10 and any other provision of the Finance Documents relating to changes to the calculation of interest, this Clause 10 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Where this Clause 10 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 10.21 Where any step relating to changes to the calculation of interest requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The rights of the Lender under this Clause 10 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 10.22 A certificate of the Lender setting out any amount payable in connection with changes to the calculation of interest shall, in the absence of manifest error, be conclusive evidence of that amount. The obligations of each Obligor under this Clause 10 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to changes to the calculation of interest.
- 10.23 The parties acknowledge that the time periods set out in this Clause 10 in relation to changes to the calculation of interest are of the essence, save where this Agreement expressly provides otherwise. References in this Clause 10 to a document relating to changes to the calculation of interest being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 10.24 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to changes to the calculation of interest directly with the Lender, provided that the Lender shall give the Borrower

reasonable notice of any such discussion. A certificate of the Lender setting out any amount payable in connection with changes to the calculation of interest shall, in the absence of manifest error, be conclusive evidence of that amount.

- 10.25 Where any step relating to changes to the calculation of interest requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The Borrower acknowledges that the provisions of this Clause 10 relating to changes to the calculation of interest have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 10.26 The Lender shall act reasonably and in a timely manner in responding to any request relating to changes to the calculation of interest made by an Obligor under this Clause 10. Nothing in this Clause 10 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with changes to the calculation of interest.
- 10.27 The Lender may delegate any of its rights or discretions under this Clause 10 in relation to changes to the calculation of interest to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to changes to the calculation of interest which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.

11. FEES

- 11.1 The Borrower shall pay to the Lender a commitment fee computed at the rate of 35 per cent. of the applicable Margin on the Available Commitment for the Availability Period, payable quarterly in arrears.
- 11.2 The Borrower shall pay to the Lender the Arrangement Fee on the earlier of the date of this Agreement and the first Utilisation Date.
- 11.3 The Borrower shall pay to the Lender an annual monitoring fee of AED 150,000, payable in advance on the date of this Agreement and on each anniversary of it.
- 11.4 The Lender may delegate any of its rights or discretions under this Clause 11 in relation to fees to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 11 where it is satisfied that the delay in relation to fees results from circumstances outside the control of the relevant Obligor.
- 11.5 The parties acknowledge that the time periods set out in this Clause 11 in relation to fees are of the essence, save where this Agreement expressly provides otherwise. Each of the obligations of the Obligors in this Clause 11 relating to fees shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.

- 11.6 In relation to fees, references in this Clause 11 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Borrower confirms that the information supplied to the Lender in relation to fees was, at the date it was supplied, true, complete and accurate in all material respects.
- 11.7 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to fees directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Nothing in this Clause 11 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with fees.
- 11.8 The Borrower shall procure that each member of the Group complies with this Clause 11 in relation to fees as if references to the Borrower were references to that member of the Group. A certificate of the Lender setting out any amount payable in connection with fees shall, in the absence of manifest error, be conclusive evidence of that amount.
- 11.9 For the purposes of this Clause 11, any reference to a matter being adverse shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. In determining whether a matter relating to fees is material, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 11.10 Where any step relating to fees requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. If any Obligor is in doubt as to whether a proposed action relating to fees is permitted under this Clause 11, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 11.11 References in this Clause 11 to a document relating to fees being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. If the Lender requests any document relating to fees in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 11.12 Any amount payable under this Clause 11 in connection with fees shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Borrower acknowledges that the provisions of this Clause 11 relating to fees have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 11.13 Any determination required to be made by the Lender under this Clause 11 shall be made in good faith and, where expressed to be reasonable, by reference to the fees practice then prevailing among leading banks in the United Arab Emirates. For the avoidance of doubt, the provisions of this Clause 11 concerning fees apply equally to any Loan made before the date on which

the relevant provision first applies.

- 11.14 Any calculation in connection with fees shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Lender shall be entitled to rely on any certificate delivered in connection with fees without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 11.15 Any amount which an Obligor is required to pay under this Clause 11 in relation to fees shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 11 in relation to fees, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 11.16 The Lender may, acting reasonably, request such further information in connection with fees as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Any notice, request or certificate delivered in connection with this Clause 11 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 11.17 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to fees requested by it under this Clause 11, save as otherwise expressly provided. Nothing in this Clause 11 shall oblige the Lender to take any action in relation to fees which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 11.18 Where this Clause 11 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. If there is any inconsistency between this Clause 11 and any other provision of the Finance Documents relating to fees, this Clause 11 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 11.19 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to fees which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The rights of the Lender under this Clause 11 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 11.20 Any reference in this Clause 11 to a person taking a step in relation to fees includes that person procuring that the step is taken by another member of the Group. Each Obligor shall execute such further documents and do such further acts in relation to fees as the Lender may reasonably require to give full effect to this Clause 11.

- 11.21 No waiver given by the Lender in relation to fees on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Any period of grace in relation to fees shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 11.22 The obligations of each Obligor under this Clause 11 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to fees. The parties agree that, in the context of fees, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 11.23 The Lender shall act reasonably and in a timely manner in responding to any request relating to fees made by an Obligor under this Clause 11. Any step taken by the Lender in relation to fees in accordance with this Clause 11 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 11.24 Any determination required to be made by the Lender under this Clause 11 shall be made in good faith and, where expressed to be reasonable, by reference to the fees practice then prevailing among leading banks in the United Arab Emirates. Any reference in this Clause 11 to a person taking a step in relation to fees includes that person procuring that the step is taken by another member of the Group.
- 11.25 In determining whether a matter relating to fees is adverse, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any period of grace in relation to fees shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 11.26 Each Obligor shall execute such further documents and do such further acts in relation to fees as the Lender may reasonably require to give full effect to this Clause 11. The Lender may, acting reasonably, request such further information in connection with fees as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 11.27 The Borrower acknowledges that the provisions of this Clause 11 relating to fees have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The Lender shall be entitled to rely on any certificate delivered in connection with fees without further enquiry, unless it has actual knowledge that the certificate is inaccurate.

12. TAX GROSS UP AND INDEMNITIES

- 12.1 Each Obligor shall make all payments to be made by it without any Tax Deduction, unless a Tax Deduction is required by law.

- 12.2 If a Tax Deduction is required by law to be made by an Obligor, the amount of the payment due from that Obligor shall be increased to an amount which (after making any Tax Deduction) leaves an amount equal to the payment which would have been due if no Tax Deduction had been required.
- 12.3 All amounts expressed to be payable under a Finance Document by any party to the Lender which constitute the consideration for any supply for value added tax purposes are deemed to be exclusive of any value added tax which is chargeable on that supply.
- 12.4 Each Obligor shall execute such further documents and do such further acts in relation to tax gross up and indemnities as the Lender may reasonably require to give full effect to this Clause 12. If there is any inconsistency between this Clause 12 and any other provision of the Finance Documents relating to tax gross up and indemnities, this Clause 12 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 12.5 In relation to tax gross up and indemnities, references in this Clause 12 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. If the Lender requests any document relating to tax gross up and indemnities in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 12.6 The rights of the Lender under this Clause 12 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to tax gross up and indemnities which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 12.7 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to tax gross up and indemnities requested by it under this Clause 12, save as otherwise expressly provided. Nothing in this Clause 12 shall oblige the Lender to take any action in relation to tax gross up and indemnities which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 12.8 The Borrower confirms that the information supplied to the Lender in relation to tax gross up and indemnities was, at the date it was supplied, true, complete and accurate in all material respects. The parties acknowledge that the time periods set out in this Clause 12 in relation to tax gross up and indemnities are of the essence, save where this Agreement expressly provides otherwise.
- 12.9 The obligations of each Obligor under this Clause 12 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to tax gross up and indemnities. Each of the obligations of the Obligors in this Clause 12 relating to tax gross up and indemnities shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance

Documents.

- 12.10 Nothing in this Clause 12 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with tax gross up and indemnities. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 12 in relation to tax gross up and indemnities, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 12.11 Where this Clause 12 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Any step taken by the Lender in relation to tax gross up and indemnities in accordance with this Clause 12 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 12.12 If any Obligor is in doubt as to whether a proposed action relating to tax gross up and indemnities is permitted under this Clause 12, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any period of grace in relation to tax gross up and indemnities shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 12.13 In determining whether a matter relating to tax gross up and indemnities is material, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 12 where it is satisfied that the delay in relation to tax gross up and indemnities results from circumstances outside the control of the relevant Obligor.
- 12.14 Where any step relating to tax gross up and indemnities requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Any reference in this Clause 12 to a person taking a step in relation to tax gross up and indemnities includes that person procuring that the step is taken by another member of the Group.
- 12.15 Any notice, request or certificate delivered in connection with this Clause 12 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Lender may delegate any of its rights or discretions under this Clause 12 in relation to tax gross up and indemnities to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 12.16 No waiver given by the Lender in relation to tax gross up and indemnities on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Any amount payable under this Clause 12 in

connection with tax gross up and indemnities shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.

- 12.17 The Borrower acknowledges that the provisions of this Clause 12 relating to tax gross up and indemnities have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The parties agree that, in the context of tax gross up and indemnities, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 12.18 Any calculation in connection with tax gross up and indemnities shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Lender may, acting reasonably, request such further information in connection with tax gross up and indemnities as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 12.19 The Lender shall act reasonably and in a timely manner in responding to any request relating to tax gross up and indemnities made by an Obligor under this Clause 12. Any determination required to be made by the Lender under this Clause 12 shall be made in good faith and, where expressed to be reasonable, by reference to the tax gross up and indemnities practice then prevailing among leading banks in the United Arab Emirates.
- 12.20 A certificate of the Lender setting out any amount payable in connection with tax gross up and indemnities shall, in the absence of manifest error, be conclusive evidence of that amount. For the avoidance of doubt, the provisions of this Clause 12 concerning tax gross up and indemnities apply equally to any Loan made before the date on which the relevant provision first applies.
- 12.21 For the purposes of this Clause 12, any reference to a matter being continuing shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Lender shall be entitled to rely on any certificate delivered in connection with tax gross up and indemnities without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 12.22 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to tax gross up and indemnities directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. References in this Clause 12 to a document relating to tax gross up and indemnities being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 12.23 The Borrower shall procure that each member of the Group complies with this Clause 12 in relation to tax gross up and indemnities as if references to the Borrower were references to that member of the Group. Any amount which an Obligor is required to pay under this Clause 12 in relation to tax gross up and

indemnities shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.

- 12.24 If any Obligor is in doubt as to whether a proposed action relating to tax gross up and indemnities is permitted under this Clause 12, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 12 in relation to tax gross up and indemnities, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 12.25 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to tax gross up and indemnities requested by it under this Clause 12, save as otherwise expressly provided. The Lender shall act reasonably and in a timely manner in responding to any request relating to tax gross up and indemnities made by an Obligor under this Clause 12.
- 12.26 In relation to tax gross up and indemnities, references in this Clause 12 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. A certificate of the Lender setting out any amount payable in connection with tax gross up and indemnities shall, in the absence of manifest error, be conclusive evidence of that amount.
- 12.27 Each of the obligations of the Obligors in this Clause 12 relating to tax gross up and indemnities shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. For the purposes of this Clause 12, any reference to a matter being customary shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.

13. INCREASED COSTS

- 13.1 The Borrower shall, within five (5) Business Days of a demand by the Lender, pay for the account of the Lender the amount of any increased costs incurred by the Lender as a result of the introduction of or any change in any law or regulation after the date of this Agreement.
- 13.2 The Lender shall notify the Borrower of the event giving rise to the claim and provide a certificate confirming the amount of its increased costs.
- 13.3 The Borrower confirms that the information supplied to the Lender in relation to increased costs was, at the date it was supplied, true, complete and accurate in all material respects. The rights of the Lender under this Clause 13 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 13.4 Where this Clause 13 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. If the Lender requests any document relating to increased costs in electronic form, the Borrower shall supply it in a

commonly used, unencrypted file format capable of being read without proprietary software.

- 13.5 Where any step relating to increased costs requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Any amount which an Obligor is required to pay under this Clause 13 in relation to increased costs shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 13.6 If there is any inconsistency between this Clause 13 and any other provision of the Finance Documents relating to increased costs, this Clause 13 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. The parties acknowledge that the time periods set out in this Clause 13 in relation to increased costs are of the essence, save where this Agreement expressly provides otherwise.
- 13.7 In determining whether a matter relating to increased costs is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any determination required to be made by the Lender under this Clause 13 shall be made in good faith and, where expressed to be reasonable, by reference to the increased costs practice then prevailing among leading banks in the United Arab Emirates.
- 13.8 Any step taken by the Lender in relation to increased costs in accordance with this Clause 13 shall be without prejudice to any other right or remedy available to it under the Finance Documents. References in this Clause 13 to a document relating to increased costs being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 13.9 The parties agree that, in the context of increased costs, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Any reference in this Clause 13 to a person taking a step in relation to increased costs includes that person procuring that the step is taken by another member of the Group.
- 13.10 Nothing in this Clause 13 shall oblige the Lender to take any action in relation to increased costs which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Any period of grace in relation to increased costs shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 13.11 If any Obligor is in doubt as to whether a proposed action relating to increased costs is permitted under this Clause 13, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. The Lender may, acting reasonably, request such further information in connection with increased costs as it may require from time to time, and the

Borrower shall supply that information within ten (10) Business Days of the request.

- 13.12 For the avoidance of doubt, the provisions of this Clause 13 concerning increased costs apply equally to any Loan made before the date on which the relevant provision first applies. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to increased costs which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 13.13 The Lender shall be entitled to rely on any certificate delivered in connection with increased costs without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Any amount payable under this Clause 13 in connection with increased costs shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 13.14 Nothing in this Clause 13 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with increased costs. No waiver given by the Lender in relation to increased costs on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 13.15 Each of the obligations of the Obligors in this Clause 13 relating to increased costs shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Any notice, request or certificate delivered in connection with this Clause 13 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 13.16 The obligations of each Obligor under this Clause 13 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to increased costs. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 13 where it is satisfied that the delay in relation to increased costs results from circumstances outside the control of the relevant Obligor.
- 13.17 The Borrower shall procure that each member of the Group complies with this Clause 13 in relation to increased costs as if references to the Borrower were references to that member of the Group. The Lender shall act reasonably and in a timely manner in responding to any request relating to increased costs made by an Obligor under this Clause 13.
- 13.18 A certificate of the Lender setting out any amount payable in connection with increased costs shall, in the absence of manifest error, be conclusive evidence of that amount. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 13 in relation to increased costs, including any fee payable to the Dubai Land Department or the relevant free zone authority.

- 13.19 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to increased costs requested by it under this Clause 13, save as otherwise expressly provided. In relation to increased costs, references in this Clause 13 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 13.20 Any calculation in connection with increased costs shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to increased costs directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 13.21 The Borrower acknowledges that the provisions of this Clause 13 relating to increased costs have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Each Obligor shall execute such further documents and do such further acts in relation to increased costs as the Lender may reasonably require to give full effect to this Clause 13.
- 13.22 The Lender may delegate any of its rights or discretions under this Clause 13 in relation to increased costs to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. For the purposes of this Clause 13, any reference to a matter being continuing shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 13.23 Where this Clause 13 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The Lender shall be entitled to rely on any certificate delivered in connection with increased costs without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 13.24 Any reference in this Clause 13 to a person taking a step in relation to increased costs includes that person procuring that the step is taken by another member of the Group. The obligations of each Obligor under this Clause 13 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to increased costs.
- 13.25 If there is any inconsistency between this Clause 13 and any other provision of the Finance Documents relating to increased costs, this Clause 13 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Any step taken by the Lender in relation to increased costs in accordance with this Clause 13 shall be without prejudice to any other right or remedy available to it under the Finance Documents.

13.26 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 13 in relation to increased costs, including any fee payable to the Dubai Land Department or the relevant free zone authority. Each of the obligations of the Obligor in this Clause 13 relating to increased costs shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.

14. OTHER INDEMNITIES

14.1 Each Obligor shall, within three (3) Business Days of demand, indemnify the Lender against any cost, loss or liability incurred by it as a result of the occurrence of any Event of Default, a failure by an Obligor to pay any amount due under a Finance Document on its due date, or funding a Loan requested by the Borrower in a Utilisation Request but not made by reason of the operation of any provision of this Agreement.

14.2 If any sum due from an Obligor under the Finance Documents has to be converted from the currency in which that sum is payable into another currency, that Obligor shall indemnify the Lender against any cost, loss or liability arising out of or as a result of the conversion.

14.3 For the avoidance of doubt, the provisions of this Clause 14 concerning other indemnities apply equally to any Loan made before the date on which the relevant provision first applies. The Borrower confirms that the information supplied to the Lender in relation to other indemnities was, at the date it was supplied, true, complete and accurate in all material respects.

14.4 A certificate of the Lender setting out any amount payable in connection with other indemnities shall, in the absence of manifest error, be conclusive evidence of that amount. The parties agree that, in the context of other indemnities, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.

14.5 Each Obligor shall execute such further documents and do such further acts in relation to other indemnities as the Lender may reasonably require to give full effect to this Clause 14. Any reference in this Clause 14 to a person taking a step in relation to other indemnities includes that person procuring that the step is taken by another member of the Group.

14.6 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to other indemnities which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Borrower acknowledges that the provisions of this Clause 14 relating to other indemnities have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

14.7 Where this Clause 14 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator

licensed by the UAE Ministry of Justice. Nothing in this Clause 14 shall oblige the Lender to take any action in relation to other indemnities which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

- 14.8 Any step taken by the Lender in relation to other indemnities in accordance with this Clause 14 shall be without prejudice to any other right or remedy available to it under the Finance Documents. The Lender may delegate any of its rights or discretions under this Clause 14 in relation to other indemnities to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 14.9 Nothing in this Clause 14 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with other indemnities. The rights of the Lender under this Clause 14 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 14.10 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to other indemnities requested by it under this Clause 14, save as otherwise expressly provided. Any determination required to be made by the Lender under this Clause 14 shall be made in good faith and, where expressed to be reasonable, by reference to the other indemnities practice then prevailing among leading banks in the United Arab Emirates.
- 14.11 The Lender may, acting reasonably, request such further information in connection with other indemnities as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. In relation to other indemnities, references in this Clause 14 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 14.12 Where any step relating to other indemnities requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 14 in relation to other indemnities, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 14.13 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 14 where it is satisfied that the delay in relation to other indemnities results from circumstances outside the control of the relevant Obligor. The obligations of each Obligor under this Clause 14 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to other indemnities.
- 14.14 The Borrower shall procure that each member of the Group complies with this Clause 14 in relation to other indemnities as if references to the Borrower

were references to that member of the Group. If any Obligor is in doubt as to whether a proposed action relating to other indemnities is permitted under this Clause 14, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.

- 14.15 If there is any inconsistency between this Clause 14 and any other provision of the Finance Documents relating to other indemnities, this Clause 14 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. No waiver given by the Lender in relation to other indemnities on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 14.16 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to other indemnities directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Any period of grace in relation to other indemnities shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 14.17 The Lender shall act reasonably and in a timely manner in responding to any request relating to other indemnities made by an Obligor under this Clause 14. Any amount which an Obligor is required to pay under this Clause 14 in relation to other indemnities shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 14.18 The Lender shall be entitled to rely on any certificate delivered in connection with other indemnities without further enquiry, unless it has actual knowledge that the certificate is inaccurate. If the Lender requests any document relating to other indemnities in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 14.19 Any notice, request or certificate delivered in connection with this Clause 14 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Any amount payable under this Clause 14 in connection with other indemnities shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 14.20 Any calculation in connection with other indemnities shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. In determining whether a matter relating to other indemnities is material, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 14.21 For the purposes of this Clause 14, any reference to a matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The parties

acknowledge that the time periods set out in this Clause 14 in relation to other indemnities are of the essence, save where this Agreement expressly provides otherwise.

- 14.22 Each of the obligations of the Obligors in this Clause 14 relating to other indemnities shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. References in this Clause 14 to a document relating to other indemnities being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 14.23 References in this Clause 14 to a document relating to other indemnities being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Any amount which an Obligor is required to pay under this Clause 14 in relation to other indemnities shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 14.24 Any period of grace in relation to other indemnities shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. Where any step relating to other indemnities requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 14.25 For the avoidance of doubt, the provisions of this Clause 14 concerning other indemnities apply equally to any Loan made before the date on which the relevant provision first applies. The Lender shall be entitled to rely on any certificate delivered in connection with other indemnities without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 14.26 Any notice, request or certificate delivered in connection with this Clause 14 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to other indemnities requested by it under this Clause 14, save as otherwise expressly provided.

15. MITIGATION BY THE LENDER

- 15.1 The Lender shall, in consultation with the Borrower, take all reasonable steps to mitigate any circumstances which arise and which would result in any amount becoming payable under Clause 7.1 (Illegality), Clause 12 (Tax Gross Up and Indemnities) or Clause 13 (Increased Costs).
- 15.2 The Lender is not obliged to take any steps under this Clause 15 if, in its opinion (acting reasonably), to do so might be prejudicial to it.
- 15.3 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to mitigation by the lender directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. No waiver given by the Lender in relation to mitigation

by the lender on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.

- 15.4 Any calculation in connection with mitigation by the lender shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Each of the obligations of the Obligors in this Clause 15 relating to mitigation by the lender shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 15.5 Nothing in this Clause 15 shall oblige the Lender to take any action in relation to mitigation by the lender which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to mitigation by the lender requested by it under this Clause 15, save as otherwise expressly provided.
- 15.6 The parties acknowledge that the time periods set out in this Clause 15 in relation to mitigation by the lender are of the essence, save where this Agreement expressly provides otherwise. The Borrower confirms that the information supplied to the Lender in relation to mitigation by the lender was, at the date it was supplied, true, complete and accurate in all material respects.
- 15.7 In determining whether a matter relating to mitigation by the lender is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. A certificate of the Lender setting out any amount payable in connection with mitigation by the lender shall, in the absence of manifest error, be conclusive evidence of that amount.
- 15.8 Any step taken by the Lender in relation to mitigation by the lender in accordance with this Clause 15 shall be without prejudice to any other right or remedy available to it under the Finance Documents. The Borrower shall procure that each member of the Group complies with this Clause 15 in relation to mitigation by the lender as if references to the Borrower were references to that member of the Group.
- 15.9 The Lender shall be entitled to rely on any certificate delivered in connection with mitigation by the lender without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to mitigation by the lender which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 15.10 For the avoidance of doubt, the provisions of this Clause 15 concerning mitigation by the lender apply equally to any Loan made before the date on which the relevant provision first applies. Any reference in this Clause 15 to a person taking a step in relation to mitigation by the lender includes that person

procuring that the step is taken by another member of the Group.

- 15.11 The parties agree that, in the context of mitigation by the lender, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Where any step relating to mitigation by the lender requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 15.12 Each Obligor shall execute such further documents and do such further acts in relation to mitigation by the lender as the Lender may reasonably require to give full effect to this Clause 15. If any Obligor is in doubt as to whether a proposed action relating to mitigation by the lender is permitted under this Clause 15, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 15.13 In relation to mitigation by the lender, references in this Clause 15 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Any determination required to be made by the Lender under this Clause 15 shall be made in good faith and, where expressed to be reasonable, by reference to the mitigation by the lender practice then prevailing among leading banks in the United Arab Emirates.
- 15.14 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 15 where it is satisfied that the delay in relation to mitigation by the lender results from circumstances outside the control of the relevant Obligor. The Lender may delegate any of its rights or discretions under this Clause 15 in relation to mitigation by the lender to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 15.15 References in this Clause 15 to a document relating to mitigation by the lender being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The Lender shall act reasonably and in a timely manner in responding to any request relating to mitigation by the lender made by an Obligor under this Clause 15.
- 15.16 The obligations of each Obligor under this Clause 15 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to mitigation by the lender. Any amount payable under this Clause 15 in connection with mitigation by the lender shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 15.17 For the purposes of this Clause 15, any reference to a matter being continuing shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Borrower acknowledges that the provisions of this Clause 15 relating to

mitigation by the lender have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

- 15.18 The Lender may, acting reasonably, request such further information in connection with mitigation by the lender as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. The rights of the Lender under this Clause 15 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 15.19 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 15 in relation to mitigation by the lender, including any fee payable to the Dubai Land Department or the relevant free zone authority. Where this Clause 15 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 15.20 If there is any inconsistency between this Clause 15 and any other provision of the Finance Documents relating to mitigation by the lender, this Clause 15 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Nothing in this Clause 15 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with mitigation by the lender.
- 15.21 Any notice, request or certificate delivered in connection with this Clause 15 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Any period of grace in relation to mitigation by the lender shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 15.22 Any amount which an Obligor is required to pay under this Clause 15 in relation to mitigation by the lender shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. If the Lender requests any document relating to mitigation by the lender in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 15.23 In determining whether a matter relating to mitigation by the lender is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. The Borrower shall procure that each member of the Group complies with this Clause 15 in relation to mitigation by the lender as if references to the Borrower were references to that member of the Group.
- 15.24 The Lender shall act reasonably and in a timely manner in responding to any request relating to mitigation by the lender made by an Obligor under this Clause 15. The parties agree that, in the context of mitigation by the lender, the expression “promptly” means as soon as reasonably practicable and in any

event within five (5) Business Days, unless a shorter period is expressly specified.

15.25 Each Obligor shall execute such further documents and do such further acts in relation to mitigation by the lender as the Lender may reasonably require to give full effect to this Clause 15. If any Obligor is in doubt as to whether a proposed action relating to mitigation by the lender is permitted under this Clause 15, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.

15.26 The Lender shall be entitled to rely on any certificate delivered in connection with mitigation by the lender without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Lender may delegate any of its rights or discretions under this Clause 15 in relation to mitigation by the lender to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

16. COSTS AND EXPENSES

16.1 The Borrower shall promptly on demand pay the Lender the amount of all costs and expenses (including legal fees, subject to an agreed cap of AED 400,000) reasonably incurred by it in connection with the negotiation, preparation, printing and execution of this Agreement and any other Finance Documents executed on or about the date of this Agreement.

16.2 The Borrower shall, within three (3) Business Days of demand, pay to the Lender the amount of all costs and expenses (including legal fees) incurred by the Lender in connection with the enforcement of, or the preservation of any rights under, any Finance Document.

16.3 The Borrower shall procure that each member of the Group complies with this Clause 16 in relation to costs and expenses as if references to the Borrower were references to that member of the Group. The Borrower acknowledges that the provisions of this Clause 16 relating to costs and expenses have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

16.4 Any amount which an Obligor is required to pay under this Clause 16 in relation to costs and expenses shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Any step taken by the Lender in relation to costs and expenses in accordance with this Clause 16 shall be without prejudice to any other right or remedy available to it under the Finance Documents.

16.5 Each Obligor shall execute such further documents and do such further acts in relation to costs and expenses as the Lender may reasonably require to give full effect to this Clause 16. The rights of the Lender under this Clause 16 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.

16.6 If any Obligor is in doubt as to whether a proposed action relating to costs and expenses is permitted under this Clause 16, it may request the confirmation of

the Lender, which shall not be unreasonably withheld or delayed. Any reference in this Clause 16 to a person taking a step in relation to costs and expenses includes that person procuring that the step is taken by another member of the Group.

- 16.7 Any calculation in connection with costs and expenses shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. If the Lender requests any document relating to costs and expenses in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 16.8 If there is any inconsistency between this Clause 16 and any other provision of the Finance Documents relating to costs and expenses, this Clause 16 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. The parties agree that, in the context of costs and expenses, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 16.9 The Lender may delegate any of its rights or discretions under this Clause 16 in relation to costs and expenses to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 16 where it is satisfied that the delay in relation to costs and expenses results from circumstances outside the control of the relevant Obligor.
- 16.10 The Borrower confirms that the information supplied to the Lender in relation to costs and expenses was, at the date it was supplied, true, complete and accurate in all material respects. Any notice, request or certificate delivered in connection with this Clause 16 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 16.11 Nothing in this Clause 16 shall oblige the Lender to take any action in relation to costs and expenses which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Any period of grace in relation to costs and expenses shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 16.12 Any determination required to be made by the Lender under this Clause 16 shall be made in good faith and, where expressed to be reasonable, by reference to the costs and expenses practice then prevailing among leading banks in the United Arab Emirates. Each of the obligations of the Obligors in this Clause 16 relating to costs and expenses shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.

- 16.13 Where this Clause 16 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to costs and expenses directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 16.14 Any amount payable under this Clause 16 in connection with costs and expenses shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Lender shall be entitled to rely on any certificate delivered in connection with costs and expenses without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 16.15 Nothing in this Clause 16 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with costs and expenses. In determining whether a matter relating to costs and expenses is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 16.16 The Lender shall act reasonably and in a timely manner in responding to any request relating to costs and expenses made by an Obligor under this Clause 16. No waiver given by the Lender in relation to costs and expenses on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 16.17 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to costs and expenses which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. A certificate of the Lender setting out any amount payable in connection with costs and expenses shall, in the absence of manifest error, be conclusive evidence of that amount.
- 16.18 The parties acknowledge that the time periods set out in this Clause 16 in relation to costs and expenses are of the essence, save where this Agreement expressly provides otherwise. Where any step relating to costs and expenses requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 16.19 In relation to costs and expenses, references in this Clause 16 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. For the avoidance of doubt, the provisions of this Clause 16 concerning costs and expenses apply equally to any Loan made before the date on which the relevant provision first applies.
- 16.20 The Lender may, acting reasonably, request such further information in connection with costs and expenses as it may require from time to time, and

the Borrower shall supply that information within ten (10) Business Days of the request. The obligations of each Obligor under this Clause 16 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to costs and expenses.

- 16.21 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 16 in relation to costs and expenses, including any fee payable to the Dubai Land Department or the relevant free zone authority. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to costs and expenses requested by it under this Clause 16, save as otherwise expressly provided.
- 16.22 References in this Clause 16 to a document relating to costs and expenses being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. For the purposes of this Clause 16, any reference to a matter being reasonable shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 16.23 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to costs and expenses directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Where this Clause 16 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 16.24 If the Lender requests any document relating to costs and expenses in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Each Obligor shall execute such further documents and do such further acts in relation to costs and expenses as the Lender may reasonably require to give full effect to this Clause 16.
- 16.25 If any Obligor is in doubt as to whether a proposed action relating to costs and expenses is permitted under this Clause 16, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. If there is any inconsistency between this Clause 16 and any other provision of the Finance Documents relating to costs and expenses, this Clause 16 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 16.26 The Borrower shall procure that each member of the Group complies with this Clause 16 in relation to costs and expenses as if references to the Borrower were references to that member of the Group. Any notice, request or certificate delivered in connection with this Clause 16 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).

17. SECURITY

- 17.1 The obligations of the Borrower under the Finance Documents shall be secured by a first-ranking mortgage over the Borrower's warehouse at Plot S-20417, Jebel Ali Free Zone, an assignment of the Borrower's receivables under its contracts with its five largest customers, and a pledge over the Borrower's collection account held with the Account Bank.
- 17.2 The Borrower shall procure that the value of the mortgaged property is at all times not less than 150 per cent. of the aggregate outstanding Loans, as determined by an independent valuer approved by the Lender at least once in each financial year.
- 17.3 If the Lender requests any document relating to security in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. In determining whether a matter relating to security is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 17.4 For the purposes of this Clause 17, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Borrower acknowledges that the provisions of this Clause 17 relating to security have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 17.5 The rights of the Lender under this Clause 17 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to security directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 17.6 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 17 in relation to security, including any fee payable to the Dubai Land Department or the relevant free zone authority. Each of the obligations of the Obligors in this Clause 17 relating to security shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 17.7 Any amount which an Obligor is required to pay under this Clause 17 in relation to security shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Where this Clause 17 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 17.8 The Lender may delegate any of its rights or discretions under this Clause 17 in relation to security to any of its Affiliates, provided that it shall remain

responsible for the acts and omissions of that delegate. Any step taken by the Lender in relation to security in accordance with this Clause 17 shall be without prejudice to any other right or remedy available to it under the Finance Documents.

- 17.9 Any notice, request or certificate delivered in connection with this Clause 17 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Lender shall act reasonably and in a timely manner in responding to any request relating to security made by an Obligor under this Clause 17.
- 17.10 Any period of grace in relation to security shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. If any Obligor is in doubt as to whether a proposed action relating to security is permitted under this Clause 17, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 17.11 The parties acknowledge that the time periods set out in this Clause 17 in relation to security are of the essence, save where this Agreement expressly provides otherwise. The Borrower shall procure that each member of the Group complies with this Clause 17 in relation to security as if references to the Borrower were references to that member of the Group.
- 17.12 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to security which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Any reference in this Clause 17 to a person taking a step in relation to security includes that person procuring that the step is taken by another member of the Group.
- 17.13 In relation to security, references in this Clause 17 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Any determination required to be made by the Lender under this Clause 17 shall be made in good faith and, where expressed to be reasonable, by reference to the security practice then prevailing among leading banks in the United Arab Emirates.
- 17.14 Where any step relating to security requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 17 where it is satisfied that the delay in relation to security results from circumstances outside the control of the relevant Obligor.
- 17.15 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to security requested by it under this Clause 17, save as otherwise expressly provided. The parties agree that, in the context of security,

the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.

- 17.16 The Lender may, acting reasonably, request such further information in connection with security as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. For the avoidance of doubt, the provisions of this Clause 17 concerning security apply equally to any Loan made before the date on which the relevant provision first applies.
- 17.17 Any amount payable under this Clause 17 in connection with security shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Lender shall be entitled to rely on any certificate delivered in connection with security without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 17.18 Nothing in this Clause 17 shall oblige the Lender to take any action in relation to security which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. If there is any inconsistency between this Clause 17 and any other provision of the Finance Documents relating to security, this Clause 17 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 17.19 Nothing in this Clause 17 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with security. No waiver given by the Lender in relation to security on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 17.20 A certificate of the Lender setting out any amount payable in connection with security shall, in the absence of manifest error, be conclusive evidence of that amount. The Borrower confirms that the information supplied to the Lender in relation to security was, at the date it was supplied, true, complete and accurate in all material respects.
- 17.21 Any calculation in connection with security shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Each Obligor shall execute such further documents and do such further acts in relation to security as the Lender may reasonably require to give full effect to this Clause 17.
- 17.22 References in this Clause 17 to a document relating to security being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The obligations of each Obligor under this Clause 17 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to security.

- 17.23 Any calculation in connection with security shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Borrower confirms that the information supplied to the Lender in relation to security was, at the date it was supplied, true, complete and accurate in all material respects.
- 17.24 If the Lender requests any document relating to security in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Any period of grace in relation to security shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 17.25 The Lender may, acting reasonably, request such further information in connection with security as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Nothing in this Clause 17 shall oblige the Lender to take any action in relation to security which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 17.26 The Lender shall act reasonably and in a timely manner in responding to any request relating to security made by an Obligor under this Clause 17. Any determination required to be made by the Lender under this Clause 17 shall be made in good faith and, where expressed to be reasonable, by reference to the security practice then prevailing among leading banks in the United Arab Emirates.

18. GUARANTEE AND INDEMNITY

- 18.1 The Guarantor irrevocably and unconditionally guarantees to the Lender punctual performance by the Borrower of all of the Borrower's obligations under the Finance Documents.
- 18.2 The Guarantor undertakes with the Lender that whenever the Borrower does not pay any amount when due under or in connection with any Finance Document, the Guarantor shall immediately on demand pay that amount as if it was the principal obligor.
- 18.3 This guarantee is a continuing guarantee and will extend to the ultimate balance of sums payable by any Obligor under the Finance Documents, regardless of any intermediate payment or discharge in whole or in part.
- 18.4 The maximum aggregate liability of the Guarantor under this Clause 18 shall not exceed AED 300,000,000 (three hundred million UAE dirhams) together with interest, costs and expenses.
- 18.5 The Borrower acknowledges that the provisions of this Clause 18 relating to guarantee and indemnity have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Any amount which an Obligor is required to pay under this Clause 18 in relation to guarantee and indemnity shall be paid free of any restriction or condition and without any

deduction other than a Tax Deduction required by law.

- 18.6 Any period of grace in relation to guarantee and indemnity shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Lender shall act reasonably and in a timely manner in responding to any request relating to guarantee and indemnity made by an Obligor under this Clause 18.
- 18.7 Any calculation in connection with guarantee and indemnity shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Nothing in this Clause 18 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with guarantee and indemnity.
- 18.8 The Lender shall be entitled to rely on any certificate delivered in connection with guarantee and indemnity without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to guarantee and indemnity which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 18.9 If there is any inconsistency between this Clause 18 and any other provision of the Finance Documents relating to guarantee and indemnity, this Clause 18 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Any determination required to be made by the Lender under this Clause 18 shall be made in good faith and, where expressed to be reasonable, by reference to the guarantee and indemnity practice then prevailing among leading banks in the United Arab Emirates.
- 18.10 The parties agree that, in the context of guarantee and indemnity, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. A certificate of the Lender setting out any amount payable in connection with guarantee and indemnity shall, in the absence of manifest error, be conclusive evidence of that amount.
- 18.11 Each of the obligations of the Obligors in this Clause 18 relating to guarantee and indemnity shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. References in this Clause 18 to a document relating to guarantee and indemnity being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 18.12 In relation to guarantee and indemnity, references in this Clause 18 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Any reference in this Clause 18 to a person taking a step in relation to guarantee and indemnity includes that person procuring that the step is taken by another member of the Group.

- 18.13 The obligations of each Obligor under this Clause 18 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to guarantee and indemnity. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 18 in relation to guarantee and indemnity, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 18.14 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to guarantee and indemnity requested by it under this Clause 18, save as otherwise expressly provided. Where any step relating to guarantee and indemnity requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 18.15 If any Obligor is in doubt as to whether a proposed action relating to guarantee and indemnity is permitted under this Clause 18, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any step taken by the Lender in relation to guarantee and indemnity in accordance with this Clause 18 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 18.16 The rights of the Lender under this Clause 18 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Lender may delegate any of its rights or discretions under this Clause 18 in relation to guarantee and indemnity to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 18.17 Each Obligor shall execute such further documents and do such further acts in relation to guarantee and indemnity as the Lender may reasonably require to give full effect to this Clause 18. Nothing in this Clause 18 shall oblige the Lender to take any action in relation to guarantee and indemnity which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 18.18 The Borrower confirms that the information supplied to the Lender in relation to guarantee and indemnity was, at the date it was supplied, true, complete and accurate in all material respects. No waiver given by the Lender in relation to guarantee and indemnity on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 18.19 For the purposes of this Clause 18, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Any amount payable under this Clause 18 in connection with guarantee and indemnity shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.

- 18.20 The parties acknowledge that the time periods set out in this Clause 18 in relation to guarantee and indemnity are of the essence, save where this Agreement expressly provides otherwise. In determining whether a matter relating to guarantee and indemnity is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 18.21 If the Lender requests any document relating to guarantee and indemnity in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to guarantee and indemnity directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 18.22 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 18 where it is satisfied that the delay in relation to guarantee and indemnity results from circumstances outside the control of the relevant Obligor. The Borrower shall procure that each member of the Group complies with this Clause 18 in relation to guarantee and indemnity as if references to the Borrower were references to that member of the Group.
- 18.23 Where this Clause 18 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. For the avoidance of doubt, the provisions of this Clause 18 concerning guarantee and indemnity apply equally to any Loan made before the date on which the relevant provision first applies.
- 18.24 Any notice, request or certificate delivered in connection with this Clause 18 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Lender may, acting reasonably, request such further information in connection with guarantee and indemnity as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 18.25 In determining whether a matter relating to guarantee and indemnity is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 18 in relation to guarantee and indemnity, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 18.26 The Lender shall be entitled to rely on any certificate delivered in connection with guarantee and indemnity without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The parties acknowledge that the time periods set out in this Clause 18 in relation to guarantee and indemnity

are of the essence, save where this Agreement expressly provides otherwise.

18.27 No waiver given by the Lender in relation to guarantee and indemnity on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Any notice, request or certificate delivered in connection with this Clause 18 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).

18.28 The Lender may, acting reasonably, request such further information in connection with guarantee and indemnity as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Nothing in this Clause 18 shall oblige the Lender to take any action in relation to guarantee and indemnity which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

19. REPRESENTATIONS

19.1 Each Obligor makes the representations and warranties set out in this Clause 19 to the Lender on the date of this Agreement.

19.2 It is a limited liability company or a company limited by shares, duly incorporated and validly existing under the law of its jurisdiction of incorporation, and it has the power to own its assets and carry on its business as it is being conducted.

19.3 The obligations expressed to be assumed by it in each Finance Document are, subject to any general principles of law limiting obligations, legal, valid, binding and enforceable obligations.

19.4 No litigation, arbitration or administrative proceedings of or before any court, arbitral body or agency which, if adversely determined, might reasonably be expected to have a Material Adverse Effect have been started or threatened against it or any of its Subsidiaries.

19.5 Neither it nor any of its Subsidiaries, nor to its knowledge any director, officer or employee of any of them, is a person that is the target of Sanctions.

19.6 The Repeating Representations are deemed to be made by each Obligor by reference to the facts and circumstances then existing on the date of each Utilisation Request, on each Utilisation Date and on the first day of each Interest Period.

19.7 Any period of grace in relation to representations shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Borrower acknowledges that the provisions of this Clause 19 relating to representations have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

- 19.8 Nothing in this Clause 19 shall oblige the Lender to take any action in relation to representations which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Any reference in this Clause 19 to a person taking a step in relation to representations includes that person procuring that the step is taken by another member of the Group.
- 19.9 Where any step relating to representations requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. If the Lender requests any document relating to representations in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 19.10 The Borrower shall procure that each member of the Group complies with this Clause 19 in relation to representations as if references to the Borrower were references to that member of the Group. For the avoidance of doubt, the provisions of this Clause 19 concerning representations apply equally to any Loan made before the date on which the relevant provision first applies.
- 19.11 Any step taken by the Lender in relation to representations in accordance with this Clause 19 shall be without prejudice to any other right or remedy available to it under the Finance Documents. The parties acknowledge that the time periods set out in this Clause 19 in relation to representations are of the essence, save where this Agreement expressly provides otherwise.
- 19.12 The Lender shall be entitled to rely on any certificate delivered in connection with representations without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Any determination required to be made by the Lender under this Clause 19 shall be made in good faith and, where expressed to be reasonable, by reference to the representations practice then prevailing among leading banks in the United Arab Emirates.
- 19.13 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to representations requested by it under this Clause 19, save as otherwise expressly provided. The parties agree that, in the context of representations, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 19.14 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to representations which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. In determining whether a matter relating to representations is reasonable, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 19.15 In relation to representations, references in this Clause 19 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Each Obligor shall execute such further documents and do such

further acts in relation to representations as the Lender may reasonably require to give full effect to this Clause 19.

- 19.16 A certificate of the Lender setting out any amount payable in connection with representations shall, in the absence of manifest error, be conclusive evidence of that amount. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to representations directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 19.17 Any calculation in connection with representations shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Any amount which an Obligor is required to pay under this Clause 19 in relation to representations shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 19.18 Any amount payable under this Clause 19 in connection with representations shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Lender shall act reasonably and in a timely manner in responding to any request relating to representations made by an Obligor under this Clause 19.
- 19.19 The Borrower confirms that the information supplied to the Lender in relation to representations was, at the date it was supplied, true, complete and accurate in all material respects. If there is any inconsistency between this Clause 19 and any other provision of the Finance Documents relating to representations, this Clause 19 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 19.20 The Lender may, acting reasonably, request such further information in connection with representations as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. For the purposes of this Clause 19, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 19.21 The rights of the Lender under this Clause 19 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 19 in relation to representations, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 19.22 The Lender may delegate any of its rights or discretions under this Clause 19 in relation to representations to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 19 where it is satisfied that the delay in relation to representations results from circumstances outside the

control of the relevant Obligor.

- 19.23 Each of the obligations of the Obligors in this Clause 19 relating to representations shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. References in this Clause 19 to a document relating to representations being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 19.24 Any notice, request or certificate delivered in connection with this Clause 19 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The obligations of each Obligor under this Clause 19 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to representations.
- 19.25 If any Obligor is in doubt as to whether a proposed action relating to representations is permitted under this Clause 19, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Where this Clause 19 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 19.26 Nothing in this Clause 19 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with representations. No waiver given by the Lender in relation to representations on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 19.27 References in this Clause 19 to a document relating to representations being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. For the avoidance of doubt, the provisions of this Clause 19 concerning representations apply equally to any Loan made before the date on which the relevant provision first applies.
- 19.28 The rights of the Lender under this Clause 19 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The parties acknowledge that the time periods set out in this Clause 19 in relation to representations are of the essence, save where this Agreement expressly provides otherwise.
- 19.29 Nothing in this Clause 19 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with representations. The Lender shall be entitled to rely on any certificate delivered in connection with representations without further enquiry, unless it has actual knowledge that the certificate is inaccurate.

19.30 Any reference in this Clause 19 to a person taking a step in relation to representations includes that person procuring that the step is taken by another member of the Group. If the Lender requests any document relating to representations in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.

20. INFORMATION UNDERTAKINGS

- 20.1 The Borrower shall supply to the Lender as soon as they are available, but in any event within one hundred and twenty (120) days after the end of each of its financial years, the audited consolidated financial statements of the Group for that financial year.
- 20.2 The Borrower shall supply to the Lender as soon as they are available, but in any event within sixty (60) days after the end of each half of each of its financial years, the unaudited consolidated financial statements of the Group for that financial half-year.
- 20.3 With each set of financial statements delivered under this Clause 20, the Borrower shall supply to the Lender a Compliance Certificate setting out (in reasonable detail) computations as to compliance with Clause 21 (Financial Covenants), signed by the chief financial officer of the Guarantor.
- 20.4 The Borrower shall supply to the Lender promptly upon becoming aware of them, the details of any litigation, arbitration or administrative proceedings which are current, threatened or pending against any member of the Group and which, if adversely determined, are reasonably likely to have a Material Adverse Effect.
- 20.5 The Borrower shall promptly notify the Lender of any Default (and the steps, if any, being taken to remedy it) upon becoming aware of its occurrence.
- 20.6 The Borrower shall promptly upon the request of the Lender supply, or procure the supply of, such documentation and other evidence as is reasonably requested by the Lender in order for it to carry out and be satisfied with the results of all necessary “know your customer” or other similar checks under all applicable laws and regulations.
- 20.7 The Lender shall be entitled to rely on any certificate delivered in connection with information undertakings without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Lender may delegate any of its rights or discretions under this Clause 20 in relation to information undertakings to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 20.8 For the avoidance of doubt, the provisions of this Clause 20 concerning information undertakings apply equally to any Loan made before the date on which the relevant provision first applies. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 20 where it is satisfied that the delay in relation to information undertakings results from circumstances outside the control of the relevant Obligor.

- 20.9 The parties agree that, in the context of information undertakings, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to information undertakings which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 20.10 Nothing in this Clause 20 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with information undertakings. No waiver given by the Lender in relation to information undertakings on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 20.11 If any Obligor is in doubt as to whether a proposed action relating to information undertakings is permitted under this Clause 20, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. References in this Clause 20 to a document relating to information undertakings being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 20.12 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to information undertakings directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. In relation to information undertakings, references in this Clause 20 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 20.13 If the Lender requests any document relating to information undertakings in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Each of the obligations of the Obligors in this Clause 20 relating to information undertakings shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 20.14 Any amount which an Obligor is required to pay under this Clause 20 in relation to information undertakings shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. For the purposes of this Clause 20, any reference to a matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 20.15 Any determination required to be made by the Lender under this Clause 20 shall be made in good faith and, where expressed to be reasonable, by reference to the information undertakings practice then prevailing among leading banks in the United Arab Emirates. Any step taken by the Lender in relation to information undertakings in accordance with this Clause 20 shall be

without prejudice to any other right or remedy available to it under the Finance Documents.

- 20.16 The Borrower confirms that the information supplied to the Lender in relation to information undertakings was, at the date it was supplied, true, complete and accurate in all material respects. In determining whether a matter relating to information undertakings is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 20.17 Any notice, request or certificate delivered in connection with this Clause 20 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). If there is any inconsistency between this Clause 20 and any other provision of the Finance Documents relating to information undertakings, this Clause 20 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 20.18 Any calculation in connection with information undertakings shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The rights of the Lender under this Clause 20 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 20.19 A certificate of the Lender setting out any amount payable in connection with information undertakings shall, in the absence of manifest error, be conclusive evidence of that amount. Nothing in this Clause 20 shall oblige the Lender to take any action in relation to information undertakings which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 20.20 Any reference in this Clause 20 to a person taking a step in relation to information undertakings includes that person procuring that the step is taken by another member of the Group. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to information undertakings requested by it under this Clause 20, save as otherwise expressly provided.
- 20.21 The parties acknowledge that the time periods set out in this Clause 20 in relation to information undertakings are of the essence, save where this Agreement expressly provides otherwise. Any amount payable under this Clause 20 in connection with information undertakings shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 20.22 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 20 in relation to information undertakings, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower shall procure that each member of the Group complies with this Clause 20 in relation to

information undertakings as if references to the Borrower were references to that member of the Group.

- 20.23 The Lender shall act reasonably and in a timely manner in responding to any request relating to information undertakings made by an Obligor under this Clause 20. Any period of grace in relation to information undertakings shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 20.24 The obligations of each Obligor under this Clause 20 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to information undertakings. Where this Clause 20 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 20.25 Where any step relating to information undertakings requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The Lender may, acting reasonably, request such further information in connection with information undertakings as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 20.26 Each Obligor shall execute such further documents and do such further acts in relation to information undertakings as the Lender may reasonably require to give full effect to this Clause 20. The Borrower acknowledges that the provisions of this Clause 20 relating to information undertakings have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 20.27 Any determination required to be made by the Lender under this Clause 20 shall be made in good faith and, where expressed to be reasonable, by reference to the information undertakings practice then prevailing among leading banks in the United Arab Emirates. Any period of grace in relation to information undertakings shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 20.28 The Lender may, acting reasonably, request such further information in connection with information undertakings as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. A certificate of the Lender setting out any amount payable in connection with information undertakings shall, in the absence of manifest error, be conclusive evidence of that amount.
- 20.29 If the Lender requests any document relating to information undertakings in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. The Borrower shall procure that each member of the Group complies with this Clause 20 in

relation to information undertakings as if references to the Borrower were references to that member of the Group.

20.30 The Borrower confirms that the information supplied to the Lender in relation to information undertakings was, at the date it was supplied, true, complete and accurate in all material respects. Each of the obligations of the Obligors in this Clause 20 relating to information undertakings shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.

21. FINANCIAL COVENANTS

- 21.1 The Guarantor shall ensure that Leverage in respect of any Relevant Period shall not exceed 3.50:1.
- 21.2 The Guarantor shall ensure that the ratio of EBITDA to Net Finance Charges (Interest Cover) in respect of any Relevant Period shall not be less than 4.00:1.
- 21.3 The Guarantor shall ensure that Tangible Net Worth of the Group shall at all times be not less than AED 400,000,000 (four hundred million UAE dirhams).
- 21.4 The financial covenants set out in this Clause 21 shall be calculated in accordance with the Accounting Principles and tested by reference to each of the financial statements and each Compliance Certificate delivered under Clause 20 (Information Undertakings).
- 21.5 Any period of grace in relation to financial covenants shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Lender may delegate any of its rights or discretions under this Clause 21 in relation to financial covenants to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 21.6 Each of the obligations of the Obligors in this Clause 21 relating to financial covenants shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 21 where it is satisfied that the delay in relation to financial covenants results from circumstances outside the control of the relevant Obligor.
- 21.7 Any determination required to be made by the Lender under this Clause 21 shall be made in good faith and, where expressed to be reasonable, by reference to the financial covenants practice then prevailing among leading banks in the United Arab Emirates. Any notice, request or certificate delivered in connection with this Clause 21 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 21.8 No waiver given by the Lender in relation to financial covenants on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory

of the Lender. The rights of the Lender under this Clause 21 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.

- 21.9 In determining whether a matter relating to financial covenants is reasonable, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. The parties agree that, in the context of financial covenants, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 21.10 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 21 in relation to financial covenants, including any fee payable to the Dubai Land Department or the relevant free zone authority. Nothing in this Clause 21 shall oblige the Lender to take any action in relation to financial covenants which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 21.11 The Borrower confirms that the information supplied to the Lender in relation to financial covenants was, at the date it was supplied, true, complete and accurate in all material respects. The obligations of each Obligor under this Clause 21 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to financial covenants.
- 21.12 If there is any inconsistency between this Clause 21 and any other provision of the Finance Documents relating to financial covenants, this Clause 21 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Any amount which an Obligor is required to pay under this Clause 21 in relation to financial covenants shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 21.13 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to financial covenants directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Any reference in this Clause 21 to a person taking a step in relation to financial covenants includes that person procuring that the step is taken by another member of the Group.
- 21.14 References in this Clause 21 to a document relating to financial covenants being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Any step taken by the Lender in relation to financial covenants in accordance with this Clause 21 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 21.15 The parties acknowledge that the time periods set out in this Clause 21 in relation to financial covenants are of the essence, save where this Agreement expressly provides otherwise. Each Obligor shall execute such further

documents and do such further acts in relation to financial covenants as the Lender may reasonably require to give full effect to this Clause 21.

- 21.16 Where any step relating to financial covenants requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. If the Lender requests any document relating to financial covenants in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 21.17 A certificate of the Lender setting out any amount payable in connection with financial covenants shall, in the absence of manifest error, be conclusive evidence of that amount. The Lender may, acting reasonably, request such further information in connection with financial covenants as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 21.18 Any amount payable under this Clause 21 in connection with financial covenants shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Borrower acknowledges that the provisions of this Clause 21 relating to financial covenants have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 21.19 If any Obligor is in doubt as to whether a proposed action relating to financial covenants is permitted under this Clause 21, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Nothing in this Clause 21 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with financial covenants.
- 21.20 In relation to financial covenants, references in this Clause 21 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Borrower shall procure that each member of the Group complies with this Clause 21 in relation to financial covenants as if references to the Borrower were references to that member of the Group.
- 21.21 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to financial covenants requested by it under this Clause 21, save as otherwise expressly provided. The Lender shall be entitled to rely on any certificate delivered in connection with financial covenants without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 21.22 The Lender shall act reasonably and in a timely manner in responding to any request relating to financial covenants made by an Obligor under this Clause 21. Any calculation in connection with financial covenants shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 21.23 Where this Clause 21 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English,

accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. For the purposes of this Clause 21, any reference to a matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.

21.24 For the avoidance of doubt, the provisions of this Clause 21 concerning financial covenants apply equally to any Loan made before the date on which the relevant provision first applies. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to financial covenants which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.

21.25 If the Lender requests any document relating to financial covenants in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 21 in relation to financial covenants, including any fee payable to the Dubai Land Department or the relevant free zone authority.

21.26 No waiver given by the Lender in relation to financial covenants on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Nothing in this Clause 21 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with financial covenants.

21.27 Any amount payable under this Clause 21 in connection with financial covenants shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. If any Obligor is in doubt as to whether a proposed action relating to financial covenants is permitted under this Clause 21, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.

21.28 The Lender may, acting reasonably, request such further information in connection with financial covenants as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. If there is any inconsistency between this Clause 21 and any other provision of the Finance Documents relating to financial covenants, this Clause 21 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.

22. GENERAL UNDERTAKINGS

22.1 Each Obligor shall promptly obtain, comply with and do all that is necessary to maintain in full force and effect any Authorisation required under any law or regulation of its jurisdiction of incorporation to enable it to perform its obligations under the Finance Documents.

- 22.2 No Obligor shall (and the Guarantor shall ensure that no other member of the Group will) create or permit to subsist any Security over any of its assets, other than Permitted Security.
- 22.3 No Obligor shall enter into a single transaction or a series of transactions (whether related or not) to sell, lease, transfer or otherwise dispose of any asset, other than disposals made in the ordinary course of trading or disposals of obsolete assets with an aggregate value not exceeding AED 15,000,000 in any financial year.
- 22.4 No Obligor shall enter into any amalgamation, demerger, merger or corporate reconstruction without the prior written consent of the Lender.
- 22.5 The Borrower shall procure that no substantial change is made to the general nature of the business of the Borrower or the Group from that carried on at the date of this Agreement.
- 22.6 The Borrower shall not declare, make or pay any dividend, charge, fee or other distribution while a Default is continuing or would result from that payment.
- 22.7 Each Obligor shall maintain insurances on and in relation to its business and assets with reputable underwriters or insurance companies against those risks and to the extent as is usual for companies carrying on the same or substantially similar business, and the Lender shall be named as first loss payee on the property insurance for the mortgaged warehouse.
- 22.8 Each Obligor shall comply in all respects with all laws to which it may be subject, if failure so to comply would materially impair its ability to perform its obligations under the Finance Documents, and shall conduct its businesses in compliance with applicable Anti-Corruption Laws.
- 22.9 Each Obligor shall maintain its books and records in English and in accordance with the Accounting Principles, and shall permit the Lender, on reasonable notice and not more than once in each financial year while no Default is continuing, to inspect them.
- 22.10 The Borrower shall promptly notify the Lender of any Default (and the steps, if any, being taken to remedy it) upon becoming aware of its occurrence.
- 22.11 Any calculation in connection with general undertakings shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Any determination required to be made by the Lender under this Clause 22 shall be made in good faith and, where expressed to be reasonable, by reference to the general undertakings practice then prevailing among leading banks in the United Arab Emirates.
- 22.12 Where any step relating to general undertakings requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The parties acknowledge that the time periods set out in this Clause 22 in relation to general undertakings are of the essence, save where this Agreement expressly provides otherwise.

- 22.13 Any period of grace in relation to general undertakings shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Lender shall be entitled to rely on any certificate delivered in connection with general undertakings without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 22.14 The Lender shall act reasonably and in a timely manner in responding to any request relating to general undertakings made by an Obligor under this Clause 22. For the purposes of this Clause 22, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 22.15 Any reference in this Clause 22 to a person taking a step in relation to general undertakings includes that person procuring that the step is taken by another member of the Group. Nothing in this Clause 22 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with general undertakings.
- 22.16 References in this Clause 22 to a document relating to general undertakings being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Where this Clause 22 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 22.17 The parties agree that, in the context of general undertakings, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Each of the obligations of the Obligors in this Clause 22 relating to general undertakings shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 22.18 In relation to general undertakings, references in this Clause 22 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to general undertakings which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 22.19 Any amount payable under this Clause 22 in connection with general undertakings shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to general undertakings directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.

- 22.20 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 22 where it is satisfied that the delay in relation to general undertakings results from circumstances outside the control of the relevant Obligor. Nothing in this Clause 22 shall oblige the Lender to take any action in relation to general undertakings which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 22.21 The obligations of each Obligor under this Clause 22 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to general undertakings. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to general undertakings requested by it under this Clause 22, save as otherwise expressly provided.
- 22.22 The Lender may, acting reasonably, request such further information in connection with general undertakings as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. If there is any inconsistency between this Clause 22 and any other provision of the Finance Documents relating to general undertakings, this Clause 22 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 22.23 In determining whether a matter relating to general undertakings is substantial, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. The Borrower acknowledges that the provisions of this Clause 22 relating to general undertakings have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 22.24 The Borrower shall procure that each member of the Group complies with this Clause 22 in relation to general undertakings as if references to the Borrower were references to that member of the Group. If any Obligor is in doubt as to whether a proposed action relating to general undertakings is permitted under this Clause 22, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 22.25 Any notice, request or certificate delivered in connection with this Clause 22 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Any amount which an Obligor is required to pay under this Clause 22 in relation to general undertakings shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 22.26 The Lender may delegate any of its rights or discretions under this Clause 22 in relation to general undertakings to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 22 in relation to general

undertakings, including any fee payable to the Dubai Land Department or the relevant free zone authority.

- 22.27 Any step taken by the Lender in relation to general undertakings in accordance with this Clause 22 shall be without prejudice to any other right or remedy available to it under the Finance Documents. If the Lender requests any document relating to general undertakings in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 22.28 Each Obligor shall execute such further documents and do such further acts in relation to general undertakings as the Lender may reasonably require to give full effect to this Clause 22. The Borrower confirms that the information supplied to the Lender in relation to general undertakings was, at the date it was supplied, true, complete and accurate in all material respects.
- 22.29 The rights of the Lender under this Clause 22 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. No waiver given by the Lender in relation to general undertakings on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 22.30 A certificate of the Lender setting out any amount payable in connection with general undertakings shall, in the absence of manifest error, be conclusive evidence of that amount. For the avoidance of doubt, the provisions of this Clause 22 concerning general undertakings apply equally to any Loan made before the date on which the relevant provision first applies.
- 22.31 Any reference in this Clause 22 to a person taking a step in relation to general undertakings includes that person procuring that the step is taken by another member of the Group. Any notice, request or certificate delivered in connection with this Clause 22 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 22.32 The Lender shall be entitled to rely on any certificate delivered in connection with general undertakings without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Each Obligor shall execute such further documents and do such further acts in relation to general undertakings as the Lender may reasonably require to give full effect to this Clause 22.
- 22.33 In relation to general undertakings, references in this Clause 22 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. If any Obligor is in doubt as to whether a proposed action relating to general undertakings is permitted under this Clause 22, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 22.34 The Lender may, acting reasonably, request such further information in connection with general undertakings as it may require from time to time, and

the Borrower shall supply that information within ten (10) Business Days of the request. If the Lender requests any document relating to general undertakings in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.

23. EVENTS OF DEFAULT

- 23.1 Each of the events or circumstances set out in this Clause 23 is an Event of Default.
- 23.2 Non-payment: an Obligor does not pay on the due date any amount payable pursuant to a Finance Document at the place and in the currency in which it is expressed to be payable, unless its failure to pay is caused by administrative or technical error and payment is made within three (3) Business Days of its due date.
- 23.3 Financial covenants: any requirement of Clause 21 (Financial Covenants) is not satisfied.
- 23.4 Other obligations: an Obligor does not comply with any provision of the Finance Documents (other than those referred to above) and the failure to comply is not remedied within twenty-one (21) days of the earlier of the Lender giving notice to the Borrower and the Borrower becoming aware of the failure to comply.
- 23.5 Misrepresentation: any representation or statement made or deemed to be made by an Obligor in the Finance Documents is or proves to have been incorrect or misleading in any material respect when made or deemed to be made.
- 23.6 Cross default: any Financial Indebtedness of any member of the Group is not paid when due nor within any originally applicable grace period, or is declared to be due and payable prior to its specified maturity as a result of an event of default (however described); no Event of Default will occur under this paragraph if the aggregate amount of Financial Indebtedness falling within it is less than AED 10,000,000 (ten million UAE dirhams) or its equivalent in any other currency.
- 23.7 Insolvency: a member of the Group is unable or admits inability to pay its debts as they fall due, suspends making payments on any of its debts or, by reason of actual or anticipated financial difficulties, commences negotiations with one or more of its creditors with a view to rescheduling any of its indebtedness.
- 23.8 Insolvency proceedings: any corporate action, legal proceedings or other procedure or step is taken in relation to the suspension of payments, a moratorium of any indebtedness, winding-up, dissolution, administration or re-organisation of any member of the Group under UAE Federal Decree-Law No. 51 of 2023 or the DIFC Insolvency Law.
- 23.9 Cessation of business: any Obligor suspends or ceases to carry on all or a material part of its business.

- 23.10 Material adverse change: any event or circumstance occurs which the Lender reasonably believes has or is reasonably likely to have a Material Adverse Effect.
- 23.11 Acceleration: on and at any time after the occurrence of an Event of Default which is continuing the Lender may by notice to the Borrower cancel the Commitment, declare that all or part of the Loans, together with accrued interest and all other amounts accrued under the Finance Documents, be immediately due and payable, and exercise any or all of its rights, remedies, powers or discretions under the Finance Documents.
- 23.12 The Borrower confirms that the information supplied to the Lender in relation to events of default was, at the date it was supplied, true, complete and accurate in all material respects. The Lender may, acting reasonably, request such further information in connection with events of default as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 23.13 Any step taken by the Lender in relation to events of default in accordance with this Clause 23 shall be without prejudice to any other right or remedy available to it under the Finance Documents. For the avoidance of doubt, the provisions of this Clause 23 concerning events of default apply equally to any Loan made before the date on which the relevant provision first applies.
- 23.14 Any period of grace in relation to events of default shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. Where this Clause 23 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 23.15 If any Obligor is in doubt as to whether a proposed action relating to events of default is permitted under this Clause 23, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any reference in this Clause 23 to a person taking a step in relation to events of default includes that person procuring that the step is taken by another member of the Group.
- 23.16 The rights of the Lender under this Clause 23 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. No waiver given by the Lender in relation to events of default on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 23.17 The Lender shall act reasonably and in a timely manner in responding to any request relating to events of default made by an Obligor under this Clause 23. References in this Clause 23 to a document relating to events of default being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.

- 23.18 For the purposes of this Clause 23, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Each Obligor shall execute such further documents and do such further acts in relation to events of default as the Lender may reasonably require to give full effect to this Clause 23.
- 23.19 If there is any inconsistency between this Clause 23 and any other provision of the Finance Documents relating to events of default, this Clause 23 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. The Lender shall be entitled to rely on any certificate delivered in connection with events of default without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 23.20 Any determination required to be made by the Lender under this Clause 23 shall be made in good faith and, where expressed to be reasonable, by reference to the events of default practice then prevailing among leading banks in the United Arab Emirates. The parties acknowledge that the time periods set out in this Clause 23 in relation to events of default are of the essence, save where this Agreement expressly provides otherwise.
- 23.21 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 23 in relation to events of default, including any fee payable to the Dubai Land Department or the relevant free zone authority. Any calculation in connection with events of default shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 23.22 In determining whether a matter relating to events of default is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any amount payable under this Clause 23 in connection with events of default shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 23.23 The obligations of each Obligor under this Clause 23 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to events of default. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to events of default requested by it under this Clause 23, save as otherwise expressly provided.
- 23.24 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 23 where it is satisfied that the delay in relation to events of default results from circumstances outside the control of the relevant Obligor. Any amount which an Obligor is required to pay under this Clause 23 in relation to events of default shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.

- 23.25 Nothing in this Clause 23 shall oblige the Lender to take any action in relation to events of default which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Where any step relating to events of default requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 23.26 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to events of default directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to events of default which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 23.27 If the Lender requests any document relating to events of default in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. The Borrower acknowledges that the provisions of this Clause 23 relating to events of default have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 23.28 Each of the obligations of the Obligors in this Clause 23 relating to events of default shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Nothing in this Clause 23 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with events of default.
- 23.29 Any notice, request or certificate delivered in connection with this Clause 23 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Borrower shall procure that each member of the Group complies with this Clause 23 in relation to events of default as if references to the Borrower were references to that member of the Group.
- 23.30 In relation to events of default, references in this Clause 23 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The parties agree that, in the context of events of default, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 23.31 A certificate of the Lender setting out any amount payable in connection with events of default shall, in the absence of manifest error, be conclusive evidence of that amount. The Lender may delegate any of its rights or discretions under this Clause 23 in relation to events of default to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

- 23.32 The rights of the Lender under this Clause 23 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 23 where it is satisfied that the delay in relation to events of default results from circumstances outside the control of the relevant Obligor.
- 23.33 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 23 in relation to events of default, including any fee payable to the Dubai Land Department or the relevant free zone authority. Nothing in this Clause 23 shall oblige the Lender to take any action in relation to events of default which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 23.34 If there is any inconsistency between this Clause 23 and any other provision of the Finance Documents relating to events of default, this Clause 23 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Any determination required to be made by the Lender under this Clause 23 shall be made in good faith and, where expressed to be reasonable, by reference to the events of default practice then prevailing among leading banks in the United Arab Emirates.
- 23.35 In determining whether a matter relating to events of default is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Where this Clause 23 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.

24. CHANGES TO THE LENDER

- 24.1 The Lender may assign any of its rights or transfer by novation any of its rights and obligations to another bank or financial institution, provided that the consent of the Borrower (not to be unreasonably withheld or delayed, and deemed given if not refused within ten (10) Business Days) is required unless an Event of Default is continuing or the transfer is to an Affiliate of the Lender.
- 24.2 The Lender may disclose to any actual or potential assignee or transferee such information about any Obligor and the Finance Documents as the Lender considers appropriate, provided that the recipient has entered into a confidentiality undertaking.
- 24.3 The Borrower shall procure that each member of the Group complies with this Clause 24 in relation to changes to the lender as if references to the Borrower were references to that member of the Group. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to changes to the lender which could reasonably be expected to affect its

ability to perform its obligations under the Finance Documents.

- 24.4 For the avoidance of doubt, the provisions of this Clause 24 concerning changes to the lender apply equally to any Loan made before the date on which the relevant provision first applies. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to changes to the lender requested by it under this Clause 24, save as otherwise expressly provided.
- 24.5 Each of the obligations of the Obligors in this Clause 24 relating to changes to the lender shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Any reference in this Clause 24 to a person taking a step in relation to changes to the lender includes that person procuring that the step is taken by another member of the Group.
- 24.6 The Lender may delegate any of its rights or discretions under this Clause 24 in relation to changes to the lender to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Any calculation in connection with changes to the lender shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 24.7 If the Lender requests any document relating to changes to the lender in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Any notice, request or certificate delivered in connection with this Clause 24 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 24.8 Any amount which an Obligor is required to pay under this Clause 24 in relation to changes to the lender shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The parties acknowledge that the time periods set out in this Clause 24 in relation to changes to the lender are of the essence, save where this Agreement expressly provides otherwise.
- 24.9 If any Obligor is in doubt as to whether a proposed action relating to changes to the lender is permitted under this Clause 24, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. The obligations of each Obligor under this Clause 24 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to changes to the lender.
- 24.10 Nothing in this Clause 24 shall oblige the Lender to take any action in relation to changes to the lender which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. In relation to changes to the lender, references in this Clause 24 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it

becomes a member of the Group.

- 24.11 The rights of the Lender under this Clause 24 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any amount payable under this Clause 24 in connection with changes to the lender shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 24.12 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 24 in relation to changes to the lender, including any fee payable to the Dubai Land Department or the relevant free zone authority. A certificate of the Lender setting out any amount payable in connection with changes to the lender shall, in the absence of manifest error, be conclusive evidence of that amount.
- 24.13 References in this Clause 24 to a document relating to changes to the lender being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to changes to the lender directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 24.14 Where any step relating to changes to the lender requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. No waiver given by the Lender in relation to changes to the lender on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 24.15 In determining whether a matter relating to changes to the lender is adverse, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Nothing in this Clause 24 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with changes to the lender.
- 24.16 Where this Clause 24 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The Borrower acknowledges that the provisions of this Clause 24 relating to changes to the lender have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 24.17 The parties agree that, in the context of changes to the lender, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Each Obligor shall execute such further documents and do such further acts in relation to changes to the lender as the Lender may reasonably require to give

full effect to this Clause 24.

- 24.18 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 24 where it is satisfied that the delay in relation to changes to the lender results from circumstances outside the control of the relevant Obligor. The Lender shall be entitled to rely on any certificate delivered in connection with changes to the lender without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 24.19 Any step taken by the Lender in relation to changes to the lender in accordance with this Clause 24 shall be without prejudice to any other right or remedy available to it under the Finance Documents. Any period of grace in relation to changes to the lender shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 24.20 The Lender may, acting reasonably, request such further information in connection with changes to the lender as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. The Borrower confirms that the information supplied to the Lender in relation to changes to the lender was, at the date it was supplied, true, complete and accurate in all material respects.
- 24.21 For the purposes of this Clause 24, any reference to a matter being continuing shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. If there is any inconsistency between this Clause 24 and any other provision of the Finance Documents relating to changes to the lender, this Clause 24 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 24.22 Any determination required to be made by the Lender under this Clause 24 shall be made in good faith and, where expressed to be reasonable, by reference to the changes to the lender practice then prevailing among leading banks in the United Arab Emirates. The Lender shall act reasonably and in a timely manner in responding to any request relating to changes to the lender made by an Obligor under this Clause 24.
- 24.23 Nothing in this Clause 24 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with changes to the lender. The obligations of each Obligor under this Clause 24 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to changes to the lender.
- 24.24 Any reference in this Clause 24 to a person taking a step in relation to changes to the lender includes that person procuring that the step is taken by another member of the Group. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to changes to the lender directly with the Lender, provided that the Lender shall give the

Borrower reasonable notice of any such discussion.

24.25 Each Obligor shall execute such further documents and do such further acts in relation to changes to the lender as the Lender may reasonably require to give full effect to this Clause 24. Any step taken by the Lender in relation to changes to the lender in accordance with this Clause 24 shall be without prejudice to any other right or remedy available to it under the Finance Documents.

24.26 The parties acknowledge that the time periods set out in this Clause 24 in relation to changes to the lender are of the essence, save where this Agreement expressly provides otherwise. The Borrower confirms that the information supplied to the Lender in relation to changes to the lender was, at the date it was supplied, true, complete and accurate in all material respects.

25. CHANGES TO THE OBLIGORS

25.1 No Obligor may assign any of its rights or transfer any of its rights or obligations under the Finance Documents.

25.2 The Borrower confirms that the information supplied to the Lender in relation to changes to the obligors was, at the date it was supplied, true, complete and accurate in all material respects. The parties agree that, in the context of changes to the obligors, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.

25.3 The obligations of each Obligor under this Clause 25 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to changes to the obligors. The Lender shall act reasonably and in a timely manner in responding to any request relating to changes to the obligors made by an Obligor under this Clause 25.

25.4 The Lender may, acting reasonably, request such further information in connection with changes to the obligors as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Nothing in this Clause 25 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with changes to the obligors.

25.5 The parties acknowledge that the time periods set out in this Clause 25 in relation to changes to the obligors are of the essence, save where this Agreement expressly provides otherwise. Any calculation in connection with changes to the obligors shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.

25.6 Where this Clause 25 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The Borrower shall procure that its

auditors are authorised, at the cost of the Borrower, to discuss matters relating to changes to the obligors directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.

- 25.7 The rights of the Lender under this Clause 25 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. For the avoidance of doubt, the provisions of this Clause 25 concerning changes to the obligors apply equally to any Loan made before the date on which the relevant provision first applies.
- 25.8 Any amount which an Obligor is required to pay under this Clause 25 in relation to changes to the obligors shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Any determination required to be made by the Lender under this Clause 25 shall be made in good faith and, where expressed to be reasonable, by reference to the changes to the obligors practice then prevailing among leading banks in the United Arab Emirates.
- 25.9 A certificate of the Lender setting out any amount payable in connection with changes to the obligors shall, in the absence of manifest error, be conclusive evidence of that amount. Any period of grace in relation to changes to the obligors shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 25.10 For the purposes of this Clause 25, any reference to a matter being reasonable shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 25 in relation to changes to the obligors, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 25.11 Nothing in this Clause 25 shall oblige the Lender to take any action in relation to changes to the obligors which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to changes to the obligors which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 25.12 Any notice, request or certificate delivered in connection with this Clause 25 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). In determining whether a matter relating to changes to the obligors is customary, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 25.13 Where any step relating to changes to the obligors requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall

apply for that approval within ten (10) Business Days and diligently pursue it. Each Obligor shall execute such further documents and do such further acts in relation to changes to the obligors as the Lender may reasonably require to give full effect to this Clause 25.

- 25.14 If there is any inconsistency between this Clause 25 and any other provision of the Finance Documents relating to changes to the obligors, this Clause 25 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. If any Obligor is in doubt as to whether a proposed action relating to changes to the obligors is permitted under this Clause 25, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 25.15 Any reference in this Clause 25 to a person taking a step in relation to changes to the obligors includes that person procuring that the step is taken by another member of the Group. The Borrower acknowledges that the provisions of this Clause 25 relating to changes to the obligors have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 25.16 If the Lender requests any document relating to changes to the obligors in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Each of the obligations of the Obligors in this Clause 25 relating to changes to the obligors shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 25.17 References in this Clause 25 to a document relating to changes to the obligors being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to changes to the obligors requested by it under this Clause 25, save as otherwise expressly provided.
- 25.18 In relation to changes to the obligors, references in this Clause 25 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Any step taken by the Lender in relation to changes to the obligors in accordance with this Clause 25 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 25.19 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 25 where it is satisfied that the delay in relation to changes to the obligors results from circumstances outside the control of the relevant Obligor. Any amount payable under this Clause 25 in connection with changes to the obligors shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 25.20 The Borrower shall procure that each member of the Group complies with this Clause 25 in relation to changes to the obligors as if references to the

Borrower were references to that member of the Group. No waiver given by the Lender in relation to changes to the obligors on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.

25.21 The Lender shall be entitled to rely on any certificate delivered in connection with changes to the obligors without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Lender may delegate any of its rights or discretions under this Clause 25 in relation to changes to the obligors to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

25.22 Any determination required to be made by the Lender under this Clause 25 shall be made in good faith and, where expressed to be reasonable, by reference to the changes to the obligors practice then prevailing among leading banks in the United Arab Emirates. The Borrower acknowledges that the provisions of this Clause 25 relating to changes to the obligors have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

25.23 Where any step relating to changes to the obligors requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The Lender may delegate any of its rights or discretions under this Clause 25 in relation to changes to the obligors to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

25.24 References in this Clause 25 to a document relating to changes to the obligors being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. If the Lender requests any document relating to changes to the obligors in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.

25.25 Where this Clause 25 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. For the purposes of this Clause 25, any reference to a matter being reasonable shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.

26. CONDUCT OF BUSINESS BY THE LENDER

26.1 No provision of this Agreement will interfere with the right of the Lender to arrange its affairs (tax or otherwise) in whatever manner it thinks fit, or oblige the Lender to disclose any information relating to its affairs (tax or otherwise) or any computations in respect of Tax.

26.2 References in this Clause 26 to a document relating to conduct of business by the lender being in agreed form are references to that document in the form

agreed by the Borrower and the Lender and initialled for the purposes of identification. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 26 where it is satisfied that the delay in relation to conduct of business by the lender results from circumstances outside the control of the relevant Obligor.

- 26.3 Any period of grace in relation to conduct of business by the lender shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Lender may delegate any of its rights or discretions under this Clause 26 in relation to conduct of business by the lender to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 26.4 Nothing in this Clause 26 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with conduct of business by the lender. A certificate of the Lender setting out any amount payable in connection with conduct of business by the lender shall, in the absence of manifest error, be conclusive evidence of that amount.
- 26.5 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to conduct of business by the lender requested by it under this Clause 26, save as otherwise expressly provided. The Lender may, acting reasonably, request such further information in connection with conduct of business by the lender as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 26.6 The Borrower acknowledges that the provisions of this Clause 26 relating to conduct of business by the lender have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to conduct of business by the lender directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 26.7 Each Obligor shall execute such further documents and do such further acts in relation to conduct of business by the lender as the Lender may reasonably require to give full effect to this Clause 26. Any calculation in connection with conduct of business by the lender shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 26.8 The rights of the Lender under this Clause 26 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Where this Clause 26 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 26.9 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 26 in relation to conduct of business by the lender, including any fee payable to the Dubai Land

Department or the relevant free zone authority. Any notice, request or certificate delivered in connection with this Clause 26 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).

- 26.10 Any determination required to be made by the Lender under this Clause 26 shall be made in good faith and, where expressed to be reasonable, by reference to the conduct of business by the lender practice then prevailing among leading banks in the United Arab Emirates. The parties agree that, in the context of conduct of business by the lender, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 26.11 Any reference in this Clause 26 to a person taking a step in relation to conduct of business by the lender includes that person procuring that the step is taken by another member of the Group. If any Obligor is in doubt as to whether a proposed action relating to conduct of business by the lender is permitted under this Clause 26, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 26.12 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to conduct of business by the lender which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. No waiver given by the Lender in relation to conduct of business by the lender on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 26.13 The obligations of each Obligor under this Clause 26 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to conduct of business by the lender. For the purposes of this Clause 26, any reference to a matter being customary shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 26.14 Any step taken by the Lender in relation to conduct of business by the lender in accordance with this Clause 26 shall be without prejudice to any other right or remedy available to it under the Finance Documents. The Lender shall be entitled to rely on any certificate delivered in connection with conduct of business by the lender without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 26.15 The Borrower shall procure that each member of the Group complies with this Clause 26 in relation to conduct of business by the lender as if references to the Borrower were references to that member of the Group. Where any step relating to conduct of business by the lender requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.

- 26.16 For the avoidance of doubt, the provisions of this Clause 26 concerning conduct of business by the lender apply equally to any Loan made before the date on which the relevant provision first applies. The parties acknowledge that the time periods set out in this Clause 26 in relation to conduct of business by the lender are of the essence, save where this Agreement expressly provides otherwise.
- 26.17 The Lender shall act reasonably and in a timely manner in responding to any request relating to conduct of business by the lender made by an Obligor under this Clause 26. If there is any inconsistency between this Clause 26 and any other provision of the Finance Documents relating to conduct of business by the lender, this Clause 26 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 26.18 Each of the obligations of the Obligors in this Clause 26 relating to conduct of business by the lender shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Any amount which an Obligor is required to pay under this Clause 26 in relation to conduct of business by the lender shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 26.19 Any amount payable under this Clause 26 in connection with conduct of business by the lender shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Nothing in this Clause 26 shall oblige the Lender to take any action in relation to conduct of business by the lender which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 26.20 In determining whether a matter relating to conduct of business by the lender is material, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. If the Lender requests any document relating to conduct of business by the lender in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 26.21 In relation to conduct of business by the lender, references in this Clause 26 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Borrower confirms that the information supplied to the Lender in relation to conduct of business by the lender was, at the date it was supplied, true, complete and accurate in all material respects.
- 26.22 The Lender shall act reasonably and in a timely manner in responding to any request relating to conduct of business by the lender made by an Obligor under this Clause 26. Any period of grace in relation to conduct of business by the lender shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.

- 26.23 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to conduct of business by the lender which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Lender may delegate any of its rights or discretions under this Clause 26 in relation to conduct of business by the lender to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 26.24 For the purposes of this Clause 26, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Lender shall be entitled to rely on any certificate delivered in connection with conduct of business by the lender without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 26.25 For the avoidance of doubt, the provisions of this Clause 26 concerning conduct of business by the lender apply equally to any Loan made before the date on which the relevant provision first applies. References in this Clause 26 to a document relating to conduct of business by the lender being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.

27. PAYMENT MECHANICS

- 27.1 On each date on which an Obligor is required to make a payment under a Finance Document, that Obligor shall make the same available to the Lender for value on the due date at the time and in such funds specified by the Lender as being customary at the time for settlement of transactions in UAE dirhams.
- 27.2 All payments to be made by an Obligor under the Finance Documents shall be calculated and be made without (and free and clear of any deduction for) set-off or counterclaim.
- 27.3 Any interest, commission or fee accruing under a Finance Document will accrue from day to day and is calculated on the basis of the actual number of days elapsed and a year of 360 days.
- 27.4 Any period of grace in relation to payment mechanics shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Lender may delegate any of its rights or discretions under this Clause 27 in relation to payment mechanics to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 27.5 A certificate of the Lender setting out any amount payable in connection with payment mechanics shall, in the absence of manifest error, be conclusive evidence of that amount. In determining whether a matter relating to payment mechanics is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.

- 27.6 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to payment mechanics requested by it under this Clause 27, save as otherwise expressly provided. Any amount which an Obligor is required to pay under this Clause 27 in relation to payment mechanics shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 27.7 The Lender may, acting reasonably, request such further information in connection with payment mechanics as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Any reference in this Clause 27 to a person taking a step in relation to payment mechanics includes that person procuring that the step is taken by another member of the Group.
- 27.8 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to payment mechanics which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Any step taken by the Lender in relation to payment mechanics in accordance with this Clause 27 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 27.9 The obligations of each Obligor under this Clause 27 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to payment mechanics. If there is any inconsistency between this Clause 27 and any other provision of the Finance Documents relating to payment mechanics, this Clause 27 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 27.10 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 27 where it is satisfied that the delay in relation to payment mechanics results from circumstances outside the control of the relevant Obligor. The parties agree that, in the context of payment mechanics, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 27.11 The Borrower acknowledges that the provisions of this Clause 27 relating to payment mechanics have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. No waiver given by the Lender in relation to payment mechanics on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 27.12 For the avoidance of doubt, the provisions of this Clause 27 concerning payment mechanics apply equally to any Loan made before the date on which the relevant provision first applies. Each of the obligations of the Obligors in this Clause 27 relating to payment mechanics shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.

- 27.13 The parties acknowledge that the time periods set out in this Clause 27 in relation to payment mechanics are of the essence, save where this Agreement expressly provides otherwise. Nothing in this Clause 27 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with payment mechanics.
- 27.14 The Lender shall be entitled to rely on any certificate delivered in connection with payment mechanics without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Any notice, request or certificate delivered in connection with this Clause 27 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 27.15 Each Obligor shall execute such further documents and do such further acts in relation to payment mechanics as the Lender may reasonably require to give full effect to this Clause 27. The Lender shall act reasonably and in a timely manner in responding to any request relating to payment mechanics made by an Obligor under this Clause 27.
- 27.16 The Borrower shall procure that each member of the Group complies with this Clause 27 in relation to payment mechanics as if references to the Borrower were references to that member of the Group. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 27 in relation to payment mechanics, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 27.17 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to payment mechanics directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. References in this Clause 27 to a document relating to payment mechanics being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 27.18 Where any step relating to payment mechanics requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The rights of the Lender under this Clause 27 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 27.19 The Borrower confirms that the information supplied to the Lender in relation to payment mechanics was, at the date it was supplied, true, complete and accurate in all material respects. Where this Clause 27 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 27.20 Any determination required to be made by the Lender under this Clause 27 shall be made in good faith and, where expressed to be reasonable, by

reference to the payment mechanics practice then prevailing among leading banks in the United Arab Emirates. Any calculation in connection with payment mechanics shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.

- 27.21 Nothing in this Clause 27 shall oblige the Lender to take any action in relation to payment mechanics which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. For the purposes of this Clause 27, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 27.22 If any Obligor is in doubt as to whether a proposed action relating to payment mechanics is permitted under this Clause 27, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. If the Lender requests any document relating to payment mechanics in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 27.23 In relation to payment mechanics, references in this Clause 27 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Any amount payable under this Clause 27 in connection with payment mechanics shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 27.24 Nothing in this Clause 27 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with payment mechanics. The Lender shall act reasonably and in a timely manner in responding to any request relating to payment mechanics made by an Obligor under this Clause 27.
- 27.25 The Borrower acknowledges that the provisions of this Clause 27 relating to payment mechanics have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. If there is any inconsistency between this Clause 27 and any other provision of the Finance Documents relating to payment mechanics, this Clause 27 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 27.26 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 27 where it is satisfied that the delay in relation to payment mechanics results from circumstances outside the control of the relevant Obligor. The obligations of each Obligor under this Clause 27 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to payment mechanics.
- 27.27 The parties agree that, in the context of payment mechanics, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Any de-

termination required to be made by the Lender under this Clause 27 shall be made in good faith and, where expressed to be reasonable, by reference to the payment mechanics practice then prevailing among leading banks in the United Arab Emirates.

28. SET-OFF

- 28.1 The Lender may set off any matured obligation due from an Obligor under the Finance Documents against any matured obligation owed by the Lender to that Obligor, regardless of the place of payment, booking branch or currency of either obligation.
- 28.2 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 28 in relation to set-off, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower shall procure that each member of the Group complies with this Clause 28 in relation to set-off as if references to the Borrower were references to that member of the Group.
- 28.3 If the Lender requests any document relating to set-off in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. The obligations of each Obligor under this Clause 28 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to set-off.
- 28.4 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to set-off requested by it under this Clause 28, save as otherwise expressly provided. If there is any inconsistency between this Clause 28 and any other provision of the Finance Documents relating to set-off, this Clause 28 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 28.5 In determining whether a matter relating to set-off is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. The Lender shall act reasonably and in a timely manner in responding to any request relating to set-off made by an Obligor under this Clause 28.
- 28.6 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to set-off which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Any determination required to be made by the Lender under this Clause 28 shall be made in good faith and, where expressed to be reasonable, by reference to the set-off practice then prevailing among leading banks in the United Arab Emirates.
- 28.7 Each of the obligations of the Obligors in this Clause 28 relating to set-off shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. The rights of the Lender under this Clause 28 are cumulative and are in addition to, and not in substitution for, any

rights it may have under general law or under any other Finance Document.

- 28.8 Where any step relating to set-off requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. References in this Clause 28 to a document relating to set-off being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 28.9 Where this Clause 28 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. For the purposes of this Clause 28, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 28.10 The parties agree that, in the context of set-off, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The parties acknowledge that the time periods set out in this Clause 28 in relation to set-off are of the essence, save where this Agreement expressly provides otherwise.
- 28.11 Any amount which an Obligor is required to pay under this Clause 28 in relation to set-off shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Borrower acknowledges that the provisions of this Clause 28 relating to set-off have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 28.12 Any notice, request or certificate delivered in connection with this Clause 28 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to set-off directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 28.13 For the avoidance of doubt, the provisions of this Clause 28 concerning set-off apply equally to any Loan made before the date on which the relevant provision first applies. Any amount payable under this Clause 28 in connection with set-off shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 28.14 Each Obligor shall execute such further documents and do such further acts in relation to set-off as the Lender may reasonably require to give full effect to this Clause 28. The Lender may, acting reasonably, request such further information in connection with set-off as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.

- 28.15 Nothing in this Clause 28 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with set-off. Any reference in this Clause 28 to a person taking a step in relation to set-off includes that person procuring that the step is taken by another member of the Group.
- 28.16 A certificate of the Lender setting out any amount payable in connection with set-off shall, in the absence of manifest error, be conclusive evidence of that amount. Any period of grace in relation to set-off shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 28.17 If any Obligor is in doubt as to whether a proposed action relating to set-off is permitted under this Clause 28, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. The Borrower confirms that the information supplied to the Lender in relation to set-off was, at the date it was supplied, true, complete and accurate in all material respects.
- 28.18 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 28 where it is satisfied that the delay in relation to set-off results from circumstances outside the control of the relevant Obligor. Any calculation in connection with set-off shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 28.19 The Lender may delegate any of its rights or discretions under this Clause 28 in relation to set-off to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Nothing in this Clause 28 shall oblige the Lender to take any action in relation to set-off which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 28.20 Any step taken by the Lender in relation to set-off in accordance with this Clause 28 shall be without prejudice to any other right or remedy available to it under the Finance Documents. No waiver given by the Lender in relation to set-off on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 28.21 In relation to set-off, references in this Clause 28 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Lender shall be entitled to rely on any certificate delivered in connection with set-off without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 28.22 Any calculation in connection with set-off shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Any reference in this Clause 28 to a person taking a step in relation to

set-off includes that person procuring that the step is taken by another member of the Group.

28.23 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to set-off requested by it under this Clause 28, save as otherwise expressly provided. The Borrower acknowledges that the provisions of this Clause 28 relating to set-off have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

28.24 The Lender may, acting reasonably, request such further information in connection with set-off as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to set-off which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.

28.25 Any notice, request or certificate delivered in connection with this Clause 28 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 28 where it is satisfied that the delay in relation to set-off results from circumstances outside the control of the relevant Obligor.

29. NOTICES

29.1 Any communication to be made under or in connection with the Finance Documents shall be made in writing and, unless otherwise stated, may be made by email or letter.

29.2 The address and email address of the Borrower for any communication is: Al Noor Trading L.L.C., Office 1407, Al Saqr Business Tower, Sheikh Zayed Road, Dubai, United Arab Emirates; email: treasury@alnoor-trading.example; for the attention of: Chief Financial Officer.

29.3 The address and email address of the Lender for any communication is: Gulf Meridian Bank P.J.S.C., Corporate Banking Division, Level 9, Gate Precinct Building 4, DIFC, Dubai, United Arab Emirates; email: corporate.agency@gulfmeridian.example; for the attention of: Head of Loan Administration.

29.4 Any communication made by email will be effective only when actually received in readable form and, if received after 5.00 p.m. Dubai time, shall be deemed received on the next Business Day.

29.5 The parties acknowledge that the time periods set out in this Clause 29 in relation to notices are of the essence, save where this Agreement expressly provides otherwise. For the avoidance of doubt, the provisions of this Clause 29 concerning notices apply equally to any Loan made before the date on which the relevant provision first applies.

- 29.6 In determining whether a matter relating to notices is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any period of grace in relation to notices shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 29.7 The parties agree that, in the context of notices, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The Borrower acknowledges that the provisions of this Clause 29 relating to notices have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 29.8 The rights of the Lender under this Clause 29 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. In relation to notices, references in this Clause 29 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 29.9 The Lender shall be entitled to rely on any certificate delivered in connection with notices without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Borrower shall procure that each member of the Group complies with this Clause 29 in relation to notices as if references to the Borrower were references to that member of the Group.
- 29.10 The Lender may, acting reasonably, request such further information in connection with notices as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Any notice, request or certificate delivered in connection with this Clause 29 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 29.11 Any amount payable under this Clause 29 in connection with notices shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Each of the obligations of the Obligors in this Clause 29 relating to notices shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 29.12 Nothing in this Clause 29 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with notices. The Lender may delegate any of its rights or discretions under this Clause 29 in relation to notices to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 29.13 Any step taken by the Lender in relation to notices in accordance with this Clause 29 shall be without prejudice to any other right or remedy available to it under the Finance Documents. References in this Clause 29 to a document

relating to notices being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.

- 29.14 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 29 where it is satisfied that the delay in relation to notices results from circumstances outside the control of the relevant Obligor. Any amount which an Obligor is required to pay under this Clause 29 in relation to notices shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 29.15 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to notices directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Where this Clause 29 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 29.16 The obligations of each Obligor under this Clause 29 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to notices. The Borrower confirms that the information supplied to the Lender in relation to notices was, at the date it was supplied, true, complete and accurate in all material respects.
- 29.17 Any calculation in connection with notices shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. Any reference in this Clause 29 to a person taking a step in relation to notices includes that person procuring that the step is taken by another member of the Group.
- 29.18 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 29 in relation to notices, including any fee payable to the Dubai Land Department or the relevant free zone authority. No waiver given by the Lender in relation to notices on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 29.19 For the purposes of this Clause 29, any reference to a matter being reasonable shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to notices requested by it under this Clause 29, save as otherwise expressly provided.
- 29.20 Each Obligor shall execute such further documents and do such further acts in relation to notices as the Lender may reasonably require to give full effect to

this Clause 29. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to notices which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.

- 29.21 If there is any inconsistency between this Clause 29 and any other provision of the Finance Documents relating to notices, this Clause 29 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. A certificate of the Lender setting out any amount payable in connection with notices shall, in the absence of manifest error, be conclusive evidence of that amount.
- 29.22 Where any step relating to notices requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. If the Lender requests any document relating to notices in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 29.23 Any determination required to be made by the Lender under this Clause 29 shall be made in good faith and, where expressed to be reasonable, by reference to the notices practice then prevailing among leading banks in the United Arab Emirates. If any Obligor is in doubt as to whether a proposed action relating to notices is permitted under this Clause 29, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 29.24 Nothing in this Clause 29 shall oblige the Lender to take any action in relation to notices which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The Lender shall act reasonably and in a timely manner in responding to any request relating to notices made by an Obligor under this Clause 29.
- 29.25 The Lender shall be entitled to rely on any certificate delivered in connection with notices without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Any period of grace in relation to notices shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 29.26 References in this Clause 29 to a document relating to notices being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Any amount payable under this Clause 29 in connection with notices shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 29.27 Any step taken by the Lender in relation to notices in accordance with this Clause 29 shall be without prejudice to any other right or remedy available to it under the Finance Documents. If there is any inconsistency between this Clause 29 and any other provision of the Finance Documents relating to notices, this Clause 29 shall prevail to the extent of that inconsistency, save

where the other provision expressly states otherwise.

- 29.28 The Lender may, acting reasonably, request such further information in connection with notices as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. For the avoidance of doubt, the provisions of this Clause 29 concerning notices apply equally to any Loan made before the date on which the relevant provision first applies.

30. CALCULATIONS AND CERTIFICATES

- 30.1 In any litigation or arbitration proceedings arising out of or in connection with a Finance Document, the entries made in the accounts maintained by the Lender are prima facie evidence of the matters to which they relate.
- 30.2 Any certification or determination by the Lender of a rate or amount under any Finance Document is, in the absence of manifest error, conclusive evidence of the matters to which it relates.
- 30.3 The obligations of each Obligor under this Clause 30 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to calculations and certificates. Nothing in this Clause 30 shall oblige the Lender to take any action in relation to calculations and certificates which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 30.4 Nothing in this Clause 30 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with calculations and certificates. Where any step relating to calculations and certificates requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 30.5 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 30 in relation to calculations and certificates, including any fee payable to the Dubai Land Department or the relevant free zone authority. Any amount which an Obligor is required to pay under this Clause 30 in relation to calculations and certificates shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 30.6 If any Obligor is in doubt as to whether a proposed action relating to calculations and certificates is permitted under this Clause 30, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. The parties acknowledge that the time periods set out in this Clause 30 in relation to calculations and certificates are of the essence, save where this Agreement expressly provides otherwise.
- 30.7 Any amount payable under this Clause 30 in connection with calculations and certificates shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The parties agree that, in the

context of calculations and certificates, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.

- 30.8 For the avoidance of doubt, the provisions of this Clause 30 concerning calculations and certificates apply equally to any Loan made before the date on which the relevant provision first applies. Each of the obligations of the Obligor in this Clause 30 relating to calculations and certificates shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 30.9 If the Lender requests any document relating to calculations and certificates in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Any step taken by the Lender in relation to calculations and certificates in accordance with this Clause 30 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 30.10 The Lender shall be entitled to rely on any certificate delivered in connection with calculations and certificates without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Lender shall act reasonably and in a timely manner in responding to any request relating to calculations and certificates made by an Obligor under this Clause 30.
- 30.11 References in this Clause 30 to a document relating to calculations and certificates being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 30 where it is satisfied that the delay in relation to calculations and certificates results from circumstances outside the control of the relevant Obligor.
- 30.12 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to calculations and certificates requested by it under this Clause 30, save as otherwise expressly provided. The rights of the Lender under this Clause 30 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 30.13 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to calculations and certificates which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Where this Clause 30 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 30.14 In relation to calculations and certificates, references in this Clause 30 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. For the purposes of this Clause 30, any reference to a

matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.

- 30.15 Each Obligor shall execute such further documents and do such further acts in relation to calculations and certificates as the Lender may reasonably require to give full effect to this Clause 30. The Borrower confirms that the information supplied to the Lender in relation to calculations and certificates was, at the date it was supplied, true, complete and accurate in all material respects.
- 30.16 The Borrower shall procure that each member of the Group complies with this Clause 30 in relation to calculations and certificates as if references to the Borrower were references to that member of the Group. Any determination required to be made by the Lender under this Clause 30 shall be made in good faith and, where expressed to be reasonable, by reference to the calculations and certificates practice then prevailing among leading banks in the United Arab Emirates.
- 30.17 Any notice, request or certificate delivered in connection with this Clause 30 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). Any calculation in connection with calculations and certificates shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 30.18 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to calculations and certificates directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. If there is any inconsistency between this Clause 30 and any other provision of the Finance Documents relating to calculations and certificates, this Clause 30 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 30.19 Any period of grace in relation to calculations and certificates shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The Borrower acknowledges that the provisions of this Clause 30 relating to calculations and certificates have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 30.20 Any reference in this Clause 30 to a person taking a step in relation to calculations and certificates includes that person procuring that the step is taken by another member of the Group. No waiver given by the Lender in relation to calculations and certificates on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 30.21 The Lender may, acting reasonably, request such further information in connection with calculations and certificates as it may require from time to time, and the Borrower shall supply that information within ten (10) Business

Days of the request. A certificate of the Lender setting out any amount payable in connection with calculations and certificates shall, in the absence of manifest error, be conclusive evidence of that amount.

30.22 In determining whether a matter relating to calculations and certificates is satisfactory, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. The Lender may delegate any of its rights or discretions under this Clause 30 in relation to calculations and certificates to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

30.23 The Lender may, acting reasonably, request such further information in connection with calculations and certificates as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. If the Lender requests any document relating to calculations and certificates in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.

30.24 Nothing in this Clause 30 shall oblige the Lender to take any action in relation to calculations and certificates which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. In relation to calculations and certificates, references in this Clause 30 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.

30.25 The Lender may delegate any of its rights or discretions under this Clause 30 in relation to calculations and certificates to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. The Borrower acknowledges that the provisions of this Clause 30 relating to calculations and certificates have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

30.26 If there is any inconsistency between this Clause 30 and any other provision of the Finance Documents relating to calculations and certificates, this Clause 30 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. The Borrower shall procure that each member of the Group complies with this Clause 30 in relation to calculations and certificates as if references to the Borrower were references to that member of the Group.

31. PARTIAL INVALIDITY

31.1 If, at any time, any provision of a Finance Document is or becomes illegal, invalid or unenforceable in any respect under any law of any jurisdiction, neither the legality, validity or enforceability of the remaining provisions nor the legality, validity or enforceability of such provision under the law of any other jurisdiction will in any way be affected or impaired.

- 31.2 The Borrower acknowledges that the provisions of this Clause 31 relating to partial invalidity have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 31 where it is satisfied that the delay in relation to partial invalidity results from circumstances outside the control of the relevant Obligor.
- 31.3 If any Obligor is in doubt as to whether a proposed action relating to partial invalidity is permitted under this Clause 31, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. The Lender shall be entitled to rely on any certificate delivered in connection with partial invalidity without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 31.4 The rights of the Lender under this Clause 31 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Any reference in this Clause 31 to a person taking a step in relation to partial invalidity includes that person procuring that the step is taken by another member of the Group.
- 31.5 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 31 in relation to partial invalidity, including any fee payable to the Dubai Land Department or the relevant free zone authority. Any step taken by the Lender in relation to partial invalidity in accordance with this Clause 31 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 31.6 No waiver given by the Lender in relation to partial invalidity on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Each Obligor shall execute such further documents and do such further acts in relation to partial invalidity as the Lender may reasonably require to give full effect to this Clause 31.
- 31.7 The parties acknowledge that the time periods set out in this Clause 31 in relation to partial invalidity are of the essence, save where this Agreement expressly provides otherwise. Each of the obligations of the Obligors in this Clause 31 relating to partial invalidity shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 31.8 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to partial invalidity which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to partial invalidity requested by it under this Clause 31, save as otherwise expressly provided.
- 31.9 Where any step relating to partial invalidity requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall

apply for that approval within ten (10) Business Days and diligently pursue it. Any notice, request or certificate delivered in connection with this Clause 31 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).

- 31.10 The Lender shall act reasonably and in a timely manner in responding to any request relating to partial invalidity made by an Obligor under this Clause 31. The Borrower confirms that the information supplied to the Lender in relation to partial invalidity was, at the date it was supplied, true, complete and accurate in all material respects.
- 31.11 Where this Clause 31 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. The Lender may delegate any of its rights or discretions under this Clause 31 in relation to partial invalidity to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 31.12 If the Lender requests any document relating to partial invalidity in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Any determination required to be made by the Lender under this Clause 31 shall be made in good faith and, where expressed to be reasonable, by reference to the partial invalidity practice then prevailing among leading banks in the United Arab Emirates.
- 31.13 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to partial invalidity directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. For the purposes of this Clause 31, any reference to a matter being customary shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 31.14 Any calculation in connection with partial invalidity shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. In relation to partial invalidity, references in this Clause 31 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 31.15 Any period of grace in relation to partial invalidity shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. References in this Clause 31 to a document relating to partial invalidity being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.

- 31.16 If there is any inconsistency between this Clause 31 and any other provision of the Finance Documents relating to partial invalidity, this Clause 31 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. In determining whether a matter relating to partial invalidity is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 31.17 Nothing in this Clause 31 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with partial invalidity. The Borrower shall procure that each member of the Group complies with this Clause 31 in relation to partial invalidity as if references to the Borrower were references to that member of the Group.
- 31.18 The obligations of each Obligor under this Clause 31 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to partial invalidity. The parties agree that, in the context of partial invalidity, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 31.19 A certificate of the Lender setting out any amount payable in connection with partial invalidity shall, in the absence of manifest error, be conclusive evidence of that amount. Any amount payable under this Clause 31 in connection with partial invalidity shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 31.20 Nothing in this Clause 31 shall oblige the Lender to take any action in relation to partial invalidity which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Any amount which an Obligor is required to pay under this Clause 31 in relation to partial invalidity shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 31.21 The Lender may, acting reasonably, request such further information in connection with partial invalidity as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. For the avoidance of doubt, the provisions of this Clause 31 concerning partial invalidity apply equally to any Loan made before the date on which the relevant provision first applies.
- 31.22 Nothing in this Clause 31 shall oblige the Lender to take any action in relation to partial invalidity which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Any reference in this Clause 31 to a person taking a step in relation to partial invalidity includes that person procuring that the step is taken by another member of the Group.
- 31.23 Any amount which an Obligor is required to pay under this Clause 31 in relation to partial invalidity shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Without prejudice to the generality of the foregoing, the Lender may agree in

writing to extend any period for compliance under this Clause 31 where it is satisfied that the delay in relation to partial invalidity results from circumstances outside the control of the relevant Obligor.

31.24 Where this Clause 31 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. References in this Clause 31 to a document relating to partial invalidity being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.

31.25 The Borrower acknowledges that the provisions of this Clause 31 relating to partial invalidity have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to partial invalidity requested by it under this Clause 31, save as otherwise expressly provided.

32. REMEDIES AND WAIVERS

32.1 No failure to exercise, nor any delay in exercising, on the part of the Lender, any right or remedy under a Finance Document shall operate as a waiver of any such right or remedy or constitute an election to affirm any of the Finance Documents.

32.2 The Lender shall not be liable to any Obligor for any loss arising from any action taken or omitted by it under or in connection with any Finance Document, unless directly caused by its gross negligence or wilful misconduct.

32.3 The parties acknowledge that the time periods set out in this Clause 32 in relation to remedies and waivers are of the essence, save where this Agreement expressly provides otherwise. The Borrower confirms that the information supplied to the Lender in relation to remedies and waivers was, at the date it was supplied, true, complete and accurate in all material respects.

32.4 Any step taken by the Lender in relation to remedies and waivers in accordance with this Clause 32 shall be without prejudice to any other right or remedy available to it under the Finance Documents. Each Obligor shall execute such further documents and do such further acts in relation to remedies and waivers as the Lender may reasonably require to give full effect to this Clause 32.

32.5 Where this Clause 32 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Any period of grace in relation to remedies and waivers shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.

- 32.6 The parties agree that, in the context of remedies and waivers, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. References in this Clause 32 to a document relating to remedies and waivers being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 32.7 The Borrower shall procure that each member of the Group complies with this Clause 32 in relation to remedies and waivers as if references to the Borrower were references to that member of the Group. The Lender may, acting reasonably, request such further information in connection with remedies and waivers as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 32.8 The Lender may delegate any of its rights or discretions under this Clause 32 in relation to remedies and waivers to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. If any Obligor is in doubt as to whether a proposed action relating to remedies and waivers is permitted under this Clause 32, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 32.9 The Lender shall be entitled to rely on any certificate delivered in connection with remedies and waivers without further enquiry, unless it has actual knowledge that the certificate is inaccurate. A certificate of the Lender setting out any amount payable in connection with remedies and waivers shall, in the absence of manifest error, be conclusive evidence of that amount.
- 32.10 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to remedies and waivers requested by it under this Clause 32, save as otherwise expressly provided. In determining whether a matter relating to remedies and waivers is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 32.11 Any notice, request or certificate delivered in connection with this Clause 32 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to remedies and waivers directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 32.12 For the purposes of this Clause 32, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The rights of the Lender under this Clause 32 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 32.13 For the avoidance of doubt, the provisions of this Clause 32 concerning remedies and waivers apply equally to any Loan made before the date on which

the relevant provision first applies. Where any step relating to remedies and waivers requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.

- 32.14 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to remedies and waivers which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 32 where it is satisfied that the delay in relation to remedies and waivers results from circumstances outside the control of the relevant Obligor.
- 32.15 Any calculation in connection with remedies and waivers shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. If there is any inconsistency between this Clause 32 and any other provision of the Finance Documents relating to remedies and waivers, this Clause 32 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 32.16 Any determination required to be made by the Lender under this Clause 32 shall be made in good faith and, where expressed to be reasonable, by reference to the remedies and waivers practice then prevailing among leading banks in the United Arab Emirates. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 32 in relation to remedies and waivers, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 32.17 Any reference in this Clause 32 to a person taking a step in relation to remedies and waivers includes that person procuring that the step is taken by another member of the Group. If the Lender requests any document relating to remedies and waivers in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 32.18 In relation to remedies and waivers, references in this Clause 32 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Lender shall act reasonably and in a timely manner in responding to any request relating to remedies and waivers made by an Obligor under this Clause 32.
- 32.19 The Borrower acknowledges that the provisions of this Clause 32 relating to remedies and waivers have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Any amount payable under this Clause 32 in connection with remedies and waivers shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.

- 32.20 Nothing in this Clause 32 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with remedies and waivers. No waiver given by the Lender in relation to remedies and waivers on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 32.21 Nothing in this Clause 32 shall oblige the Lender to take any action in relation to remedies and waivers which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The obligations of each Obligor under this Clause 32 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to remedies and waivers.
- 32.22 Each of the obligations of the Obligors in this Clause 32 relating to remedies and waivers shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Any amount which an Obligor is required to pay under this Clause 32 in relation to remedies and waivers shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 32.23 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 32 where it is satisfied that the delay in relation to remedies and waivers results from circumstances outside the control of the relevant Obligor. Each of the obligations of the Obligors in this Clause 32 relating to remedies and waivers shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 32.24 For the purposes of this Clause 32, any reference to a matter being substantial shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. For the avoidance of doubt, the provisions of this Clause 32 concerning remedies and waivers apply equally to any Loan made before the date on which the relevant provision first applies.
- 32.25 The rights of the Lender under this Clause 32 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. In relation to remedies and waivers, references in this Clause 32 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 32.26 The obligations of each Obligor under this Clause 32 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to remedies and waivers. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to remedies and waivers requested by it under this Clause 32, save as otherwise expressly provided.

33. AMENDMENTS AND WAIVERS

- 33.1 Any term of the Finance Documents may be amended or waived only with the written consent of the Lender and the Obligors.
- 33.2 The Lender shall be entitled to rely on any certificate delivered in connection with amendments and waivers without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to amendments and waivers directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 33.3 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to amendments and waivers which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Where any step relating to amendments and waivers requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 33.4 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to amendments and waivers requested by it under this Clause 33, save as otherwise expressly provided. If any Obligor is in doubt as to whether a proposed action relating to amendments and waivers is permitted under this Clause 33, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 33.5 In determining whether a matter relating to amendments and waivers is substantial, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Any amount payable under this Clause 33 in connection with amendments and waivers shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose.
- 33.6 In relation to amendments and waivers, references in this Clause 33 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Any determination required to be made by the Lender under this Clause 33 shall be made in good faith and, where expressed to be reasonable, by reference to the amendments and waivers practice then prevailing among leading banks in the United Arab Emirates.
- 33.7 If there is any inconsistency between this Clause 33 and any other provision of the Finance Documents relating to amendments and waivers, this Clause 33 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Nothing in this Clause 33 shall oblige the Lender to take any action in relation to amendments and waivers which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

- 33.8 The Lender may delegate any of its rights or discretions under this Clause 33 in relation to amendments and waivers to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Any amount which an Obligor is required to pay under this Clause 33 in relation to amendments and waivers shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 33.9 Any period of grace in relation to amendments and waivers shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. Where this Clause 33 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 33.10 The Borrower shall procure that each member of the Group complies with this Clause 33 in relation to amendments and waivers as if references to the Borrower were references to that member of the Group. For the avoidance of doubt, the provisions of this Clause 33 concerning amendments and waivers apply equally to any Loan made before the date on which the relevant provision first applies.
- 33.11 The Borrower acknowledges that the provisions of this Clause 33 relating to amendments and waivers have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. The parties acknowledge that the time periods set out in this Clause 33 in relation to amendments and waivers are of the essence, save where this Agreement expressly provides otherwise.
- 33.12 Nothing in this Clause 33 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with amendments and waivers. The parties agree that, in the context of amendments and waivers, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 33.13 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 33 in relation to amendments and waivers, including any fee payable to the Dubai Land Department or the relevant free zone authority. The obligations of each Obligor under this Clause 33 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to amendments and waivers.
- 33.14 Any calculation in connection with amendments and waivers shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. No waiver given by the Lender in relation to amendments and waivers on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing

and signed by an authorised signatory of the Lender.

- 33.15 The Lender shall act reasonably and in a timely manner in responding to any request relating to amendments and waivers made by an Obligor under this Clause 33. Any notice, request or certificate delivered in connection with this Clause 33 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 33.16 Each Obligor shall execute such further documents and do such further acts in relation to amendments and waivers as the Lender may reasonably require to give full effect to this Clause 33. Any reference in this Clause 33 to a person taking a step in relation to amendments and waivers includes that person procuring that the step is taken by another member of the Group.
- 33.17 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 33 where it is satisfied that the delay in relation to amendments and waivers results from circumstances outside the control of the relevant Obligor. The rights of the Lender under this Clause 33 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 33.18 The Lender may, acting reasonably, request such further information in connection with amendments and waivers as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. References in this Clause 33 to a document relating to amendments and waivers being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 33.19 A certificate of the Lender setting out any amount payable in connection with amendments and waivers shall, in the absence of manifest error, be conclusive evidence of that amount. If the Lender requests any document relating to amendments and waivers in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 33.20 For the purposes of this Clause 33, any reference to a matter being satisfactory shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Any step taken by the Lender in relation to amendments and waivers in accordance with this Clause 33 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 33.21 The Borrower confirms that the information supplied to the Lender in relation to amendments and waivers was, at the date it was supplied, true, complete and accurate in all material respects. Each of the obligations of the Obligors in this Clause 33 relating to amendments and waivers shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.

- 33.22 The Borrower acknowledges that the provisions of this Clause 33 relating to amendments and waivers have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to amendments and waivers requested by it under this Clause 33, save as otherwise expressly provided.
- 33.23 The Lender shall act reasonably and in a timely manner in responding to any request relating to amendments and waivers made by an Obligor under this Clause 33. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to amendments and waivers directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 33.24 Nothing in this Clause 33 shall oblige the Lender to take any action in relation to amendments and waivers which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. The rights of the Lender under this Clause 33 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 33.25 If any Obligor is in doubt as to whether a proposed action relating to amendments and waivers is permitted under this Clause 33, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. No waiver given by the Lender in relation to amendments and waivers on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.

34. CONFIDENTIALITY

- 34.1 The Lender agrees to keep all Confidential Information confidential and not to disclose it to anyone, save to the extent permitted by this Clause 34.
- 34.2 The Lender may disclose Confidential Information to any of its Affiliates and its and their officers, directors, employees, professional advisers and auditors, to any person to whom information is required to be disclosed by any court, arbitral tribunal, regulator or the Dubai Financial Services Authority, and with the consent of the Borrower.
- 34.3 The obligations in this Clause 34 shall continue for a period of twelve (12) Months from the earlier of the date on which all amounts payable by the Obligors under the Finance Documents have been paid in full and the date on which the Lender otherwise ceases to be a party to this Agreement.
- 34.4 Any amount payable under this Clause 34 in connection with confidentiality shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Lender may delegate any of its rights or discretions under this Clause 34 in relation to confidentiality to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

- 34.5 The Lender may, acting reasonably, request such further information in connection with confidentiality as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. For the avoidance of doubt, the provisions of this Clause 34 concerning confidentiality apply equally to any Loan made before the date on which the relevant provision first applies.
- 34.6 No waiver given by the Lender in relation to confidentiality on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. The Borrower shall procure that each member of the Group complies with this Clause 34 in relation to confidentiality as if references to the Borrower were references to that member of the Group.
- 34.7 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 34 where it is satisfied that the delay in relation to confidentiality results from circumstances outside the control of the relevant Obligor. The rights of the Lender under this Clause 34 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.
- 34.8 The Lender shall act reasonably and in a timely manner in responding to any request relating to confidentiality made by an Obligor under this Clause 34. Where any step relating to confidentiality requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 34.9 The obligations of each Obligor under this Clause 34 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to confidentiality. Any calculation in connection with confidentiality shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 34.10 Nothing in this Clause 34 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with confidentiality. Any period of grace in relation to confidentiality shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 34.11 If the Lender requests any document relating to confidentiality in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software. Any amount which an Obligor is required to pay under this Clause 34 in relation to confidentiality shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 34.12 In determining whether a matter relating to confidentiality is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. The Lender shall be

entitled to rely on any certificate delivered in connection with confidentiality without further enquiry, unless it has actual knowledge that the certificate is inaccurate.

- 34.13 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to confidentiality directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. The parties agree that, in the context of confidentiality, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 34.14 If any Obligor is in doubt as to whether a proposed action relating to confidentiality is permitted under this Clause 34, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to confidentiality requested by it under this Clause 34, save as otherwise expressly provided.
- 34.15 The Borrower acknowledges that the provisions of this Clause 34 relating to confidentiality have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. For the purposes of this Clause 34, any reference to a matter being adverse shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight.
- 34.16 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to confidentiality which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Each of the obligations of the Obligors in this Clause 34 relating to confidentiality shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
- 34.17 Where this Clause 34 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. A certificate of the Lender setting out any amount payable in connection with confidentiality shall, in the absence of manifest error, be conclusive evidence of that amount.
- 34.18 Nothing in this Clause 34 shall oblige the Lender to take any action in relation to confidentiality which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Any reference in this Clause 34 to a person taking a step in relation to confidentiality includes that person procuring that the step is taken by another member of the Group.
- 34.19 Any notice, request or certificate delivered in connection with this Clause 34 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Borrower confirms that the

information supplied to the Lender in relation to confidentiality was, at the date it was supplied, true, complete and accurate in all material respects.

- 34.20 References in this Clause 34 to a document relating to confidentiality being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification. If there is any inconsistency between this Clause 34 and any other provision of the Finance Documents relating to confidentiality, this Clause 34 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 34.21 Each Obligor shall execute such further documents and do such further acts in relation to confidentiality as the Lender may reasonably require to give full effect to this Clause 34. Any step taken by the Lender in relation to confidentiality in accordance with this Clause 34 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 34.22 In relation to confidentiality, references in this Clause 34 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The parties acknowledge that the time periods set out in this Clause 34 in relation to confidentiality are of the essence, save where this Agreement expressly provides otherwise.
- 34.23 Any determination required to be made by the Lender under this Clause 34 shall be made in good faith and, where expressed to be reasonable, by reference to the confidentiality practice then prevailing among leading banks in the United Arab Emirates. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 34 in relation to confidentiality, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 34.24 Any reference in this Clause 34 to a person taking a step in relation to confidentiality includes that person procuring that the step is taken by another member of the Group. Any calculation in connection with confidentiality shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 34.25 The parties acknowledge that the time periods set out in this Clause 34 in relation to confidentiality are of the essence, save where this Agreement expressly provides otherwise. Any determination required to be made by the Lender under this Clause 34 shall be made in good faith and, where expressed to be reasonable, by reference to the confidentiality practice then prevailing among leading banks in the United Arab Emirates.
- 34.26 The Borrower acknowledges that the provisions of this Clause 34 relating to confidentiality have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Where this Clause 34 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English

translation prepared by a translator licensed by the UAE Ministry of Justice.

- 34.27 In relation to confidentiality, references in this Clause 34 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The Borrower shall procure that each member of the Group complies with this Clause 34 in relation to confidentiality as if references to the Borrower were references to that member of the Group.

35. SANCTIONS AND ANTI-CORRUPTION

- 35.1 No Obligor shall, directly or indirectly, use the proceeds of any Loan, or lend, contribute or otherwise make available such proceeds to any person, to fund any activities of or business with any person that is the target of Sanctions, or in any manner that would result in a violation of Sanctions by any person.
- 35.2 No Obligor shall use the proceeds of any Loan for any purpose which would breach any Anti-Corruption Laws, and each Obligor shall maintain policies and procedures designed to promote and achieve compliance with such laws.
- 35.3 Any period of grace in relation to sanctions and anti-corruption shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. The obligations of each Obligor under this Clause 35 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to sanctions and anti-corruption.
- 35.4 In relation to sanctions and anti-corruption, references in this Clause 35 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. Any calculation in connection with sanctions and anti-corruption shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 35.5 The Lender may delegate any of its rights or discretions under this Clause 35 in relation to sanctions and anti-corruption to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Any reference in this Clause 35 to a person taking a step in relation to sanctions and anti-corruption includes that person procuring that the step is taken by another member of the Group.
- 35.6 The Lender shall be entitled to rely on any certificate delivered in connection with sanctions and anti-corruption without further enquiry, unless it has actual knowledge that the certificate is inaccurate. The Lender may, acting reasonably, request such further information in connection with sanctions and anti-corruption as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
- 35.7 References in this Clause 35 to a document relating to sanctions and anti-corruption being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of iden-

tification. Each Obligor shall execute such further documents and do such further acts in relation to sanctions and anti-corruption as the Lender may reasonably require to give full effect to this Clause 35.

- 35.8 For the purposes of this Clause 35, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Lender shall act reasonably and in a timely manner in responding to any request relating to sanctions and anti-corruption made by an Obligor under this Clause 35.
- 35.9 The Borrower shall procure that each member of the Group complies with this Clause 35 in relation to sanctions and anti-corruption as if references to the Borrower were references to that member of the Group. No waiver given by the Lender in relation to sanctions and anti-corruption on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 35.10 If any Obligor is in doubt as to whether a proposed action relating to sanctions and anti-corruption is permitted under this Clause 35, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. Any amount which an Obligor is required to pay under this Clause 35 in relation to sanctions and anti-corruption shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
- 35.11 The rights of the Lender under this Clause 35 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Borrower acknowledges that the provisions of this Clause 35 relating to sanctions and anti-corruption have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 35.12 Nothing in this Clause 35 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with sanctions and anti-corruption. The parties agree that, in the context of sanctions and anti-corruption, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 35.13 A certificate of the Lender setting out any amount payable in connection with sanctions and anti-corruption shall, in the absence of manifest error, be conclusive evidence of that amount. Any notice, request or certificate delivered in connection with this Clause 35 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).
- 35.14 Where this Clause 35 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Without prejudice to the generality of

the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 35 where it is satisfied that the delay in relation to sanctions and anti-corruption results from circumstances outside the control of the relevant Obligor.

- 35.15 Nothing in this Clause 35 shall oblige the Lender to take any action in relation to sanctions and anti-corruption which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. In determining whether a matter relating to sanctions and anti-corruption is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 35.16 The parties acknowledge that the time periods set out in this Clause 35 in relation to sanctions and anti-corruption are of the essence, save where this Agreement expressly provides otherwise. If the Lender requests any document relating to sanctions and anti-corruption in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 35.17 Any amount payable under this Clause 35 in connection with sanctions and anti-corruption shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to sanctions and anti-corruption requested by it under this Clause 35, save as otherwise expressly provided.
- 35.18 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to sanctions and anti-corruption which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Any determination required to be made by the Lender under this Clause 35 shall be made in good faith and, where expressed to be reasonable, by reference to the sanctions and anti-corruption practice then prevailing among leading banks in the United Arab Emirates.
- 35.19 For the avoidance of doubt, the provisions of this Clause 35 concerning sanctions and anti-corruption apply equally to any Loan made before the date on which the relevant provision first applies. If there is any inconsistency between this Clause 35 and any other provision of the Finance Documents relating to sanctions and anti-corruption, this Clause 35 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 35.20 Each of the obligations of the Obligors in this Clause 35 relating to sanctions and anti-corruption shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Any step taken by the Lender in relation to sanctions and anti-corruption in accordance with this Clause 35 shall be without prejudice to any other right or remedy available to it under the Finance Documents.

- 35.21 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 35 in relation to sanctions and anti-corruption, including any fee payable to the Dubai Land Department or the relevant free zone authority. The Borrower confirms that the information supplied to the Lender in relation to sanctions and anti-corruption was, at the date it was supplied, true, complete and accurate in all material respects.
- 35.22 Where any step relating to sanctions and anti-corruption requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to sanctions and anti-corruption directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 35.23 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to sanctions and anti-corruption which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to sanctions and anti-corruption directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
- 35.24 If there is any inconsistency between this Clause 35 and any other provision of the Finance Documents relating to sanctions and anti-corruption, this Clause 35 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Nothing in this Clause 35 shall oblige the Lender to take any action in relation to sanctions and anti-corruption which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 35.25 A certificate of the Lender setting out any amount payable in connection with sanctions and anti-corruption shall, in the absence of manifest error, be conclusive evidence of that amount. The parties agree that, in the context of sanctions and anti-corruption, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 35.26 The Lender may delegate any of its rights or discretions under this Clause 35 in relation to sanctions and anti-corruption to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Nothing in this Clause 35 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with sanctions and anti-corruption.

36. COUNTERPARTS

- 36.1 Each Finance Document may be executed in any number of counterparts, and this has the same effect as if the signatures on the counterparts were on a single copy of the Finance Document. Signature by electronic means in accordance with UAE Federal Decree-Law No. 46 of 2021 shall be valid and binding.
- 36.2 The Lender shall act reasonably and in a timely manner in responding to any request relating to counterparts made by an Obligor under this Clause 36. If the Lender requests any document relating to counterparts in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 36.3 No waiver given by the Lender in relation to counterparts on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. If there is any inconsistency between this Clause 36 and any other provision of the Finance Documents relating to counterparts, this Clause 36 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.
- 36.4 The rights of the Lender under this Clause 36 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 36 in relation to counterparts, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 36.5 The parties agree that, in the context of counterparts, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The Lender shall be entitled to rely on any certificate delivered in connection with counterparts without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 36.6 The Borrower acknowledges that the provisions of this Clause 36 relating to counterparts have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 36 where it is satisfied that the delay in relation to counterparts results from circumstances outside the control of the relevant Obligor.
- 36.7 Any amount which an Obligor is required to pay under this Clause 36 in relation to counterparts shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. Where this Clause 36 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.

- 36.8 Each of the obligations of the Obligors in this Clause 36 relating to counterparts shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. Where any step relating to counterparts requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 36.9 Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to counterparts requested by it under this Clause 36, save as otherwise expressly provided. Any period of grace in relation to counterparts shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter.
- 36.10 The Lender may delegate any of its rights or discretions under this Clause 36 in relation to counterparts to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. A certificate of the Lender setting out any amount payable in connection with counterparts shall, in the absence of manifest error, be conclusive evidence of that amount.
- 36.11 The Lender may, acting reasonably, request such further information in connection with counterparts as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Any determination required to be made by the Lender under this Clause 36 shall be made in good faith and, where expressed to be reasonable, by reference to the counterparts practice then prevailing among leading banks in the United Arab Emirates.
- 36.12 Any amount payable under this Clause 36 in connection with counterparts shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. For the avoidance of doubt, the provisions of this Clause 36 concerning counterparts apply equally to any Loan made before the date on which the relevant provision first applies.
- 36.13 The parties acknowledge that the time periods set out in this Clause 36 in relation to counterparts are of the essence, save where this Agreement expressly provides otherwise. Any calculation in connection with counterparts shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 36.14 Any step taken by the Lender in relation to counterparts in accordance with this Clause 36 shall be without prejudice to any other right or remedy available to it under the Finance Documents. Any reference in this Clause 36 to a person taking a step in relation to counterparts includes that person procuring that the step is taken by another member of the Group.
- 36.15 The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to counterparts which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents. Any notice, request or certificate delivered in connection with this Clause 36 shall be signed by an authorised signatory of the relevant party

whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent).

- 36.16 For the purposes of this Clause 36, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Nothing in this Clause 36 shall oblige the Lender to take any action in relation to counterparts which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
- 36.17 Each Obligor shall execute such further documents and do such further acts in relation to counterparts as the Lender may reasonably require to give full effect to this Clause 36. The Borrower confirms that the information supplied to the Lender in relation to counterparts was, at the date it was supplied, true, complete and accurate in all material respects.
- 36.18 The Borrower shall procure that each member of the Group complies with this Clause 36 in relation to counterparts as if references to the Borrower were references to that member of the Group. If any Obligor is in doubt as to whether a proposed action relating to counterparts is permitted under this Clause 36, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.
- 36.19 Nothing in this Clause 36 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with counterparts. The obligations of each Obligor under this Clause 36 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to counterparts.
- 36.20 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to counterparts directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. In determining whether a matter relating to counterparts is material, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement.
- 36.21 In relation to counterparts, references in this Clause 36 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. References in this Clause 36 to a document relating to counterparts being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 36.22 Any calculation in connection with counterparts shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The parties agree that, in the context of counterparts, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.

- 36.23 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 36 in relation to counterparts, including any fee payable to the Dubai Land Department or the relevant free zone authority. No waiver given by the Lender in relation to counterparts on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 36.24 The Lender may, acting reasonably, request such further information in connection with counterparts as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Any determination required to be made by the Lender under this Clause 36 shall be made in good faith and, where expressed to be reasonable, by reference to the counterparts practice then prevailing among leading banks in the United Arab Emirates.
- 36.25 Any amount which an Obligor is required to pay under this Clause 36 in relation to counterparts shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. The Borrower acknowledges that the provisions of this Clause 36 relating to counterparts have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

37. GOVERNING LAW

- 37.1 This Agreement and any non-contractual obligations arising out of or in connection with it are governed by the laws of the Dubai International Financial Centre.
- 37.2 Nothing in this Clause 37 shall prevent the Lender from taking enforcement proceedings in respect of any arbitral award in the courts of the Emirate of Dubai or any other court of competent jurisdiction.
- 37.3 The obligations of each Obligor under this Clause 37 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to governing law. For the avoidance of doubt, the provisions of this Clause 37 concerning governing law apply equally to any Loan made before the date on which the relevant provision first applies.
- 37.4 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to governing law directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. The Lender may delegate any of its rights or discretions under this Clause 37 in relation to governing law to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
- 37.5 The parties acknowledge that the time periods set out in this Clause 37 in relation to governing law are of the essence, save where this Agreement expressly provides otherwise. If the Lender requests any document relating to

governing law in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.

- 37.6 Any determination required to be made by the Lender under this Clause 37 shall be made in good faith and, where expressed to be reasonable, by reference to the governing law practice then prevailing among leading banks in the United Arab Emirates. Any calculation in connection with governing law shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 37.7 Any amount payable under this Clause 37 in connection with governing law shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. No waiver given by the Lender in relation to governing law on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 37.8 Nothing in this Clause 37 shall oblige the Lender to take any action in relation to governing law which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. Any reference in this Clause 37 to a person taking a step in relation to governing law includes that person procuring that the step is taken by another member of the Group.
- 37.9 In determining whether a matter relating to governing law is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. A certificate of the Lender setting out any amount payable in connection with governing law shall, in the absence of manifest error, be conclusive evidence of that amount.
- 37.10 Any period of grace in relation to governing law shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. Nothing in this Clause 37 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with governing law.
- 37.11 The rights of the Lender under this Clause 37 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. References in this Clause 37 to a document relating to governing law being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 37.12 The parties agree that, in the context of governing law, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Any notice, request or certificate delivered in connection with this Clause 37 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2

(Conditions Precedent).

- 37.13 Each Obligor shall execute such further documents and do such further acts in relation to governing law as the Lender may reasonably require to give full effect to this Clause 37. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 37 where it is satisfied that the delay in relation to governing law results from circumstances outside the control of the relevant Obligor.
- 37.14 The Lender may, acting reasonably, request such further information in connection with governing law as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Any step taken by the Lender in relation to governing law in accordance with this Clause 37 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 37.15 For the purposes of this Clause 37, any reference to a matter being reasonable shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. The Borrower acknowledges that the provisions of this Clause 37 relating to governing law have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
- 37.16 The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 37 in relation to governing law, including any fee payable to the Dubai Land Department or the relevant free zone authority. Where any step relating to governing law requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 37.17 The Borrower confirms that the information supplied to the Lender in relation to governing law was, at the date it was supplied, true, complete and accurate in all material respects. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to governing law requested by it under this Clause 37, save as otherwise expressly provided.
- 37.18 The Lender shall act reasonably and in a timely manner in responding to any request relating to governing law made by an Obligor under this Clause 37. The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to governing law which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.
- 37.19 Any amount which an Obligor is required to pay under this Clause 37 in relation to governing law shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. If there is any inconsistency between this Clause 37 and any other provision of the Finance Documents relating to governing law, this Clause 37 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise.

- 37.20 If any Obligor is in doubt as to whether a proposed action relating to governing law is permitted under this Clause 37, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. In relation to governing law, references in this Clause 37 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 37.21 The Borrower shall procure that each member of the Group complies with this Clause 37 in relation to governing law as if references to the Borrower were references to that member of the Group. Where this Clause 37 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.
- 37.22 Each of the obligations of the Obligors in this Clause 37 relating to governing law shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. The Lender shall be entitled to rely on any certificate delivered in connection with governing law without further enquiry, unless it has actual knowledge that the certificate is inaccurate.
- 37.23 Where this Clause 37 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 37 where it is satisfied that the delay in relation to governing law results from circumstances outside the control of the relevant Obligor.
- 37.24 Any determination required to be made by the Lender under this Clause 37 shall be made in good faith and, where expressed to be reasonable, by reference to the governing law practice then prevailing among leading banks in the United Arab Emirates. The Borrower confirms that the information supplied to the Lender in relation to governing law was, at the date it was supplied, true, complete and accurate in all material respects.
- 37.25 Any period of grace in relation to governing law shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. Each Obligor shall execute such further documents and do such further acts in relation to governing law as the Lender may reasonably require to give full effect to this Clause 37.
- 37.26 No waiver given by the Lender in relation to governing law on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Any amount payable under this Clause 37 in connection with governing law shall be paid in UAE dirhams, in immediately available funds, to the

account specified by the Lender for that purpose.

38. ARBITRATION

- 38.1 Any dispute, controversy or claim arising out of or in connection with this Agreement, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration under the DIAC Rules.
- 38.2 The number of arbitrators shall be three (3). The seat, or legal place, of arbitration shall be the Dubai International Financial Centre. The language to be used in the arbitral proceedings shall be English.
- 38.3 Notwithstanding the above, the Lender may, at its sole option, bring proceedings in the courts of the Dubai International Financial Centre against any Obligor in relation to any dispute, and each Obligor irrevocably submits to the jurisdiction of those courts for that purpose.
- 38.4 Each Obligor irrevocably waives any objection which it may now or hereafter have to the laying of the venue of any proceedings in any such court or arbitration and any claim that any such proceedings have been brought in an inconvenient forum.
- 38.5 For the purposes of this Clause 38, any reference to a matter being adverse shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. If the Lender requests any document relating to arbitration in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 38.6 The Lender may, acting reasonably, request such further information in connection with arbitration as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. Any calculation in connection with arbitration shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender.
- 38.7 Any period of grace in relation to arbitration shall commence on the earlier of the date on which the Lender gives notice and the date on which the relevant Obligor becomes aware of the relevant matter. In relation to arbitration, references in this Clause 38 to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group.
- 38.8 The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to arbitration directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion. Any reference in this Clause 38 to a person taking a step in relation to arbitration includes that person procuring that the step is taken by another member of the Group.

- 38.9 Any amount payable under this Clause 38 in connection with arbitration shall be paid in UAE dirhams, in immediately available funds, to the account specified by the Lender for that purpose. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this Clause 38 in relation to arbitration, including any fee payable to the Dubai Land Department or the relevant free zone authority.
- 38.10 In determining whether a matter relating to arbitration is continuing, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. No waiver given by the Lender in relation to arbitration on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
- 38.11 Any amount which an Obligor is required to pay under this Clause 38 in relation to arbitration shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law. References in this Clause 38 to a document relating to arbitration being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
- 38.12 Nothing in this Clause 38 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with arbitration. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to arbitration requested by it under this Clause 38, save as otherwise expressly provided.
- 38.13 If there is any inconsistency between this Clause 38 and any other provision of the Finance Documents relating to arbitration, this Clause 38 shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. Where any step relating to arbitration requires the approval of a governmental authority in the United Arab Emirates, the relevant Obligor shall apply for that approval within ten (10) Business Days and diligently pursue it.
- 38.14 Each of the obligations of the Obligors in this Clause 38 relating to arbitration shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents. The Borrower shall procure that each member of the Group complies with this Clause 38 in relation to arbitration as if references to the Borrower were references to that member of the Group.
- 38.15 Any step taken by the Lender in relation to arbitration in accordance with this Clause 38 shall be without prejudice to any other right or remedy available to it under the Finance Documents. The Borrower confirms that the information supplied to the Lender in relation to arbitration was, at the date it was supplied, true, complete and accurate in all material respects.
- 38.16 Where this Clause 38 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator

licensed by the UAE Ministry of Justice. If any Obligor is in doubt as to whether a proposed action relating to arbitration is permitted under this Clause 38, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed.

38.17 For the avoidance of doubt, the provisions of this Clause 38 concerning arbitration apply equally to any Loan made before the date on which the relevant provision first applies. The Lender may delegate any of its rights or discretions under this Clause 38 in relation to arbitration to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.

38.18 The parties agree that, in the context of arbitration, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. A certificate of the Lender setting out any amount payable in connection with arbitration shall, in the absence of manifest error, be conclusive evidence of that amount.

38.19 The Lender shall be entitled to rely on any certificate delivered in connection with arbitration without further enquiry, unless it has actual knowledge that the certificate is inaccurate. Nothing in this Clause 38 shall oblige the Lender to take any action in relation to arbitration which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.

38.20 The Lender shall act reasonably and in a timely manner in responding to any request relating to arbitration made by an Obligor under this Clause 38. The rights of the Lender under this Clause 38 are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document.

38.21 Any notice, request or certificate delivered in connection with this Clause 38 shall be signed by an authorised signatory of the relevant party whose specimen signature has previously been delivered to the Lender under Schedule 2 (Conditions Precedent). The Borrower shall keep the Lender informed, at reasonable intervals, of the progress of any matter relating to arbitration which could reasonably be expected to affect its ability to perform its obligations under the Finance Documents.

38.22 Any determination required to be made by the Lender under this Clause 38 shall be made in good faith and, where expressed to be reasonable, by reference to the arbitration practice then prevailing among leading banks in the United Arab Emirates. The Borrower acknowledges that the provisions of this Clause 38 relating to arbitration have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.

38.23 Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this Clause 38 where it is satisfied that the delay in relation to arbitration results from circumstances outside the control of the relevant Obligor. The obligations of each Obligor

under this Clause 38 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to arbitration.

- 38.24 The parties acknowledge that the time periods set out in this Clause 38 in relation to arbitration are of the essence, save where this Agreement expressly provides otherwise. Each Obligor shall execute such further documents and do such further acts in relation to arbitration as the Lender may reasonably require to give full effect to this Clause 38.
- 38.25 Nothing in this Clause 38 shall be construed as an obligation on the Lender to provide any further financial accommodation in connection with arbitration. If the Lender requests any document relating to arbitration in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.
- 38.26 The obligations of each Obligor under this Clause 38 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to arbitration. Any step taken by the Lender in relation to arbitration in accordance with this Clause 38 shall be without prejudice to any other right or remedy available to it under the Finance Documents.
- 38.27 Any reference in this Clause 38 to a person taking a step in relation to arbitration includes that person procuring that the step is taken by another member of the Group. The parties agree that, in the context of arbitration, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified.
- 38.28 Any calculation in connection with arbitration shall be made on the basis of the most recent financial statements delivered to the Lender and, where relevant, shall take account of any pro forma adjustments approved in writing by the Lender. The Lender shall be entitled to rely on any certificate delivered in connection with arbitration without further enquiry, unless it has actual knowledge that the certificate is inaccurate.

SCHEDULE 1

THE ORIGINAL PARTIES

Role	Name	Registered office
Borrower	Al Noor Trading L.L.C.	Office 1407, Al Saqr Business Tower, Sheikh Zayed Road, Dubai
Guarantor	Al Noor Holdings Limited	Unit 22, Level 3, Gate Village 10, DIFC, Dubai
Lender	Gulf Meridian Bank P.J.S.C.	Level 9, Gate Precinct Building 4, DIFC, Dubai

SCHEDULE 2

CONDITIONS PRECEDENT

1. A copy of the constitutional documents of each Obligor.
2. A copy of a resolution of the board of directors of each Obligor approving the terms of, and the transactions contemplated by, the Finance Documents.
3. A specimen of the signature of each person authorised by the resolutions referred to above.
4. A certificate of each Obligor confirming that borrowing or guaranteeing the Commitment would not cause any borrowing, guarantee or similar limit binding on it to be exceeded.
5. A legal opinion of Hadley & Saif Legal Consultants, legal advisers to the Lender, as to the laws of the DIFC.
6. A legal opinion of Hadley & Saif Legal Consultants as to the laws of the Emirate of Dubai and the federal laws of the UAE.
7. The mortgage over Plot S-20417, Jebel Ali Free Zone, duly executed and registered with the relevant free zone authority.
8. The receivables assignment, duly executed, together with notices of assignment acknowledged by each relevant customer.
9. The account pledge over the collection account, duly executed and registered with the Emirates Movable Collateral Registry.
10. The Original Financial Statements.
11. Evidence that the fees, costs and expenses then due from the Borrower under Clause 11 (Fees) and Clause 16 (Costs and Expenses) have been paid.
12. A valuation report on the mortgaged warehouse prepared by an independent valuer approved by the Lender and dated not earlier than sixty (60) days before the first Utilisation Date.
13. Evidence that the existing working capital facility referred to in Clause 3 (Purpose) will be repaid in full on the first Utilisation Date.
14. All information requested by the Lender in order to complete its “know your customer” checks.
15. Any reference in this this Schedule 2 to a person taking a step in relation to conditions precedent includes that person procuring that the step is taken by another member of the Group. For the avoidance of doubt, the provisions of this this Schedule 2 concerning conditions precedent apply equally to any Loan made before the date on which the relevant provision first applies.
16. Where this this Schedule 2 requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice. Each of the obligations of

the Obligors in this this Schedule 2 relating to conditions precedent shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.

17. The Lender may, acting reasonably, request such further information in connection with conditions precedent as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request. No waiver given by the Lender in relation to conditions precedent on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender.
18. A certificate of the Lender setting out any amount payable in connection with conditions precedent shall, in the absence of manifest error, be conclusive evidence of that amount. The Lender shall act reasonably and in a timely manner in responding to any request relating to conditions precedent made by an Obligor under this this Schedule 2.
19. The Borrower confirms that the information supplied to the Lender in relation to conditions precedent was, at the date it was supplied, true, complete and accurate in all material respects. Nothing in this this Schedule 2 shall oblige the Lender to take any action in relation to conditions precedent which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE.
20. The parties agree that, in the context of conditions precedent, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. Any amount which an Obligor is required to pay under this this Schedule 2 in relation to conditions precedent shall be paid free of any restriction or condition and without any deduction other than a Tax Deduction required by law.
21. The obligations of each Obligor under this this Schedule 2 will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to conditions precedent. The Borrower acknowledges that the provisions of this this Schedule 2 relating to conditions precedent have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
22. The Lender may delegate any of its rights or discretions under this this Schedule 2 in relation to conditions precedent to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate. Any determination required to be made by the Lender under this this Schedule 2 shall be made in good faith and, where expressed to be reasonable, by reference to the conditions precedent practice then prevailing among leading banks in the United Arab Emirates.

SCHEDULE 3

FORM OF UTILISATION REQUEST

From: Al Noor Trading L.L.C.

To: Gulf Meridian Bank P.J.S.C.

Dated: [●]

Al Noor Trading L.L.C. – AED 250,000,000 Term Facility Agreement dated 14 March 2026 (the “Agreement”)

1. We refer to the Agreement. This is a Utilisation Request. Terms defined in the Agreement have the same meaning in this Utilisation Request unless given a different meaning in this Utilisation Request.
2. We wish to borrow a Loan on the following terms: Proposed Utilisation Date: [●] (or, if that is not a Business Day, the next Business Day); Amount: AED [●] or, if less, the Available Commitment; Interest Period: three (3) Months.
3. We confirm that each condition specified in Clause 4 (Conditions of Utilisation) is satisfied on the date of this Utilisation Request.
4. The proceeds of this Loan should be credited to account number AE07 0331 2345 6789 0123 456 held with the Account Bank.
5. This Utilisation Request is irrevocable.

Authorised signatory for and on behalf of Al Noor Trading L.L.C.

SCHEDULE 4

FORM OF TRANSFER CERTIFICATE

1. For the purposes of this this Transfer Certificate, any reference to a matter being material shall be construed by reference to the facts and circumstances existing at the relevant time and not with the benefit of hindsight. Without prejudice to the generality of the foregoing, the Lender may agree in writing to extend any period for compliance under this this Transfer Certificate where it is satisfied that the delay in relation to transfers of participations results from circumstances outside the control of the relevant Obligor.
2. In relation to transfers of participations, references in this this Transfer Certificate to the Group shall be construed as including any entity which becomes a member of the Group after the date of this Agreement, from the date on which it becomes a member of the Group. The obligations of each Obligor under this this Transfer Certificate will not be affected by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any of its obligations in relation to transfers of participations.
3. Any reference in this this Transfer Certificate to a person taking a step in relation to transfers of participations includes that person procuring that the step is taken by another member of the Group. The Lender may, acting reasonably, request such further information in connection with transfers of participations as it may require from time to time, and the Borrower shall supply that information within ten (10) Business Days of the request.
4. If there is any inconsistency between this this Transfer Certificate and any other provision of the Finance Documents relating to transfers of participations, this this Transfer Certificate shall prevail to the extent of that inconsistency, save where the other provision expressly states otherwise. The Lender may delegate any of its rights or discretions under this this Transfer Certificate in relation to transfers of participations to any of its Affiliates, provided that it shall remain responsible for the acts and omissions of that delegate.
5. If any Obligor is in doubt as to whether a proposed action relating to transfers of participations is permitted under this this Transfer Certificate, it may request the confirmation of the Lender, which shall not be unreasonably withheld or delayed. The Borrower acknowledges that the provisions of this this Transfer Certificate relating to transfers of participations have been specifically negotiated and that it has had the benefit of independent legal advice in relation to them.
6. Any determination required to be made by the Lender under this this Transfer Certificate shall be made in good faith and, where expressed to be reasonable, by reference to the transfers of participations practice then prevailing among leading banks in the United Arab Emirates. For the avoidance of doubt, the provisions of this this Transfer Certificate concerning transfers of participations apply equally to any Loan made before the date on which the relevant provision first applies.

7. The rights of the Lender under this this Transfer Certificate are cumulative and are in addition to, and not in substitution for, any rights it may have under general law or under any other Finance Document. Each of the obligations of the Obligors in this this Transfer Certificate relating to transfers of participations shall remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents.
8. In determining whether a matter relating to transfers of participations is material, regard shall be had to the Group as a whole and to the purpose for which the relevant provision has been included in this Agreement. Each Obligor shall bear its own costs in connection with any review, consent or waiver relating to transfers of participations requested by it under this this Transfer Certificate, save as otherwise expressly provided.
9. Each Obligor shall execute such further documents and do such further acts in relation to transfers of participations as the Lender may reasonably require to give full effect to this this Transfer Certificate. The Borrower shall procure that its auditors are authorised, at the cost of the Borrower, to discuss matters relating to transfers of participations directly with the Lender, provided that the Lender shall give the Borrower reasonable notice of any such discussion.
10. The parties acknowledge that the time periods set out in this this Transfer Certificate in relation to transfers of participations are of the essence, save where this Agreement expressly provides otherwise. References in this this Transfer Certificate to a document relating to transfers of participations being in agreed form are references to that document in the form agreed by the Borrower and the Lender and initialled for the purposes of identification.
11. The parties agree that, in the context of transfers of participations, the expression “promptly” means as soon as reasonably practicable and in any event within five (5) Business Days, unless a shorter period is expressly specified. The Borrower shall bear all registration, notarisation and filing fees payable in connection with any step contemplated by this this Transfer Certificate in relation to transfers of participations, including any fee payable to the Dubai Land Department or the relevant free zone authority.
12. Nothing in this this Transfer Certificate shall oblige the Lender to take any action in relation to transfers of participations which would, in its reasonable opinion, be contrary to any applicable law, regulation or directive of the Central Bank of the UAE. A certificate of the Lender setting out any amount payable in connection with transfers of participations shall, in the absence of manifest error, be conclusive evidence of that amount.
13. The Lender shall act reasonably and in a timely manner in responding to any request relating to transfers of participations made by an Obligor under this this Transfer Certificate. If the Lender requests any document relating to transfers of participations in electronic form, the Borrower shall supply it in a commonly used, unencrypted file format capable of being read without proprietary software.

14. No waiver given by the Lender in relation to transfers of participations on any occasion shall operate as a waiver on any other occasion, and any such waiver shall be effective only if given in writing and signed by an authorised signatory of the Lender. Where this this Transfer Certificate requires any document to be delivered to the Lender, that document shall be delivered in the English language or, if not in English, accompanied by a certified English translation prepared by a translator licensed by the UAE Ministry of Justice.

SCHEDULE 5

TIMETABLES

Event	Time
Delivery of a duly completed Utilisation Request	U-3, 11.00 a.m. Dubai time
EIBOR is fixed	Quotation Day, 11.00 a.m. Dubai time
Lender notifies the Borrower of the rate of interest	Quotation Day, 2.00 p.m. Dubai time
Funds made available to the Borrower	U, 12.00 noon Dubai time

“U” means the Utilisation Date and “U-X” means X Business Days prior to the Utilisation Date.

SCHEDULE 6

FORM OF COMPLIANCE CERTIFICATE

To: Gulf Meridian Bank P.J.S.C.

From: Al Noor Holdings Limited

1. We refer to the Agreement. This is a Compliance Certificate.
2. We confirm that in respect of the Relevant Period ending on [●]: Leverage was [●]:1 (maximum 3.50:1); Interest Cover was [●]:1 (minimum 4.00:1); and Tangible Net Worth was AED [●] (minimum AED 400,000,000).
3. We confirm that no Default is continuing.

Note for the signatory: The Borrower shall promptly notify the Lender of any Default (and the steps, if any, being taken to remedy it) upon becoming aware of its occurrence.

Signed: Chief Financial Officer, for and on behalf of Al Noor Holdings Limited

SCHEDULE 7

MATERIAL SUBSIDIARIES

Name	Jurisdiction	Registered number	Ownership
Al Noor Logistics FZE	Dubai	365015	75 per cent.
Al Noor Cold Chain L.L.C.	Jebel Ali Free Zone	835962	100 per cent.
Desert Rose Freight L.L.C.	Sharjah	315477	51 per cent.
Al Noor Marine Services FZE	Abu Dhabi	819050	51 per cent.
Saffron Packaging L.L.C.	Dubai	109756	100 per cent.
Al Noor Fleet L.L.C.	Jebel Ali Free Zone	541315	51 per cent.
Crescent Warehousing FZE	Sharjah	205885	51 per cent.
Al Noor Customs Brokerage L.L.C.	Abu Dhabi	645583	100 per cent.
Palm Gate Distribution L.L.C.	Dubai	753050	60 per cent.
Al Noor Equipment Leasing FZE	Jebel Ali Free Zone	834764	100 per cent.
Harbour Line Shipping L.L.C.	Sharjah	539170	100 per cent.
Al Noor Property Holdings L.L.C.	Abu Dhabi	636435	51 per cent.
Oryx Last Mile FZE	Dubai	747703	100 per cent.
Al Noor Technology Services L.L.C.	Jebel Ali Free Zone	396439	100 per cent.
Sand Dune Trading L.L.C.	Sharjah	922880	100 per cent.
Al Noor Food Distribution FZE	Abu Dhabi	621917	100 per cent.
Gulf Pallet Systems L.L.C.	Dubai	738584	100 per cent.
Al Noor Free Zone Holdings L.L.C.	Jebel Ali Free Zone	915749	100 per cent.

SCHEDULE 8

REPAYMENT SCHEDULE

Instalment	Repayment Date	Amount (AED)	Outstanding after payment (AED)
1	31 March 2027	12,500,000	237,500,000
2	30 June 2027	12,500,000	225,000,000
3	30 September 2027	12,500,000	212,500,000
4	31 December 2027	12,500,000	200,000,000
5	31 March 2028	12,500,000	187,500,000
6	30 June 2028	12,500,000	175,000,000
7	30 September 2028	12,500,000	162,500,000
8	31 December 2028	12,500,000	150,000,000
9	31 March 2029	12,500,000	137,500,000
10	30 June 2029	12,500,000	125,000,000
11	30 September 2029	12,500,000	112,500,000
12	31 December 2029	12,500,000	100,000,000
13	31 March 2030	12,500,000	87,500,000
14	30 June 2030	12,500,000	75,000,000
15	30 September 2030	12,500,000	62,500,000
16	31 December 2030	12,500,000	50,000,000
17	31 March 2031	12,500,000	37,500,000
18	30 June 2031	12,500,000	25,000,000
19	30 September 2031	12,500,000	12,500,000
20	31 December 2031	12,500,000	0

Each instalment is equal to 5 per cent. of the aggregate Loans outstanding at the end of the Availability Period, adjusted pro rata if the Commitment has not been fully drawn.

SCHEDULE 9

EXISTING SECURITY

Member of the Group	Security	Secured amount (AED)	Secured party
Al Noor Fleet L.L.C.	Chattel mortgage over 42 heavy goods vehicles	18,400,000	Coastal Finance P.S.C.
Crescent Warehousing FZE	Mortgage over Plot S-11208, Jebel Ali Free Zone	27,000,000	Northern Emirates Bank P.J.S.C.
Harbour Line Shipping L.L.C.	Ship mortgage over the vessel “Al Noor Pearl”	9,750,000	Northern Emirates Bank P.J.S.C.

The Security over Plot S-11208 shall be released on or before 30 September 2026.

SCHEDULE 10**INSURANCE REQUIREMENTS**

Risk	Minimum cover (AED)	Notes
Property all risks (mortgaged warehouse)	120,000,000	Lender as first loss payee
Business interruption	30,000,000	Indemnity period 18 Months
Third party liability	25,000,000	Any one occurrence
Goods in transit	15,000,000	Per conveyance limit AED 2,000,000
Directors' and officers' liability	20,000,000	Group-wide policy

SCHEDULE 11

PROPERTIES

1. Warehouse at Plot S-20417, Jebel Ali Free Zone, Dubai (mortgaged under the Finance Documents).
2. Cold store at Plot 598-1120, Al Quoz Industrial Area 3, Dubai.
3. Distribution centre at Plot 14, Al Sajaa Industrial Area, Sharjah.
4. Office premises at Office 1407, Al Saqr Business Tower, Sheikh Zayed Road, Dubai (leased).

SIGNATURES

Al Noor Trading L.L.C.

By: _____ Name: [●] Title: Authorised Signatory

Al Noor Holdings Limited

By: _____ Name: [●] Title: Authorised Signatory

Gulf Meridian Bank P.J.S.C.

By: _____ Name: [●] Title: Authorised Signatory